A Moon Will Rise from the Darkness

Reports on Israel's Genocide in Palestine



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Francesca Albanese

EDITED BY MANDY TURNER AND LEX TAKKENBERG

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“When I came out of Gaza at the end of November 2023, I discovered that Israel was only the tip of the genocidal iceberg. The rest was the enablement apparatus – a system of states, institutions, and individuals – which ensured the longevity of a genocidal project now into its third year. This book dissects this apparatus, shedding light on its constitutive accomplices.”

—Ghassan Abu-Sittah, Professor of Surgery, American University of Beirut, and Lord Rector, University of Glasgow

“Albanese has spoken truth with unflinching clarity in a world largely silent in the face of a holocaust, carrying out her mandate with integrity and defiance that honours both the law and the human conscience. This book is a formidable indictment of injustice and demonstrates what it means to stand alone against power.”

—Susan Abulhawa, author of *Against the Loveless World*

“Francesca Albanese’s expert analysis sheds light on Palestine’s darkest moment in history. While millions of people formed an unprecedented solidarity movement with the Palestinians, their governments by and large remained indifferent. This book will help to judge those who were on the right and wrong side of history.”

—Ilan Pappe, Director of the European Centre for Palestine Studies

“Francesca Albanese’s compelling work is essential for all who seek truth and justice.”

—Prince El Hassan bin Talal of Jordan

“A scholarly and humane presentation of the indisputable facts of genocide by a courageous defender of universal human rights.”

—Camille Mansour, Secretary of the Board of Trustees, Institute for Palestine Studies

“The message of this important book is powerful. It asserts that only by speaking out and refusing to be intimidated can the arc of history bend toward justice. Albanese documents the role of powerful agents who profit from oppression and, despite threats and sanctions, refuses to be silenced.”

—Raja Shehadeh, writer and co-founder of Al-Haq

“As the world has witnessed the escalating horror in Gaza, Albanese has offered a powerful voice at international level, in condemning the genocide being committed by Israel against the Palestinian people. Her words matter.”

—Ivana Bacik TD, Leader, Labour Party Ireland

“Francesca Albanese’s descriptions of the genocide in Gaza, alongside her analyses of Israel’s crimes and those who have been complicit, has set a new benchmark, one marked by lucidity and courage.”

—Neve Gordon, Professor of Human Rights Law, Queen Mary University of London

“Albanese courageously reminds us that if ‘never again’ is to mean anything, never again is now.”

—Ardi Imseis, Professor of International Law, Queen’s University, Canada

“Francesca Albanese exposes Israel’s genocide in Gaza and the layers of complicity that sustain it – from state power and corporate interests to the quieter endorsement of universities and trade unions. *A Moon Will Rise from the Darkness* is a vital intervention, compelling readers to demand accountability.”

—Rafeef Ziadah, Senior Lecturer in Politics and Public Policy, King’s College London

“Few public figures have confronted Israel’s unfolding genocide in Gaza with the courage and clarity of Francesca Albanese. A necessary, urgent, and important contribution to the historical record.”

—Adam Hanieh, Professor of Political Economy and Global Development, University of Exeter

“Albanese is the gold standard for international advocacy, rigorously grounded in international law. She constantly sets the agenda; if you want to know where the discourse goes next, follow her.”

—Chris Gunness, Director of the Myanmar Accountability Project; former UNRWA Director of Communication

“Francesca Albanese has been a light in one of history’s darkest moments. Grounded in international law, guided by a quest for human rights, and undeterred by threats, she has not only meticulously recorded the crimes of a ruthless regime, but has set out a course for justice in their wake.”

—Craig Mokhiber, former senior United Nations official

“In the reports collected here, we see the contours of Israel’s genocidal campaign against Palestinians, its regime of apartheid, and the extensive network of support that bolsters it across the global North. This book is an important document archiving one of the greatest atrocities of our time.”

—Laleh Khalili, Al Qasimi Professor of Gulf Studies, University of Exeter

“A crucially important book in which Francesca Albanese argues clearly and unequivocally that unless justice is done, the rules-based order is no more. Francesca, the people’s lawyer globally, understands as intrinsically as Nelson Mandela did that ‘our freedom is incomplete without the freedom of the Palestinian people’.”

—Andrew Feinstein, former ANC member of parliament and executive-director of Shadow World Investigations

“At a moment when Israel and its allies work to obscure the truth, this book is a vital, historic record. Francesca Albanese’s reports offer an essential tool for justice, solidarity, and lasting peace.”

—Nicola Pratt, Professor of the International Politics of the Middle East, University of Warwick

“This remarkable book is a call for hope and action for humanity. We cannot emerge from this genocide unchanged.”

—Victoria Brittain, journalist and author

“During the Gaza genocide, Francesca Albanese has become the world’s moral conscience, with profound scholarship and analyses exposing the crimes and complicity of those who have neither

morals nor conscience. This book demonstrates why her place in history is assured."

—Mouin Rabbani, co-editor of *Jadaliyya*

"Francesca Albanese combines legal expertise and commitment to justice with outstanding courage. A most illuminating book on the darkest chapter in the history of the twenty-first century."

—Avi Shlaim, Emeritus Professor of International Relations at the University of Oxford

"This book showcases the essential and herculean work Francesca Albanese has produced in defence of Palestinian rights in a time of Israeli genocide."

—Lisa Hajjar, Professor of Sociology, University of California Santa Barbara

"Albanese represents human rights expertise at its best. She equips the international movement for a free Palestine with meticulously researched analyses that further its cause globally."

—Ayça Çubukçu, Associate Professor in Human Rights, London School of Economics

"Francesca Albanese has transcended the role of UN rapporteur to become an iconic presence in one of humanity's darkest chapters – not merely for the testimony she bears, but for the way she reorders our imagination of power, showing how it can be confronted and remade."

—Leila Sansour, writer and filmmaker

"Francesca Albanese's reports are a rallying cry for justice. They teach us how to speak law to power."

—Nimer Sultany, SOAS University of London

"This book is a real-time documentation of an ongoing genocide – a genocide justified, supported, and facilitated by Western powers, media and corporations. It serves as an indispensable source in advancing justice, accountability, and freedom for Palestinians."

—Lana Tatour, University of New South Wales, Sydney

"Francesca Albanese has documented genocide with forensic clarity, legal precision, and moral force. A vital work of courage, resistance, and hope in a time of monstrous silence, malevolence, and cowardice. A lighthouse in a storm of propaganda."

—Muhammad Shehada, Palestinian writer from Gaza

"As Israel and its collaborators continue their atrocities, this book is a defiant reminder that we are many, they are few, and that their crimes against the Palestinians will never be forgotten. While Israel writes the world's darkest chapter, global civil society writes its finest."

—Penny Green, Professor of Law and Globalisation, Queen Mary University of London

"With lucid analysis and courage, Albanese explains how genocide is organically tied to settler colonialism, is sustained by corporate interests, and relies on the failure of the international community to hold Israel accountable to international law. This book reminds us of our moral responsibility to bear witness, speak truth to power, and stop Israel's determination to erase the Palestinian people."

—Leila Farsakh, Professor of Political Science, University of Massachusetts Boston

“Francesca Albanese is an erudite and courageous voice. If there is hope to be found in these dark days, it resides in her indispensable work.”

—Sara Roy, author of *Unsilencing Gaza: Reflections on Resistance*

“Francesca Albanese is one of the most courageous and respected defenders of human rights and international law. This book should not only be widely read but embraced as a model of what meaningful solidarity looks like.”

—Ramzy Baroud, editor of *Palestine Chronicle*

“With clarity and compassion, Albanese registers the devastating shape, expanse, and mechanics of a genocide. These reports lend further weight to the heaving documentary archive of atrocities against the Palestinian people, and offer a sustenance of hope and solidarity.”

—Mezna Qato, University of Cambridge

“If an international community exists, Francesca Albanese is its leading voice of solidarity with the Palestinian people: principled, honest, fearless, and compassionate. In the darkest hour of the Palestinian people, Albanese’s example shames the world but also shows how it could be different.”

—Ralph Wilde, Professor of International Law, University College London

“*A Moon Will Rise from the Darkness* reflects Francesca Albanese fearless pursuit of truth, her struggle for accountability, and her belief in a different world that is, indeed, already rising.”

—Raz Segal, Associate Professor of Holocaust and Genocide Studies, Stockton University

“Albanese’s reports are amongst the most thorough, comprehensive, and courageous documentation of the genocide in Gaza. The attempts to silence her and to dismantle UNRWA are yet another part of the broader campaign to eliminate the Palestinian people and their rights.”

—Amos Goldberg, Professor of Holocaust and Genocide History, Jerusalem

“Francesca Albanese has been a generational voice of conscience on Palestine. She has narrated, conceptualised, and opposed Israel’s genocide with unwavering clarity – providing essential legal analysis while situating the genocide in its full settler colonial and political economic context.”

—John Reynolds, Associate Professor of Law, Maynooth University

“An urgent and vital contribution to public understanding of the mechanisms and underpinnings of the ongoing genocide in Palestine. A landmark publication.”

—Matthew Teller, co-editor of *Daybreak in Gaza: Stories of Palestinian Lives and Culture*

“A brave, principled, and unflinching account of the horror Israel has inflicted on Palestine and what the world must do to stop it.”

—Victor Kattan, School of Law, University of Nottingham

“Francesca Albanese is a towering figure that has been able to transform the previously anodyne principles of international law into a platform for calls for true justice and accountability for Palestinians under decades of settler colonial occupation.”

—Eyal Weizman, founding director of Forensic Architecture

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By
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Edited by Mandy Turner and Lex Takkenberg
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This book is dedicated to the Palestinian people and to all those who act in solidarity with their struggle for freedom, justice, and dignity. And with the certainty that, all together, we will overcome.

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Preface

Bearing Witness at a Time of Genocide: Speaking Out Against Israel's Atrocities and Western Complicity

Mandy Turner and Lex Takkenberg

October 2025 marks two years since the beginning of Israel's genocidal war against Palestinians in Gaza and an acceleration of its violence, ethnic cleansing, apartheid, and annexation in the rest of historic Palestine. At the time of writing in August 2025, Israel's genocide is still ongoing and shows no sign of ending soon. The international community – or, more specifically, powerful Western states – are complicit in this genocide by shielding and supporting Israel, simultaneously failing to support the right of Palestinians to live in freedom and with dignity.

In many Western states, people who have publicly criticised and opposed Israel's repression of Palestinians have experienced censorship, termination of employment, defamation, arrest, and deportation. This has not, however, stopped activists, academics, lawyers, and journalists from challenging this institutionalised discrimination and censorship; they refuse to be silenced.

One prominent example is Francesca Albanese, the UN Special Rapporteur on the situation of human rights in the Palestinian territories occupied since 1967 (hereafter UN special rapporteur for the OPT). Since taking the position in May 2022, Albanese has highlighted Israel's multiple violations of Palestinian human rights through her reports to the UN Human Rights Council and through her engagement with the media and the public. Despite experiencing multiple attacks on her character and her message,

Albanese has continued to carry out her official UN mandate with meticulous attention to facts and international law.

From March 2024 to June 2025, Albanese produced three important reports for the Human Rights Council of the United Nations that provide crucial evidence documenting Israel's genocide against the Palestinian people and Western complicity. This book reproduces these UN reports because we believe they should be more widely read and have a lasting significance. By providing testimony and evidence, bearing witness can be a powerful tool to help end injustice – but only if it is amplified by multiple voices and through numerous avenues. We need the world to know about Israel's genocide against the Palestinian people – and, with this knowledge, act to end it.

Albanese's first report "Anatomy of a Genocide" (A/HRC/55/73, March 2024), reproduced in Chapter 1, provides comprehensive and devastating documentation of Israel's assault on Gaza over the first six months after 7 October 2023. Albanese concludes that the threshold has been reached to accuse Israel of committing genocide against the Palestinian people in Gaza. This is particularly because senior Israeli government officials openly called for the destruction of Gaza and all its people, which motivated its soldiers to commit mass atrocities and genocidal acts.

The second report "Genocide as Colonial Erasure" (A/79/384, October 2024), reproduced in Chapter 2, builds on the first and argues that Israel's genocide in Gaza risks being expanded to Palestinians in the West Bank, including East Jerusalem. Albanese criticises Israel invoking the "right to self-defence" for its actions instead pointing to the International Court of Justice's July 2024 advisory opinion that Israel's occupation is illegal which means it has no "right to self-defence". Situating her analysis in the broader context of Israel's century-long settler colonialism in Palestine, which aims at the replacement of Palestinian-Arabs with Israeli-Jews, Albanese concludes that "the Gaza genocide is a tragedy foretold".

"From Economy of Occupation to Economy of Genocide" (A/HRC/59/23, June 2025), Albanese's third report, reproduced in Chapter 3, traces the deeply embedded structures of corporate and academic

complicity and profiteering from Israel's apparatus of repression against Palestinians. Albanese names over 60 companies – including multinational giants such as Google, Microsoft, Lockheed Martin, and Amazon – while highlighting that her report only scratches the surface of the evidence she received of corporate war profiteering and institutional complicity in Israel's war crimes.

The reports have been reformatted for this book but are otherwise reproduced in their entirety, including recommendations, legal annexes, and extensive referencing. The recommendations are included to confirm that there are concrete actions that could have been and still can be taken by states, the UN, and other bodies to stop Israel's genocide; these reports are not only catalogues of destruction but calls to action. And the Annex to Chapter 3 makes clear there are accepted international legal frameworks to deal with the issues outlined by Albanese in her report.

Albanese has repeatedly urged states to adhere to their obligations under the Genocide Convention, the Rome Statute, and the Geneva Conventions and to use their full leverage – including arms embargoes and sanctions – to stop Israel's genocidal actions. She has also called on companies and business executives to ensure they are not profiting from international crimes, or they could potentially face international criminal responsibility. In her introduction to this book, Albanese explains the thought processes that went into her three reports and the international responses to them.

Albanese's reports, and therefore also this book, constitute part of the extensive accumulated evidence of Israel's war crimes and crimes against humanity committed against the Palestinian people – not just over the past two years but stretching back to 1948. Yet, there has been a systematic failure of the international community to end and punish Israel's occupation, colonisation, and military violence, and to uphold Palestinian human rights. The foreword to this book, written by three former UN special rapporteurs for the OPT, Richard Falk, John Dugard, and Michael Lynk, sheds light on this.

Since October 2023, some states – mostly non-Western, from the Global South – have been raising their voices and trying various avenues to stop

Israel's genocide. This includes initiatives such as South Africa's January 2024 case against Israel at the International Court of Justice, and the Hague Group of states created in January 2025 to coordinate legal and diplomatic action against Israel. We salute these actions and request that more states join these initiatives.

Unfortunately, Western states, particularly the United States, the UK, and member states of the European Union, are guilty of complicity, duplicity, and silence. Few Western states have criticised Israel (apart from one or two exceptions such as Ireland and Spain) and even fewer have taken concrete steps to stop Israel's genocide against Palestinians. On the contrary, three powerful Western states – the United States, the UK, and Germany – are actively assisting Israel by providing weapons, military intelligence, and diplomatic support. Further, these states are repressing demands from their own people to act against Israel, undermining their own civil liberties and democratic freedoms in the process. Meanwhile, Israel continues its strategies of exterminating Palestinians in Gaza and annexing the West Bank.

WHY WE ARE PUBLISHING THIS BOOK NOW

Two issues provoked the publication of this book, both interrelated stories of how powerful states are trying to silence individuals and organisations that support Palestinian rights.

The first issue is the United States' sanctions against Albanese which it announced on 9 July 2025. This is the first time the United States has sanctioned a UN official. The second issue is the United States' announcement on 31 July 2025 that it is seeking to disband the UN agency for Palestine refugees, UNRWA. This follows Israel's ban on UNRWA which came into effect on 30 January 2025. Both show the extent to which the United States is willing to use its power to protect Israel, even during a genocide.

On 9 July 2025, the United States imposed sanctions on Albanese for what it calls "illegal and malicious lawfare" against Israel and US interests.[1]

Subsequently, Albanese is banned from travelling to the United States and any assets she has in the country may be frozen. If the sanctions are fully enforced, they could also affect her ability to engage in financial transactions within the EU, which will be especially consequential for Albanese who is an Italian national. This unprecedented move, which violates the privileges and immunities of UN officials, came after months of US pressure on the UN to remove Albanese from her post. But the UN Human Rights Council resisted these pressures and renewed Albanese's tenure for a further three years in April 2025. We are heartened by the fact that the UN has forcefully acted to defend Albanese, which will set it on a collision course with the United States.[2]

Now, the United States is seeking to dismantle the United Nations Relief and Works Agency for Palestine Refugees in the Near East, more popularly known by its acronym UNRWA.

UNRWA was set up in 1949 under a mandate from the UN General Assembly to provide support for Palestinian refugees in the West Bank, Gaza, Syria, Lebanon, and Jordan. Israel has long tried to destroy the UN agency because it enshrines the right of Palestinian refugees to return home to their properties confiscated by Israel in 1948–1949 and 1967. UNRWA was the main humanitarian provider in Gaza.

In January 2024, Israel accused UNRWA of employing some staff who were members of Hamas that had taken part in the 7 October 2023 attack. UNRWA Commissioner-General Philippe Lazzarini labelled Israel's actions as a "fierce disinformation campaign" to "portray the agency as a terrorist organisation".[3] Israel has not, to this day, provided any evidence for these claims.

But the damage was done. In response to Israel's allegations, 18 donor countries suspended aid to UNRWA, plunging the agency into crisis. The majority resumed funding after an independent investigation conducted by former French foreign minister Catherine Colonna which reported in April 2024,[4] but not UNRWA's biggest funder, the United States.

Israel's ban on UNRWA has severely impinged on its ability to carry out its humanitarian mandate. Israel has ended coordination with the agency

meaning that UNRWA trucks cannot cross into Gaza from Israel. UNRWA's headquarters in East Jerusalem has been shuttered. And Israel has refused to issue visas for UNRWA forcing its international staff to operate from outside the OPT.

UNRWA is now on the verge of collapse; it needs our support. All royalties from this book will therefore go directly to UNRWA. This includes donations given during free downloads of the e-book from the Pluto website (please give generously) as well as proceeds from sales of the paperback in shops and from online booksellers. UNRWA is the only humanitarian organisation that can have any hope of meeting the most urgent needs of Palestinians during this crisis. Albanese worked for the agency at its East Jerusalem HQ for several years.

The idea for this book was first raised during an emergency meeting of the Global Network on the Question of Palestine (GNQP) to discuss the US sanctions on Albanese.[5] The GNQP is a network founded in 2018 by Jordanian social justice NGO, the Arab Renaissance for Democracy and Development (ARDD), to provide a forum for members to develop innovative and critical thinking into the discourse concerning Palestine and Palestinians.[6] The main goal of the GNQP, of which Albanese is one of its founders, is to influence decision-makers and help to enable civil society in the region to take part in this effort. The Network, which is part of ARDD's Question of Palestine Programme, was one of the first to call for an end to the genocide in Gaza.

The cover for this book is from the paintbrush of the incredibly talented Malak Mattar, a Palestinian artist from Gaza. We thank her for this image – "Children of Gaza Dreaming of Peace" – which she kindly donated for us to use. When we first approached Mattar about the book project, she told us that she was a former student of UNRWA, educated in its schools in Gaza; her mother is also a former UNRWA schoolteacher.

We would also like to thank Pluto Press for being incredibly supportive of this book, particularly David Shulman; the book was produced at rapid speed. Our dear friends Mahmoud Muna and Leila Sansour also offered useful suggestions for the book cover.

The main title of the book, *A Moon Will Rise from the Darkness*, is a variation on a line from a poem by the Palestinian national poet Mahmoud Darwish.[7] Darwish's words, "And I tell myself, a moon will rise from my darkness", is a metaphor for hope and strength even in the darkest of times. It is with this sentiment firmly in mind that we devote this book to the past, present, and future struggles of the Palestinian people for freedom, justice, and dignity. Until that day of freedom comes, we must keep speaking out and resisting attempts to silence voices for Palestine.

Foreword

Sanctioning a UN Special Rapporteur for Truthfully Reporting on the Gaza Genocide and the Complicity of States and Corporations

Richard Falk, John Dugard, and Michael Lynk

US SANCTIONS IN CONTEXT

On 9 July 2025, the United States announced it was imposing sanctions on Francesca Albanese, UN special rapporteur for the situation of human rights in the Palestinian territories occupied since 1967. This action is without precedent in either UN experience or US foreign policy. When US Secretary of State Marco Rubio explained this avowedly punitive act, he relied on an earlier Trump Executive Order #14203 claiming authority to impose sanctions on the International Criminal Court (ICC).[1] This order was invoked in February against the Chief Prosecutor of the ICC, Karim Khan, and four of its judges for daring to issue "arrest warrants" for Israel's Prime Minister, Benjamin Netanyahu, and former Minister of Defence, Yoav Gallant.[2] On 20 August 2025, the United States announced it was sanctioning a further four individuals serving on the ICC: Kimberly Prost, Nicolas Yann Guillou, Nazhat Shameem Khan, and Mame Mandiaye Niang.[3] This is an astonishing act of anti-internationalism as these ICC officials were doing their job as set forth in the Rome Statute, the treaty framework that specifies ICC staff duties and limits of authority. The Executive Order against the ICC also violated Article 70 of the 1998 Rome Statute, which deems the "impeding, intimidating or corruptly influencing an official of the Court for the purpose of forcing or persuading the official

not to perform, or to perform improperly, his or her duties" to be an offence against the administration of justice.

With regard to Albanese, the application of the Executive Order went even further in ways that deliberately undermine conscientious and, in this case, highly influential, supposedly independent, UN experts from performing in accord with their official appointments. For one thing, it stretched the legally dubious scope of the Executive Order beyond the workings and decisions of the ICC, an international judicial organ that is not part of the UN System, to impose these sanctions on a UN employee in blatant disregard of international treaties to which the USA is a party, namely, the Convention on the Privileges and Immunities of the United Nations, and the Agreement regarding the Headquarters of the United Nations (the Host Country Agreement).[4] The observance of these treaties is indispensable for the UN to be able to fulfil the central goals of the UN Charter, a core treaty to which the USA is not only a party but widely considered when the UN came into existence in 1945 to be its principal founder, chief architect, and privileged location of its operational Headquarters and Secretariat.

When it comes to the agenda of global security and fundamental human rights, sanctioning Albanese is an instance of geopolitical overreach by Washington that joins a pattern of crude attempts to cripple the effectiveness and independence of the UN in this vetofree vital arena of operation. In other words, even if the grievances against Albanese were responsibly grounded in her behaviour, it would still be a serious regressive move against the UN. Any legitimate grievances of member states, including the UN Security Council Permanent Five states (P5 states), should be addressed within the Organization by invoking its remedial procedures, and not by recourse to a unilateral option to impose penalties. The UN High Commissioner for Human Rights, Volker Türk, echoed these sentiments in an unusually forthright encounter by a UN official with US government policy: "Even in face of fierce disagreement, U.N. member states should engage substantively and constructively, rather than resort to punitive measures", calling for the "attacks and threats" to stop.[5]

Sanctioning Albanese is a severe punitive action taken against a highly qualified and dedicated UN expert who was appointed three years ago to this unpaid position. Albanese sought the appointment despite being aware of the experience of prior HRC appointees as special rapporteurs on Occupied Palestine as a demanding, controversial, and sometimes embattled assignment. By transcending these difficulties, Albanese became by many objective accounts an exemplary special rapporteur, carrying out this role during an inflamed time of transparent genocide and other international crimes in Gaza, and later the West Bank, on the part of Israel. Her performance was not only professionally grounded in first-rate analysis backed by scholarly evidence, it also elicited praise for her bravery and remarkably energetic devotion to the mandate while coping with a constant stream of defamation, death threats, and multiple sources of political pressure, including insider pushback from UN bureaucrats reluctant to stick their necks out for fear of internal career reprisals, withheld budgets by dismayed member states, and an overall institutional style of timidity. As indicative of her resolve under fire, on the day the sanctions were announced, Albanese, an Italian, invoked a comparison familiar to her, describing them as "Mafia-style intimidation techniques".[6] Instead, she insisted: "On this day more than ever, I stand firmly on the side of justice, as I have always done."

Beyond this, there were fundamental flaws that were evident in Rubio's articulation of the rationale for these unusual sanctions, without precedent in either UN experience or US foreign policy. Rubio's justification can be divided into two parts: the immediate *technical* linkage to the ICC; and the underlying objections to her *character* failings evident in recommending that the ICC should investigate, arrest, detain, or prosecute nationals of the United States or Israel, without the consent of those two countries.

This reference is to a recommendation that Albanese made to the ICC in the most recent of her three genocide reports (Chapter 3 of this book), which named over 60 corporate and financial entities, including several American firms, as sufficiently tainted by the Gaza genocide as to justify ICC investigations leading to possible prosecutions for making profits by

facilitating Israel's criminality in various ways. In effect, it is an attempt to make non-Israeli corporate actors legally accountable for their complicity and involvement in the perpetration of serious war crimes in Gaza. Whether Albanese's focus on profitability would or should withstand evaluation by the ICC prosecutor is a reasonable concern, as corporate culpability might seem more appropriately gauged by whether evidence of an intention to facilitate the crime could be established rather than to hinge prosecution on the degree of profitability derived from the undertaking. Raising this concern somewhat provocatively, we could inquire whether a foreign arms supplier to Israel should be legally exonerated if able to demonstrate that its transactions with Israel related to its Gaza policies resulted in economic losses? What if they were prompted by sympathy with Israel's objectives rather than being economically motivated?

As for Israel, despite not being a party to the Rome Statute, its political and military leaders are subject to investigation, arrest, and prosecution for international crimes if Israel is accused of committing international crimes on the territory of a state party to the Statute, and having been so accused fails to take legal action itself. The jurisdictional authority of the ICC incorporates the principle of complementarity, which gives the alleged violating state a prior right to impose accountability by activating its own legal procedures. In this sense, the ICC assigned a residual option to assert its jurisdiction should no corrective action be taken by the accused state. Israel has taken no such action.

Whether corporate complicity in genocide is covered by ICC jurisdictional authority has not been previously litigated. Before claiming legal authority, this issue of jurisdiction would have to be resolved. The Nuremberg prosecution of German corporate executives in war crimes trials is a partial precedent.

Secretary Rubio has alleged that Albanese engaged in "lawfare" that was hostile to the political and economic interests of the United States and Israel. This is a rather odd contention as if the reliance on law to shape allegations of criminality is itself wrongful. And beyond this whether by its nature and to such a serious extent as to warrant sanctioning a UN

independent expert who relies with careful reasoning and abundant evidence on relevant legal norms. In Rubio's words: "[W]e will not tolerate these campaigns of political and economic warfare, which threaten our national interests and sovereignty."[7]

What is evident, and of importance, is that the United States so overtly asserts its commitment to geopolitical discretion if international law clashes with its strategic interests. If not repudiated or at least qualified, this nihilistic approach to international law relegates UN authority to the margins as has been the case throughout this post-October 7 period. As such, it sets a terrible precedent for other states and actors. The fact that the United States did not make the slightest attempt to engage, as Volker Türk proposes, in substantive arguments or formal protests to the UN prior to the sanctioning order heightens this impression of lawless ultra-nationalism. Such a use of governmental sanctions against a UN special rapporteur has many negative implications with reference to the protection and immunity of special rapporteurs generally when, as here, the "crime" or "wrong" of Albanese has been to do her job diligently, with uncontested competence, and fearlessly. Additionally, such sanctions give US corporate and financial actors a green light to partner with the destructive foreign governments, however criminal their activity, provided it conforms to US foreign policy, as this is apparently what is meant by upholding the economic interests of the USA.

As detrimental, and more personally unsavoury, is the distortion of truth in Rubio's embrace of character assassination as the undisguised underlying motivation for taking punitive action against Albanese. Rubio expresses this motivation in words that mimic the most destructive language of Israel's hasbara discourse and the defamatory smears of international pro-Israeli networks that launch these attacks on the credibility of high-profile critics of Israel: "The United States has repeatedly condemned and objected to the biased and malicious activities of Albanese that have long made her unfit for service as a Special Rapporteur. Albanese has spewed unabashed antisemitism, expressed support for terrorism, and open contempt for the United States, Israel, and the West."[8] Except for the accurate admission that

the USA “has repeatedly condemned and objected”, the whole passage is a gross untruth from start to finish, illustrative of the typical formula for weaponizing antisemitism and counter-terrorism to attribute hateful sentiments to individuals that are intentionally and knowingly decoupled from the reality of their actual beliefs.

Albanese has achieved a scholarly and activist reputation for evidence-based commitments to justice long before she was appointed special rapporteur. And she will enjoy an enhanced version of that reputation after she leaves the position in another three years. To attempt to destroy the reputation of a leading international human rights expert with falsehoods about her beliefs is to engage in mendacious politics premised on twisting the truth in ways that intentionally seek to harm not only her UN position, but her professional reputation and career prospects. The obvious political intention is to shift attention away from an unpleasant and unwelcome message to conducting a no-holds-barred crusade against a scrupulous messenger, who in this case happens to be a person of historic public virtue. For high officials of a government that prides itself on being the world’s leading constitutional democracy, the use of such tactics undermines any claim it might still have to remain respected as the world’s most trustworthy custodian of benign global governance.

Such an attack also serves to turn back the clock to a time when truth was subordinated to shortsighted material interests and deprives global governance of its most valuable instrument – truth in the service of justice. The use of state sanctions also has many negative implications with reference to the protection and immunity of special rapporteurs – a position which was established by the UN to counter the pursuit of national interests with support for human rights, and which is free from political pressures from UN member states and the Security Council veto.

The position of special rapporteur was established by the UN to counter the biasing of global policy by privileging the pursuit of national interests over the actuality of factual conditions. Francesca Albanese – by ignoring these sanctions that seek to silence her passion for justice – is fighting for much more than herself. She is fighting for law, morality, and integrity – the

foundations of humane governance. And she is fighting for the independence and immunity of all UN officers and special rapporteurs whose work is governed by the highest international standards. Albanese is developing her mandate with due appreciation of Palestinian resilience in relation to the pursuit of their basic rights and of UNRWA and other international agencies for their heroic efforts to mitigate Palestinian suffering.

THE ROLE OF SPECIAL RAPPORTEURS

Special Procedures is an inclusive designation that refers to Human Rights Council (HRC) working groups and commissions, independent experts, and special rapporteurs committed to the advancement of human rights. With enforcement of international law limited by political obstacles, the HRC and the Office of the High Commissioner for Human Rights (OHCHR) have employed Special Procedures to provide the world community with trustworthy information on conditions exhibiting both human rights violations and patterns of compliance with human rights standards. In large measure, this has been done by thematic and country-specific rapporteurs. The mandates of the 46 thematic special rapporteurs seek the gathering of evidence pertaining to specific classes of violations of human rights by fact-finding missions for specific countries that provide evidence of the violation of human rights.

The mandate of the 14 country special rapporteurs is different. Although these special rapporteurs engage in similar fact-finding missions, they make use of research materials and prepare reports on a particular country across the spectrum of human rights concerns, selectively emphasizing the relative severity of the issues being examined. Both thematic and country special rapporteurs make annual reports to the HRC in Geneva and the Third Committee of the General Assembly in New York. The role of special rapporteur has grown unevenly in respect and influence and is widely considered a UN success story from the perspective of human rights.

Former United Nations Secretary-General Kofi Annan once called the UN Special Procedures the “crown jewel” of the UN human rights system.[9]

The position of special rapporteur is open to applicants from around the globe who are evaluated by elaborate HRC vetting procedures to assess competence with due regard to the goals of diversity. Appointment as special rapporteur is made by the HRC for a three-year period, renewable for a further three-year term. Special rapporteurs must be recognized as an established human rights expert with scholarly or organizational credentials. They receive no compensation despite the heavy burden of work, but operating expenses associated with HRC activity are covered. The issue of cooperation by states chosen to be visited is a murky area. On the one side, UN membership is expected to allow and facilitate cooperation with UN activities but, on the other side, control over territorial sovereignty by national governments is respected and tends to prevail even if it entails denying entry to special rapporteurs. The overall experience of the HRC with its Special Procedures mechanisms is one of varied success. Although states have on occasion declined entry to special rapporteurs, sanctions of the kind imposed on Albanese have, until now, been unknown and mark an attack not only on Albanese but on the office of the special rapporteur.

The mandate to report on Palestinian human rights in the territories occupied since 1967 was established in 1993 and has been contested from the outset. Israel opposes the initiative and any external process that might pass judgment on its administration of the Occupied Palestinian Territories (OPT). Yet, the UN has a special responsibility in relation to the OPT because Israel’s occupation was deemed to be temporary and so regulated by the Fourth Geneva Convention on Belligerent Occupation and guided by UN Security Council Resolution 242. The situation in the OPT has always been tense and contested, primarily because Israel has resisted any arrangement calling for its withdrawal and instead engaged in flagrant violations of international humanitarian law. Among the most contested of Israel’s occupation policies are the annexation of East Jerusalem shortly after the start of its occupation, a move treated as null and void by both the Security Council and the UN General Assembly, and the settlement of

Israeli colonists in the West Bank and East Jerusalem. In July 2024, in a seminal advisory opinion, the International Court of Justice held both these policies and practices to be unlawful, in addition to Israel's denial of the right of self-determination of the Palestinian people and its imposition of racial segregation and apartheid on the Palestinian people.

The special rapporteur addressing human rights in the OPT has a special task, as she or he must report on human rights issues occurring within an occupied territory rather than inside a sovereign state. In order to perform her or his task responsibly, the special rapporteur should be allowed to visit the territory that is the subject of the mandate. Since 2008, Israel has, however, denied entry to the special rapporteur. Moreover, there are frequent calls from Israel and the United States for termination of the mandate and, in the case of Albanese, for dismissal. The special rapporteur for the OPT has the satisfaction of knowing that her or his reports are influential in conveying to the diplomatic community and the broader public an understanding of Palestinian human rights grievances, increasingly viewed as "the moral crisis of our time", but at the same time subjected to a level of criticism and harassment unknown to other mandates.

These contradictory features have resulted in special attention to this mandate in recent years, particularly since 7 October 2023, and the controversy over whether Israel is committing genocide in Gaza as the current special rapporteur persuasively insists. This is the background to the sanctioning of Albanese on 9 July 2025, in reaction to her most recent report focusing on the previously neglected topic of corporate complicity in relation to the ongoing genocide.

HOW THE ROLE GAINED VISIBILITY AND IMPACT

The first three special rapporteurs were men chosen for their diplomatic skills – René Felber (1993–1995), Hannu Halinen (1995– 1999) and Giorgio Giacomelli (1999–2001) – who attracted little controversy and were permitted to enter Israel. Their reports and recommendations, couched

in the language of diplomacy, failed to make a public impact. At that point, the position was hardly known outside the UN in Geneva and New York, and even within the UN was of marginal concern.

The early low visibility of the mandate started to change with the appointment of John Dugard of South Africa in 2001 for two complementary reasons. Dugard's reports during his tenure as special rapporteur over the period 2001–2008 (extended for an extra year at the request of the High Commissioner due to the establishment of the HRC in 2006) were rigorous and convincing, making an impact on the public perception of Israel's behaviour as an occupying power that was perceived increasingly as opposed to a good faith implementation of the two-state solution derived from the UN partition resolution of 1947.

Beginning in 2008, Israel became increasingly resistant to opening its territory to credible international experts, especially if it thought that the special rapporteur was likely to produce critical assessments of its behaviour, not from any bias, but as a result of thoroughly professional and influential fact-based interpretations of applicable international law. Israel also began avoiding engaging in substantive defence of its policies at the UN. Its diplomats became more inclined to use their energies and discourse to damage the reputations of persons filling the position of special rapporteur and the mandate process itself as applied to Israel. Dugard, who was highly respected in international circles, and had previously been entrusted with special UN assignments, forever raised the profile of the mandate almost 20 years before Albanese was appointed, but his comparatively serene special rapporteur experience was not to be repeated. It is worth describing this, in part to show the contrast that came after his second term expired in 2008.

Dugard's predecessors as special rapporteurs had been diplomats who worked within the framework of the delicate subtleties of dealing with sovereign states. Although Dugard's experience as a human rights lawyer opposed to South African apartheid was different, Israel agreed to grant him the treatment that had been accorded to his predecessors. He was permitted to travel freely in the OPT and liaise with the Israeli authorities about his

travel plans but not to speak to Israeli officials about his mandate. Israel made it clear that it did not recognize his mandate, despite its formal establishment by the UN.

Dugard's early reports measuring Israel's policies and practices against human rights and international humanitarian law standards were not well received by Israel but did not appear to unduly disturb the government. Later reports accusing Israel of state terrorism and torture, as well as condemning the construction of the Wall as *de facto* annexation, were even less well received by the Israeli authorities. Reports accusing Israel of practising apartheid were vehemently rejected.[10] Israel voiced its criticisms in complaints to the UN Secretary-General and harsh condemnations at the HRC and Third Committee of the General Assembly. The tone of these criticisms was, however, more restrained than those voiced by representatives of the US government that stridently challenged Dugard's reports contending that they misrepresented both the law and the facts.

Dugard had a good working relationship with UN officials working in the OPT (particularly UNRWA) and with Secretary-General Kofi Annan and successive Human Rights High Commissioners. UN bureaucrats in both Geneva and New York were less supportive and frequently engaged in tactics aimed at curtailing the implementation of the mandate. Senior UN officials in New York were clearly well disposed towards Israel and critical of the 2004 International Court of Justice advisory opinion on the Wall through the OPT. One such high-ranking official accused Dugard of disloyalty to the UN for criticizing UN policies on Gaza.

Pro-Israel NGOs (particularly UN Watch and NGO Monitor) made their opposition clear, particularly in Geneva. They called on the UN to dismiss Dugard, a call echoed by the Anti-Defamation League. However unpleasant the NGO hostility, it did not amount to the vindictive harassment to which Dugard had been subjected in South Africa while engaging in anti-apartheid activities.

Clearly, Israel resented the vigorous criticisms of its policies and practices in Dugard's later special rapporteur reports. Criticism of Israel's failure to comply with human rights standards were to be expected but

attacks on the basic features of Israeli occupation policies such as settlements, the Wall, apartheid, torture, and terrorism were perceived by Israeli officials as going too far. This style of response became more strident and was echoed more angrily by the United States.

Despite the relatively cooperative stance of Israel, its representatives at the UN were clearly pleased when Dugard's mandate came to an end. But Israel did not hide its even greater displeasure when Richard Falk was appointed to replace him in 2008.

Richard Falk is an experienced US academic whose qualifications to be special rapporteur were challenged by Israel and its supporters even before he was appointed. Falk's published views are sympathetic with the Palestinian struggle for basic rights. Somewhat surprisingly, Falk's strong support in the appointment process by the Palestinian Authority overcame the undisguised opposition of Israel and the United States, when the appointment was put to the test in a vote at the HRC. Falk never sought or enjoyed the support of his own government, as was also later to be the case with Albanese who was not supported by the Italian government. The United States was not a member of the HRC at the time and thus could not block the appointment with a negative vote, although his appointment prompted John Bolton, then the US Ambassador at the UN, to denounce Falk as "a fruitcake" and his selection as illustrative of what was wrong with the UN.

Canada spoke against Falk in the debate preceding the vote but abstained. Once appointed, opposition to Falk's credibility was repeatedly challenged by Zionist support groups, possibly energized and aggravated by Falk's Jewish background. It was during Falk's two terms as special rapporteur that accusations of antisemitism were weaponized for use against persons critical of Israel as a state but who were without any hostile animus towards Jews as a people or a religion. Almost from the outset, he became a target of smears by UN Watch in Geneva that were allowed by the President of the HRC to be directed at Falk during the time given for accredited NGOs to participate in the public debate after presenting his report to the HRC. Falk objected to both the defamatory intervention and the UN

tolerance of such behaviour, but to no avail throughout the six years of his tenure (2008–2014). It seemed that this behaviour was part of a conscious shift by Israel away from defending their occupation policies and practices substantively, and instead resorting to a politics of deflection by which attention would be diverted from the unwelcome message of violative conduct to the alleged lack of credibility of the UN messenger. To a certain extent, this tactic worked to insulate Israel from public debates and media attention, and from criticism and censure at the UN for so flagrantly violating international humanitarian law in administering the OPT after the 1967 war.

This pattern played out during his entire experience as special rapporteur from 2008 to 2014. Falk experienced some unpleasant encounters with Israel itself from the very beginning of his first term. After the OHCHR office in Geneva was assured by Israel's ambassador in Geneva that the itinerary for Falk's first fact-finding mission had been approved as confirmed by the issuance of visas to his two HRC assistants, he was reassured by HRC bureaucrats that he could count on the same level of cooperation by Israel as had been extended to Dugard.

Falk's arrival at Israel's Ben Gurion Airport in December 2008 told a different story. Falk's two assistants were routinely approved for entry on arrival and proceeded to Jerusalem, while Falk was detained in a holding cell near the airport with five other "prisoners" awaiting deportation, expulsion, or prosecution. The UN failed to do anything either publicly or behind the scenes to protest or seek Falk's release. He was freed only by the persistence of family and friends through persuading the US Embassy in Israel to secure his release and departure from Israel due to his failing health. The media, including the *New York Times*, was told by spokespersons of the Israeli Foreign Ministry that Falk had been warned not to seek entry to Israel, which was the opposite of the truth. Again, the UN refused to defend its own expert by issuing a true public account.

In fact, Falk hesitated to embark on the mission, fearing being barred entry in view of the fierce attacks on his appointment and his reluctance to make a pointless long trip from his home in California. He was persuaded

to change his mind by UN reassurances in Geneva, only to be refused entry at the point of destination, which was itself a form of harassment. While Falk was informed that he would be detained and expelled, the Israeli security official assigned as minder in the airport apologised for this turn of events by explaining to Falk that these steps were taken due to orders from the Foreign Ministry and did not derive from the Ministry of the Interior, which normally had responsibility for handling arrivals at the airport. There are legal obligations on all UN member states to cooperate with officials fulfilling UN mandates but rather than launch a formal protest by the UN, Navi Pillay, the UN High Commissioner for Human Rights at the time, promised to find Falk another position within the HRC if he wished to resign his special rapporteur post. Falk refused this offer.

Perhaps even more awkwardly, the Palestine Authority (PA) urged Falk's dismissal or resignation because his first report as special rapporteur confirmed the validity of Hamas's 2006 electoral victory in an internationally monitored free election held in the OPT. This assessment was deeply resented by the PA, which seemed more concerned about its rivalry for leadership of the Palestine national movement than in the pursuit of a just and durable peace, embodying the right of self-determination for the two peoples. PA anger partly seemed to express the view that it "owned" Falk because of its support for his selection, an attitude incompatible with the primary duty of special rapporteurs to tell it like it is, or at least how she or he perceives it.

Pressures and harassment did not let up, although no further effort was made by Falk to enter Israel, confining his annual fact-finding missions to the neighbouring countries of Egypt, Jordan, and Lebanon where he received invaluable cooperation from Palestinian NGOs. At one point, the UN Secretary-General Ban Ki-moon responded to demands for Falk's dismissal by explaining that he lacked such authority as Falk was an unpaid appointee not subject to UN civil service disciplinary procedures. These attacks on Falk's credibility did, however, heighten public awareness of the role of the special rapporteur. Indeed, as criticism of Israel's occupation mounted, it tended to give the mandate a heightened respect and credibility

as a source of reliable reporting and information. But it also revealed the timidity of the UN when it came to the protection of its independent experts in the face of pressures from P5 member states and their friends.

In the aftermath of Falk's stormy tenure, the HRC sought to mend fences with Israel, and agreed to the appointment of Makarim Wibisono of Indonesia in 2014, who accepted the appointment as special rapporteur after receiving Israeli assurances of cooperation, including not interfering with his entry to the OPT. After two years of frustration, involving a failure to uphold his expectations of cooperation and assured entry, Wibisono resigned the position in 2016,[11] leading to the selection of Michael Lynk to serve for a full six years (2016–2022).

When Lynk was appointed as the 7th UN Special Rapporteur on Palestine in March 2016, he faced immediate opprobrium from Canada, his own government. Although the newly elected Liberal government had taken positive steps following the defeat of the Stephen Harper government in late 2015 to restore funding to UNRWA and to use a less-lopsided tone in its approach to Israel and Palestine, the new foreign minister Stéphane Dion relied upon misreporting by pro-Israel advocacy groups to demand that the UN select another person as special rapporteur.[12] The UN Secretary-General's office ignored the criticism and the UN HRC proceeded to welcome Lynk to the mandate leading the Canadian government quietly to abandon its opposition.

Lynk's early reports focused on Israel's suffocation of the Palestinian economy and the struggles of Palestinian and Israeli human rights organizations, in the face of harsh reprisals by the Israeli government, to report on the deleterious impacts of the occupation. Perhaps Lynk's most impactful report was issued in the autumn of 2017, when he examined whether the Israeli occupation had by now crossed the bright red line into illegality.[13]

In this report, Lynk concluded that Israel's *de jure* and *de facto* annexations of occupied territory, its bad faith defiance of hundreds of UN resolutions, its denial of Palestinian self-determination and the evident permanence of its subjugation of the Palestinians meant that the then 50-

year-old occupation was unlawful. He recommended that the UN General Assembly seek an advisory opinion from the International Court of Justice on the issue. Five years later, in December 2022, the UN General Assembly voted to seek an advisory opinion on this question. And, in July 2024, with the State of Palestine and many of its allies in the Global South leading the way, the ICJ issued its seminal opinion that the Israeli occupation was indeed unlawful, and it must end "as rapidly as possible".[14]

Throughout his term, Israel refused to allow Lynk to enter the OPT, notwithstanding the legal obligations on all UN member states to cooperate with officials fulfilling UN mandates. Nonetheless, he received wonderful cooperation from Palestinian and Israeli human rights organizations, whose detailed reportage and intrepid advocacy were instrumental in shaping his own reports and statements on the tyranny of the occupation.

Another issue that Lynk focused on while serving as special rapporteur was the utter lack of accountability by the international community in challenging Israel's oppressive occupation. Three of his reports address this issue. UN resolutions were passed calling for an end to the occupation, for Israel to fully comply with its obligations under international humanitarian law, and for Palestinian self-determination. Early in Lynk's tenure, the UN Security Council adopted Resolution 2334 in December 2016. It called Israel's settlements "a flagrant violation under international law", demanded that Israel cease its illegal settlement activity, and called upon the Secretary-General to report every three months to the Security Council on Israel's compliance with the resolution.[15] Subsequently, the Secretary-General has reported every three months that Israel has not complied with the resolution, with no pushback from Security Council members as the last hopes for a genuine two-state solution receded from prospects of realization with every new illegal Israeli settlement in the OPT.

In March 2022, Lynk issued his 12th and last report to the UN HRC, focusing on how Israel's occupation had metastasized into apartheid. Building upon the analysis of his predecessors John Dugard and Richard Falk, and the work of Palestinian, Israeli and international human rights organizations, Lynk applied the legal definition of apartheid found in the

1973 Convention against Apartheid and the 1998 Rome Statute to conclude that: “With the eyes of the international community wide open, Israel has imposed upon Palestine an apartheid reality in a post-apartheid world.”[16]

Lynk was succeeded by the Italian human rights lawyer Francesca Albanese in 2022. If Lynk’s reports caused Israel and its supporters a headache, they were unprepared for the migraines that Albanese’s reporting would bring.

FRANCESCA ALBANESE’S CONTRIBUTIONS AS SPECIAL RAPPORTEUR

Our reports and recommendations, as the three special rapporteurs that preceded Albanese, were similar in tone to her approach. But what was starkly different was the circumstances under which Albanese was bearing witness. The first was provided by the intensity and sheer violence of Israel’s response to Hamas’s attack on 7 October 2023. The second was the gradual acceptance throughout much of the world that what Israel insisted was a legally entitled retaliation for Hamas’s attack – its “right to self-defence” – was manifesting the characteristics of genocide as outlawed by the Genocide Convention.

In these challenging circumstances, Albanese has provided in-depth analyses in three reports which conclude that Israel is committing genocide against Palestinians in Gaza, that its actions in the West Bank also constitute war crimes, and that there are powerful economic interests and corporate complicity in Israel’s ongoing genocide. This book reproduces these three reports so you can decide for yourself on the veracity of the accusations made against Israel and those who are complicit. These are the reports that have earned Albanese both praise and harsh pushback – with the latter culminating in the imposition of US sanctions.

Drawing on extensive academic studies, Albanese has also deepened our understanding of Israel’s genocidal actions by linking it organically to Zionism as an instance of settler colonialism where the underlying logic is to make the native population disappear. This is what underpinned Israel’s

imposition of an exploitative and discriminatory apartheid regime over Palestinians who refused to leave. This same logic has also driven Israel's descent into genocide, where Palestinians were dehumanized with the eventual goals of dispossession and extermination.

In this instance, Albanese's three reports devoted to the allegations of genocide have already had a discernible and lasting impact on both public and governmental perceptions. The intensity of the controversy around her performance was undoubtedly accentuated by the vividness of the genocide assaulting the moral conscience of the world, with daily spectacles of atrocity and suffering. What has been seen cannot be unseen.

The impact of these genocide reports is also a reflection of the unflinching personality of Albanese as a fearless voice who has refused to dilute her message, notwithstanding the shrill campaign to discredit her testimony and its objectivity. Albanese's reports have been models of expert craftsmanship and scholarly interpretations of law, fact, and intention in the extreme context of an increasingly poignant stage of Israel's genocide. This expert reportage of the genocide has described – dispassionately, soberly, lucidly – the deliberate cruelty of Israel's combat tactics in spreading lethal hunger and massive malnutrition among the surviving, brutalized Palestinian population in Gaza, as they have been denied safe shelter amid the near total destruction of their residential neighbourhoods, schools, mosques, hospitals, and markets. The world looked on – some with anger and resistance, many in stunned silence – making Albanese's "*j'accuse*" much more threatening to those in Israel, the Western media, and the US government, who began to be perceived even by the mainstream as "genocide deniers". Striking at the truth-telling special rapporteur is both an ugly slap at the UN but also a sign of rising frustration among Israel's most ardent, and dwindling, defenders.

Above all, these three reports on genocide submitted by Albanese as special rapporteur gathered in this volume are sure to stand the test of time and will vindicate her contributions. As well as raising the issue of corporate complicity, she has deepened the public understanding of genocide by linking it organically to the underlying character of the Zionist

Project as a vivid instance of settler colonialism, where the logic of settlers is to make the native or residential population politically, if not physically, disappear. The logic is one of dehumanizing Palestinians to be demeaned and displaced, and in turn glorifying the settler colonialists as bearers of a higher order of "advanced 'civilization'". In reality, this has meant imposing an apartheid regime among those who refuse to retreat or leave that is exploitative and discriminatory and, when that doesn't work, the ultimate goal of genocide – extermination, desperation, and dispossession – is employed. The Gaza progression through these stages is both illustrative of the pattern and of its extreme enactment.

THE FUTURE OF THE PALESTINE MANDATE

Now Gaza lies devastated and most of its surviving population are experiencing conditions of harsh confinement. Palestinians could be further subjected to mass expulsion thereby continuing the *Nakba* process of ethnic cleansing imposed by Israel in 1948. Despite the repeated efforts of successive special rapporteurs, us three and Albanese in particular, to recommend steps to uphold Israel's legal obligations as a temporary occupying power, the UN has failed to curtail Israel's ambitions. This underscores the wider failure of the UN and its member states to exhibit the political will to enforce international law and uphold Palestinian human rights. If Israel succeeds with its annexation plans, it may appear futile to maintain the zombie appearance of UN oversight of the OPT. Yet, the special rapporteur position provides crucial factual evidence and the language to oppose Israel's suppression of the right of Palestinians to live in freedom and with dignity. Albanese, through her reports as well as media and public engagement, has undoubtedly helped to mobilize global opposition to Israel's genocide against the Palestinian people.

Neither Israel nor the United States seem concerned by allegations that their behaviour shows contempt for the UN and violates international law and basic human decency. But their actions – particularly US sanctions against Albanese and Israel's shrill yet hollow accusations of antisemitism

against its critics – are a sign of rising frustration that Israel is on the cusp of losing international support. The Hague Group of states, which seeks to hold Israel accountable through legal and diplomatic means, was formed in January 2025, and civil society support for the Palestinian boycott, divestment and sanctions movement (BDS) and other solidarity initiatives is rapidly accelerating in tandem with the famine and malnutrition crises afflicting the Gaza population.

Both Israel's genocide and the US/Israel contempt for the UN vindicate the heroic efforts of Francesca Albanese as a reading of this volume will confirm. It should also remind us of the precious value of special rapporteurs as canaries in the coalmine of the twenty-first century.

Introduction

The Arc of History Bends Towards Accountability Only When We Refuse to Look Away

Francesca Albanese

The work reproduced in this volume reflects nearly two years of determined effort to prevent, halt, and hold accountable those responsible for genocide. I am deeply grateful to Pluto Press for publishing this work, with my reports as the principal contribution, and to all who supported its realization – particularly my long-standing friends and unwavering comrades, Mandy Turner and Lex Takkenberg. The support offered by my distinguished predecessors, former Special Rapporteurs Richard Falk, Michael Lynk, and John Dugard, is also a great comfort and inspiration. I am also relieved that all proceeds are directed to support Palestinian refugees through UNRWA, which urgently needs our solidarity in this tragic hour. While UNRWA is not beyond critique, its protection as the last vestige of UN commitment to the Palestinian question remains an indisputable priority until justice is realized under international law.

In over 70 years of struggle for peace, freedom, and self-determination, it is clear that inaction risks complicity. The structural problem lies less with UNRWA itself than with the broader United Nations system, which has reduced the Palestinian cause to a humanitarian issue to be managed rather than a political question to be resolved in accordance with international law. Paradoxically, the very political framework that created UNRWA has constrained its ability to protect Palestinian rights, including the right of return or restitution. UNRWA must endure, not only as an operational agency, but as a living testament to the international

commitment to the Palestinian people and their right to justice. Equally imperative is the proper implementation of the UN Refugee Convention, with full commitment from UNHCR. But above all, the genocidal assault unleashed by Israel in Gaza, now spilling into other parts of the occupied Palestinian territory, must end.

Since late October 2023, my engagement with studying genocide has profoundly reshaped my experience as a human rights lawyer and UN Special Rapporteur. Genocide was a concept I never anticipated confronting professionally. My first challenging encounter with it came when an Israeli Holocaust scholar asked me this direct question: why was I not investigating the genocide of the Palestinian people? It was spring of 2023. Instinctively, I resisted the term, shaped by images of Rwanda, Bosnia, and Nazi-occupied Europe. Yet, through research, conversations with experts and survivors, and upon reflection, I came to understand that the crime is defined not by method, but by intent. This realisation, immense and unsettling, revealed the false premise that a state born from genocide could not commit genocide itself. History demonstrates the opposite: unhealed trauma can inflict further wounds.

Understanding genocide imposed an inevitable responsibility to investigate. Yet my awakening was gradual, guided by jurisprudence, scholarship, and dialogue with leading experts, including William Schabas, Raz Segal, Amos Goldberg, Martin Shaw, Penny Green, Chris Sidoti, and others. Their insights, coupled with a growing body of evidence, transformed my reflection into urgent conviction: the moral imperative to speak, document, prevent, stop, and, ultimately, ensure accountability.

The three reports presented here – “Anatomy of a Genocide” (2024), “Genocide as Colonial Erasure” (2024), and “From Economy of Occupation to Economy of Genocide” (2025) – aim to document, analyse, and confront the unfolding reality of genocide. The first two reports are inseparable: the former provides an X-ray of Israel’s military conduct since 8 October 2023, revealing the methodical mechanics of genocide in the twenty-first century, while the latter exposes the deliberate strategies of concealment, the so-called “humanitarian camouflage” that masks unlawful

acts under the language of international humanitarian law. Civilians themselves became the principal targets.

Israel's post-October 7 conduct systematically de-civilianized Palestinians, reducing them to "human shields" or "collateral damage", killing doctors, journalists, and civilians seeking food, while invoking international humanitarian law to justify lethal violence. This distortion of international law has transformed an entire national group and its inhabited space into a destroyable target, with catastrophic consequences for tens of thousands of men, women, and children, and irreparable structural damage.

I warned the international community in March 2024 that failing to address this "humanitarian camouflage" would escalate atrocities – and my warning went unheeded. Six months later, the same logic of disregard for human life was inflicted upon Lebanon and, later, Iran, echoing Gaza and spreading suffering across the region.

The evidence of Israel's destructive intent towards both life and space, and the legal framework deemed to protect both, is not confined to Gaza; it is also apparent across Lebanon, Syria, and other parts of the Arab region. What we are witnessing is not simply an excess of violence or an escalation of war crimes, but rather a sustained, coherent, and collective project: the pursuit of a "Greater Israel" through the systematic erasure of Palestinians from their land. My first report, "Anatomy of a Genocide", articulates the collective dimension entailed by the notion of genocide as an organized crime against people targeted because of their identity.

My second report, "Genocide as Colonial Erasure" situates this violence within a settler-colonial framework: genocide is not an isolated event but the structural and logical expression of a colonial project. Meanwhile, Israel has intensified its aggression, perpetuating starvation, targeting civilians seeking aid, and reinforcing a culture of violence among soldiers and settlers, with support from large segments of Israeli society and media.

As I write these pages, we are close to the end of the second year of genocide. As we confront the aftermath of collective failure to prevent this genocide, two imperatives remain: to stop the ongoing violence and to ensure accountability. Justice must be pursued in judicial, retributive, and

restorative forms to address wounds and trauma. Beyond justice, we must commit to transformation – reshaping systems, laws, and collective will so that future atrocities can be prevented. We cannot emerge from this genocide unchanged; it demands reflection, action, and an unwavering commitment to humanity.

The publication of these three reports has elicited strong and, at times, defensive responses from the international community, yet the evidence they present is clear: Israel is committing genocide, its logic of elimination expanding into the West Bank, and rooted in a settler-colonial project shielded by entrenched structures of corporate and geopolitical power in the West, with the blessing of even some Arab states. As a result, UN officials like me have faced repeated attacks and sustained attempts to undermine our work – a familiar pattern of "shooting the messenger" whenever inconvenient truths threaten entrenched interests. Yet, we are no longer alone. No serious human rights organization and genocide scholar, especially in Israel, has not used the term genocide to condemn what Israel is doing.

Life in Palestine has become grievous and in Gaza it seems the apocalypse has befallen humanity. Yet the word *apocalypse* (from the Greek word ἀποκάλυψις (*apokálypsis*), which literally means "uncovering" or "unveiling") reminds us that revelation precedes change, even when change comes at great cost. Gaza signals the disclosure of what has been hidden, the bringing to light of truths that demand attention and action, asking who we are as individuals and societies.

In choosing to support this book, I sought to offer a measure of hope: opposition forces are coalescing, and justice, though delayed, can prevail. Palestinians do not have the privilege of despair, and neither should we. We must bear witness, speak the truth, and act with courage, knowing that the arc of history bends towards accountability only when we refuse to look away.

1
Anatomy of a Genocide

Francesca Albanese

INTRODUCTION

In the present report, the Special Rapporteur on the situation of human rights in the Palestinian territory occupied since 1967, Francesca Albanese, addresses the crime of genocide as perpetrated by the State of Israel in the occupied Palestinian territory, specifically in the Gaza Strip, since 7 October 2023. Since Israel prohibits the Special Rapporteur from visiting Gaza, the report is based on data and analyses from organizations on the ground, international jurisprudence, investigative reports and consultations with affected individuals, authorities, civil society and experts.

The Special Rapporteur firmly condemns the crimes committed by Hamas and other Palestinian armed groups in Israel on 7 October and urges accountability and the release of hostages.[1] She does not examine those events in the present report, as they are beyond the geographic scope of the mandate.[2] Nor does she examine the situation in the West Bank, including East Jerusalem.

Since it imposed the siege on Gaza in 2007, which tightened the closure imposed since 1993, Israel, the occupying Power, has carried out five major assaults before the present one.

By the ninth day of the assault, Israel had already caused more deaths (2,670)[3] than in its previous deadliest war against Gaza, in 2014 (2,251).[4] Only a fraction of the mass killings, severe harm and ruthless, life-threatening conditions inflicted on Palestinians over the subsequent five months of the assault can be captured in this report.

United Nations independent experts,[5] scholars[6] and States,[7] including South Africa in its case before the International Court of Justice,[8] have warned that acts committed in the latest onslaught may amount to genocide. The Court found a plausible risk of "irreparable prejudice" to the rights of Palestinians in Gaza, a protected group under the Convention on the Prevention and Punishment of the Crime of Genocide,[9] and ordered Israel, inter alia, to "take all measures within its power" to prevent genocidal acts, prevent and punish incitement to genocide and ensure urgent humanitarian aid.[10]

In its defence, Israel has argued that its conduct complies with international humanitarian law.[11] A key finding of the report is that Israel has strategically invoked the international humanitarian law framework as "humanitarian camouflage" to legitimize its genocidal violence in Gaza.

The context, facts and analysis presented herein lead to the conclusion that there are reasonable grounds to believe that the threshold indicating the commission of genocide by Israel has been met. More broadly, it is also indicated that Israeli actions have been driven by a genocidal logic integral to its settler-colonial project in Palestine, signalling a tragedy foretold.

CONTEXTUALIZING GENOCIDE

Genocide as inherent to settler-colonialism

Genocide, as the denial of the right of a people to exist and the subsequent attempt or success in annihilating them, entails various modes of elimination.[12] Raphael Lemkin, who coined the term "genocide", observed that genocide is "a composite of different acts of persecution or destruction",[13] ranging from physical elimination to the forced "disintegration" of a people's political and social institutions, culture, language, national sentiments and religion.[14] Genocide is a process, not an act.[15]

Genocidal intent and practices are integral to the ideology and processes of settler-colonialism,[16] as illustrated by the experience of Native

Americans in the United States of America, the First Nations in Australia, and the Herero in Namibia. Since it is the aim of settler-colonialism to acquire Indigenous land and resources, the mere existence of Indigenous Peoples poses an existential threat to settler societies.[17] The destruction and replacement of Indigenous Peoples therefore become "unavoidable" and take place through different methods depending on the perceived threat to the settler group. Such methods include removal (forcible transfer, ethnic cleansing), movement restrictions (segregation, large-scale carceralization), mass killings (murder, disease, starvation), assimilation (cultural erasure, child removal) and birth prevention.[18] Settler-colonialism comprises a dynamic, structural process and a confluence of acts aimed at displacing and eliminating Indigenous groups, of which genocidal annihilation represents the peak.[19]

Palestine and the context of genocide

Historical patterns of genocide demonstrate that persecution, discrimination and other preliminary stages prepare the ground for the annihilation stage of genocide.[20] In Palestine, displacing and erasing the Indigenous Arab presence has been an inevitable part of the forming of Israel as a "Jewish State".[21] In 1940, Joseph Weitz, head of the Jewish Colonization Department, stated that there was no room for both peoples together in the country; that the only solution was Palestine without Arabs; and that there was no other way but to transfer all of them: not one village, not one tribe should be left.[22]

Practices leading to the mass ethnic cleansing of the non-Jewish population of Palestine occurred from 1947 to 1949, and again in 1967, when Israel occupied the West Bank, East Jerusalem and the Gaza Strip, with mass displacement of hundreds of thousands, killings, the destruction of villages and towns, looting and the denial of the right to return of expelled Palestinians.

Since 1967, Israel has advanced its settler-colonial project through military occupation, stripping the Palestinian people of their right to self-determination.[23] This has resulted in the segregation and control of

Palestinians, including through land confiscation, house demolitions, revoked residencies and deportation.[24] Punishing their indigeneity and rejection of colonization, Israel has designated Palestinians as a "security threat" to justify its oppression and "de-civilianization", namely the denial of their status as protected civilians.[25]

Israel has progressively turned Gaza into a highly controlled enclave.[26] Since the 2005 evacuation of Israeli settlers (which the current Prime Minister of Israel, Benjamin Netanyahu, strongly opposed),[27] the Israeli settler movement and its leaders have framed Gaza as a territory to be "recolonized" and its population as invaders to be expelled.[28] Those unlawful claims are integral to the project of consolidating the "exclusive and unassailable right" of the Jewish people on the land of "Greater Israel", as reaffirmed by Prime Minister Netanyahu in December 2022.[29]

This is the historical background against which the atrocities in Gaza are unfolding.

LEGAL FRAMEWORK

The 1948 Genocide Convention codifies genocide as an international crime, the prohibition of which is a non-derogable peremptory norm (*jus cogens*). The *erga omnes* obligation to prevent and punish genocide binds all States under both the Convention and customary international law and requires that all States prevent and prosecute genocidal acts.[30] Genocide cannot be justified under any circumstances, including purported self-defence.[31] Complicity in genocide is expressly prohibited, giving rise to obligations for third States.[32]

The International Court of Justice and the International Criminal Court have jurisdiction over the crime of genocide, as do State domestic courts.[33] Prior to the establishment of the International Criminal Court, ad hoc international criminal tribunals advanced their interpretation of what constitutes genocide,[34] its intent and required evidence.[35]

Constitutive elements of genocide

The Genocide Convention codifies genocide as "any of the [specified] acts committed with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such".[36] Accordingly, the crime of genocide comprises two interconnected elements:

(a) The *actus reus*: the commission of any one or more specific acts against a protected group, namely:
    (i) Killing members of the group;
    (ii) Causing serious bodily or mental harm to members of the group;
    (iii) Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part;
    (iv) Imposing measures intended to prevent births within the group;
    (v) Forcibly transferring children of the group to another group;[37]
(b) The *mens rea*: the intent behind the commission of one or more of the above-mentioned acts that must be established, which includes two intertwined elements:
    (i) A general intention to carry out the criminal acts (*dolus generalis*);
    (ii) A specific intention to destroy the target group as such (*dolus specialis*).[38]

Both components must be satisfied for conduct to legally constitute genocide.[39] The perpetrator's intent to destroy the group in whole or in part distinguishes genocidal acts from other international crimes.[40] Specific intent may be established by direct evidence, that is, statements by high command or official documents, or inferred from patterns of conduct.[41] In the latter case, the patterns of conduct or the manner in which the acts are perpetrated must be such that they "only point to the existence of such [genocidal] intent"[42] and the existence of intent results in "the only inference that could reasonably be drawn".[43]

Evidence of the result is required to establish the commission of three of the underlying acts (killing, inflicting harm and transferring children).[44] For the remaining two acts (inflicting conditions calculated to destroy the group

and preventing births), the evidentiary threshold requires proof of an intent to achieve a given outcome, rather than its achievement.[45] Accordingly, if displacement, ethnic cleansing or mass deportation are perpetrated with the requisite intent to destroy the protected group as such, this may amount to genocide.[46] Similarly, these displacement actions can also be evidence of specific genocidal intent.[47]

State responsibility and individual criminal liability

The crime of genocide gives rise to both individual and State responsibility. The Genocide Convention stresses the need for individual accountability before domestic or international courts[48] regardless of any official role held by the perpetrator.[49] Individual criminal liability arises from direct involvement in committing, attempting, conspiring, directly and publicly inciting, planning, instigating, ordering and aiding and abetting (complicity in) genocidal acts, requiring a specific intent to contribute to the destruction of the target group.[50] This implies knowledge of the possibility that an act will result in destruction of the group in whole or in part.[51] Genocide gives rise to State responsibility when an individual has committed genocide while exercising State authority; in this case the individual's conduct is attributable to the State.[52]

GENOCIDAL ACTS IN GAZA

Genocidal acts can include deliberate actions or omissions, including the failure to protect the group from harm.[53] The evidence presented in the following sections suggests that Israel has committed at least three of the acts proscribed in the Genocide Convention.

"Killing members of the group"

This act encompasses deaths resulting from direct actions or arising from neglect, including deaths caused by deliberate starvation, disease or other survival-threatening conditions imposed on the group.[54]

Since 7 October 2023, Israel has killed over 30,000 Palestinians in Gaza, equivalent to approximately 1.4 per cent of its population, through lethal weapons and deliberate imposition of life-threatening conditions. By the end of February, a further 12,000 Palestinians were reported missing, presumed dead under the rubble.[55]

During the first months of the campaign, the Israeli army employed over 25,000 tons of explosives (equivalent to two nuclear bombs)[56] on innumerable buildings, many of which were identified as targets by artificial intelligence.[57] Israel also used unguided munitions ("dumb bombs")[58] and 2,000-pound "bunker buster" bombs on densely populated areas and "safe zones".[59] In the initial weeks, Israeli forces killed around 250 people daily, including 100 children,[60] in attacks obliterating entire neighbourhoods and essential infrastructure.[61] Thousands were killed by bombing, sniper fire or in summary executions;[62] thousands more were killed while fleeing using routes and within areas declared "safe" by Israel.[63] The victims included 125 journalists and 340 doctors, nurses and other health workers (four per cent of Gaza's health-care personnel), students, academics, scientists and their family members.[64]

As reported, 70 per cent of recorded deaths have consistently been women and children. Israel failed to prove that the remaining 30 per cent, comprising adult males, were active Hamas combatants – a necessary condition for them to be lawfully targeted. By early December, Israeli security advisers claimed the killing of "7,000 terrorists" in a stage of the campaign when less than 5,000 adult males in total had been identified among the casualties, thus implying that all adult males killed were "terrorists".[65] This is indicative of an intent to target members of the group indiscriminately.

Moreover, the heightened Israeli blockade of Gaza has caused death by starvation, especially among children, by impeding access to vital supplies.[66] Lack of hygiene and overcrowded shelters could cause more deaths than bombings,[67] having created "the perfect storm for disease".[68] A quarter of Gaza's population could die from preventable health conditions within a year.[69]

“Causing serious bodily or mental harm to members of the group”

This act must involve “a grave and long-term disadvantage to a person’s ability to lead a normal and constructive life”.[70] The harm caused does not need to be permanent or irremediable,[71] and can be brought about by various causes such as torture, inhuman or degrading treatment,[72] sexual violence,[73] persecution,[74] deportation[75] or other conditions “designed to cause their degradation, deprivation of their rights as human being, and to suppress them and cause them inhumane suffering and torture”.[76]

Since 7 October, Palestinians have suffered relentless physical and psychological harm. Many have endured violence and deprivation, including severe hunger.[77]

Israeli forces have detained thousands of Palestinians, mostly men and boys, often refusing to disclose their whereabouts.[78] Many of them have been severely mistreated, including through torture, at times leading to death.[79]

Lethal Israeli weapons and methods have injured 70,000 Palestinians, many with agonizing injuries, in some cases leading to long-term impairment.[80]

By causing critical shortages of medical supplies, including antibiotics and disinfectants, Israeli actions have resulted in hazardous health procedures, such as amputations without anaesthetics, including on children.[81] This has also prevented the administration of life-saving treatment to those with medical conditions, including chronic diseases.[82]

The survivors will carry an indelible trauma, having witnessed so much death, and experienced destruction, homelessness, emotional and material loss, endless humiliation and fear.[83] Such experiences include fleeing amidst the chaos of war without telecommunications or electricity; witnessing the systematic destruction of entire neighbourhoods, homes, universities, religious and cultural landmarks;[84] digging through the rubble, often with bare hands, searching for loved ones;[85] seeing bodies desecrated;[86] being rounded up, stripped naked, blindfolded and subjected to torture and other

cruel, inhuman or degrading treatment or punishment;[87] and, ultimately, being starved, adults and children alike.[88]

The savagery of the latest Israeli assault is best illustrated by the torment inflicted upon children of all ages,[89] who have been killed or rescued from under the rubble, maimed or orphaned,[90] and many left without surviving family.[91] Considering the significance of children to the future development of a society, inflicting serious bodily or mental harm to them can reasonably be interpreted as a means to destroy the group in whole or in part.[92]

"Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part"

This act involves conduct that does not directly kill members of the group, but is capable of leading, through various means, to its physical destruction.[93] This may include starving, dehydrating, forcibly displacing the protected group, destroying objects indispensable for their survival, reducing essential medical services to below the minimum requirement[94] or depriving them of housing, clothes, education, employment and access to hygiene.[95]

By mid-December, Israeli bombs and shells had destroyed or severely damaged most life-sustaining infrastructure, including 77 per cent of health-care facilities, 68 per cent of the telecommunications infrastructure, large numbers of municipal services (72), commercial and industrial sites (76), almost half of all roads,[96] over 60 per cent of Gaza's 439,000 homes,[97] 68 per cent of residential buildings,[98] all universities and 60 per cent of other educational facilities, including 13 libraries.[99] Israel has also destroyed at least 195 heritage sites, 208 mosques, 3 churches and the Central Archives of Gaza, containing 150 years of history.[100] By the end of January, over one million civilians had been forcibly displaced southward, their cities devastated.[101]

Sixteen years of blockade had already transformed Gaza into an isolated, densely populated, depleted and nearly "uninhabitable" enclave, when, on 9 October 2023, the Israeli Defense Minister Yoav Gallant,

announced a “complete siege (…) no electricity, no food, no water, no fuel”.[102] The Israeli Minister for Foreign Affairs, Israel Katz, then Minister of Energy, went further, stating that no “electrical switch will be turned on, no water hydrant will be opened and no fuel truck will enter”.[103] Deliberately denying essential supplies to an already besieged population was destined to cause deaths “more silent than those caused by bombs”.[104]

The total siege and near-constant carpet-bombing, along with draconian evacuation orders and ever-shifting “safe zones”, have created an unparalleled humanitarian catastrophe. Over 1.7 million Palestinian have been displaced and forced into overcrowded United Nations Relief and Works Agency for Palestine Refugees in the Near East (UNRWA) shelters and cramped quarters in southern Gaza,[105] systematically targeted by the Israeli army, and later into makeshift shelters.[106]

The Israeli assault has decimated Gaza’s already fragile healthcare system.[107] Hospitals, which also shelter displaced Palestinians, have been overwhelmed.[108] By deliberately targeting hospitals,[109] air and ground attacks have gradually turned them into death zones.[110] Israeli soldiers have occupied hospitals,[111] encircling them with tanks and snipers (human or drone).[112] By 12 February, only 11 out of 36 hospitals and 17 per cent of primary health-care centres were functioning, and then only partially.[113] Israeli soldiers have arrested, mistreated and tortured medical staff, patients and displaced people[114] and have forced them, including even premature babies, out of hospitals, in some cases causing the death of babies.[115] The doctors who remained have worked night and day, making “impossible decisions” on which patients to treat based on chance of survival.[116]

The ground invasion and aerial bombardments have destroyed agricultural land,[117] farms, crops, animals and fishing assets,[118] gravely undermining people’s livelihoods, the environment and agriculture.

From 8 to 21 October, Israel impeded the entry of all aid into Gaza, subsequently allowing woefully inadequate amounts,[119] largely restricted to the south.[120] No fuel supplies were delivered until 18 November.[121] In January, Israeli-led attacks against UNRWA, the main agency providing a

lifeline of support in Gaza, resulted in several States suspending payments to UNRWA, further aggravating the humanitarian situation.[122]

By 7 December, over 90 per cent of Gaza residents were suffering from severe food insecurity.[123] By February 2024, Palestinians trapped in northern Gaza resorted to animal feed and grass for sustenance,[124] with deaths by starvation on the rise.[125] Between mid-January and the end of February, the United Nations recorded numerous attacks against Palestinians seeking aid.[126]

The supply of water was also severely affected.[127] Fuel scarcity hampered water sanitation, driving people to use water contaminated by sewage, solid waste and seawater.[128]

The impact of these conditions on children is well-known:[129] in Gaza the risk of starvation,[130] with thousands suffering from wasting,[131] is already a tangible horrific reality.

These human-made conditions have put at risk an estimated 50,000 pregnant Palestinian women and 20,000 newborn babies;[132] miscarriages have increased by up to 300 per cent.[133]

The relentless Israeli targeting of all means of basic survival has compromised the ability of Palestinians in Gaza to live on that land.[134] This engineered collapse of life-sustaining infrastructure corresponds to the stated intentions to make Gaza “permanently impossible to live in” where “no human being can exist”.[135]

GENOCIDAL INTENT

The definition of genocide in the Genocide Convention requires the commission of any of the listed acts with a specific intent. It must be established that the perpetrator, by committing one or more of the prohibited acts, seeks to achieve the total or partial destruction of a national, ethnical, racial or religious group, as such.[136] This intent must be established either through direct or indirect evidence.[137]

As genocide is an organized crime, the commission of which invariably implies a collective dimension,[138] evidence of a State plan, including

through statements and declarations by State officials, is usually decisive in establishing direct intent.[139]

Proof of indirect intent can be inferred from facts or circumstances, including the overall context of the acts or omissions, the scale of atrocities, systematic targeting of victims based on their affiliation with a particular group, perpetration of other "culpable acts" directed against the group or the repetition of destructive and discriminatory acts.[140] The International Criminal Court requires that such facts or circumstances take "place in the context of a manifest pattern of similar conduct directed against the group or … conduct that could itself effect such destruction".[141] International tribunals have also established that indirect intent can consist of a manifest pattern of similar conduct over time.[142] The systematicity with which genocidal acts are committed implies a degree of "preconceived plan or policy".[143]

The nature and scale of the atrocities, if demonstrably capable of achieving the genocidal outcome, are strong evidence of intent.[144] The words of State authorities, including dehumanizing language, combined with acts, are considered to comprise a circumstantial basis from which intent can be inferred.[145] Dehumanization can be understood as foundational to the process of genocide.[146] Evidence of context may help determine intent, and must be considered along with actual conduct: intent should be evident above all from "words and deeds" and "patterns of purposeful action"[147] such that no other inference can be reasonably drawn.[148]

In the latest Gaza assault, direct evidence of genocidal intent is uniquely present. Vitriolic genocidal rhetoric has painted the whole population as the enemy to be eliminated and forcibly displaced.[149] High-ranking Israeli officials with command authority have issued harrowing public statements evincing genocidal intent, including the following:

(a) President Isaac Herzog stated that "an entire nation out there … is responsible" for the 7 October attack and that Israel would "break their backbone";[150]

(b) Prime Minister Benjamin Netanyahu referred to Palestinians as "Amalek"[151] and "monsters".[152] The Amalek reference is to a biblical passage in which God commands Saul, "Now go and smite Amalek, and utterly destroy all that they have, and spare them not; but slay both man and woman, infant and suckling, ox and sheep, camel and ass";[153]
(c) Minister of Defense, Yoav Gallant, referred to Palestinians as "human animals",[154] and announced a "full offense" on Gaza, having "released all the restraints", and that "Gaza will never return to what it was";[155]
(d) Israel Forces Spokesperson Daniel Hagari stated that focus should be to "maximize damage", demonstrating a strategy of disproportionate and indiscriminate violence;[156]
(e) Minister of Agriculture Avi Dichter referred to Israeli action as "the Gaza Nakba";[157]
(f) Minister of Heritage Amihai Eliyahu called for striking Gaza with "nuclear bombs";[158]
(g) Member of the Knesset for the Likud party, Revital Gottlieb, wrote on her social media post: "Bring down buildings!! Bomb without distinction!! … Flatten Gaza. Without mercy! This time, there is no room for mercy!"[159]

Such calls for annihilatory violence, directed at Israeli troops on duty,[160] constitute strong evidence of direct and public incitement to commit genocide.[161] Decades of discourse dehumanizing Palestinians have prepared the groundwork for such incitements.[162]

Since 7 October, the proliferation of statements inciting genocide have also involved several sectors of Israeli society, religious leaders,[163] journalists,[164] artists[165] and various professionals, including doctors[166] and political commentators.[167]

There is cogent evidence that these statements have been internalized and acted upon by troops on the ground.[168] Israeli soldiers have, including on social media channels run by the Israeli military,[169] referred to Palestinians as "terrorists", "roaches" and "rats",[170] and have repeated terms articulated by political leaders, chanting that "there are no 'uninvolved

civilians'",[171] while also calling for the building of settlements in Gaza,[172] "occupy[ing] Gaza … wip[ing] off the seed of Amalek",[173] boasting about killing "families, mothers and children",[174] humiliating detained Palestinians,[175] detonating dozens of homes,[176] destroying entire residential neighbourhoods[177] and desecrating cemeteries and places of worship.[178]

The Prime Minister and President of Israel have stated that Israel was fighting, on behalf of "all civilized States and … peoples",[179] "a barbarism that has no place in the modern world",[180] and that they "will uproot evil and it will be good for the entire region and the world".[181] This racist rhetoric echoes that of other colonial powers and tries to construe Israeli genocidal violence as legitimate in the light of Palestinians' alleged "barbarian" and "premodern" character.[182]

HUMANITARIAN CAMOUFLAGE: DISTORTING THE LAWS OF WAR TO CONCEAL GENOCIDAL INTENT

A core feature of Israeli conduct since 7 October has been the intensification of its de-civilianization of Palestinians, a protected group under the Genocide Convention. Israel has used international humanitarian law terminology to justify its systematic use of lethal violence against Palestinian civilians as a group and the extensive destruction of life-sustaining infrastructures. Israel has done this by deploying international humanitarian law concepts, such as human shields, collateral damage, safe zones, evacuations and medical protection, in such a permissive manner as to gut those concepts of their normative content, subverting their protective purpose and ultimately eroding the distinction between civilians and combatants in Israeli actions in Gaza.[183]

Official statements[184] have translated into military conduct that repudiates the very notion of civilian protection. Israel has thus radically altered the balance struck in international humanitarian law between civilian protection and military necessity, as well as the customary rules of distinction, proportionality and precaution. This has obscured one cardinal tenet of international humanitarian law: indiscriminate attacks, which do

not distinguish military targets from protected persons and objects, cannot be proportionate and are always unlawful.[185]

On the ground, the distortion of international humanitarian law, articulated by Israel as a State policy in its official documents, has transformed an entire national group and its inhabited space into a destroyable target, revealing an eliminationist conduct of hostilities. This has had devastating effects, costing the lives of tens of thousands of Palestinian civilians, destroying the structural fabric of life in Gaza and causing irreparable harm. This illustrates a clear pattern of conduct from which genocidal intent is the only reasonable inference to be drawn.[186]

Human shields and the logic of genocide

International humanitarian law strictly prohibits the use of human shields.[187] Their use constitutes a war crime,[188] as it violates the duty to protect the civilian population from dangers arising from military operations.[189] When human shields are used, the attacking party must take into account the risk to civilians.[190] Indiscriminate or disproportionate harm to civilians remains unlawful; the civilian population can never be targeted.

Israel has accused Palestinian armed groups of deliberately using civilians as human shields in previous aggressions on Gaza (including in 2008–2009,[191] 2012,[192] 2014,[193] 2021[194] and 2022[195]). It also used it to justify high civilian casualties and attacks against paramedics, journalists and others during the 2018–2019 "Great March of Return".[196] United Nations independent fact-finding missions[197] and reputable human rights organizations[198] have consistently challenged these allegations, sometimes concluding that evidence of human shields had been fabricated.[199] Nevertheless, Israel has used these accusations – sometimes subsequently retracted[200] – to justify the widespread and systematic killing of Palestinian civilians in its ongoing assault.[201]

After 7 October, the macro-characterization of Gaza's civilians as a population of human shields has reached unprecedented levels, with top-ranking Israeli political and military leaders consistently framing civilians as either Hamas operatives, "accomplices" or human shields among whom

Hamas is “embedded”.[202] In November, the Israeli Ministry of Foreign Affairs defined “the residents of the Gaza Strip as human shields” and accused Hamas of using “the civilian population as human shields”.[203] The Ministry defines armed groups fighting from urban areas as deliberately “embedded” in the population to such an extent that it “cannot be concluded from the mere fact that seeming ‘civilians’ or ‘civilian objects’ have been targeted, that an attack was unlawful”.[204] Two rhetorical elements of this key legal policy document indicate the intention to transform the entire Gaza population and its infrastructures of life into a “legitimate” targetable shield: (a) the use of the all-encompassing “the”; (b) combined with the quotation marks to qualify “civilians” and “civilian objects”. Israel has thus sought to camouflage genocidal intent with humanitarian law jargon.

International law does not permit the blanket claim that an opposing force is using the entire population as human shields en bloc. Any such usage must be assessed and established on a case-by-case basis before each individual attack.[205] The crime of using human shields occurs when the use of civilians or civilian objects to impede attacks on lawful targets is the result of a deliberate tactical choice, not merely arising from the nature of the battlefield, such as hostilities in densely populated urban terrain.[206]

Nevertheless, Israeli authorities have arbitrarily linked churches,[207] mosques,[208] schools,[209] United Nations facilities,[210] universities,[211] hospitals and ambulances[212] with Hamas to reinforce the perception of a population characterized as broadly “complicit” and therefore killable. Significant numbers of Palestinian civilians are defined as human shields simply by being in “proximity to” potential Israeli targets.[213] Israel has thus transformed Gaza into a “world without civilians” in which “everything from taking shelter in hospitals to fleeing for safety is declared a form of human shielding”.[214] The accusation of using human shields has thus become a pretext used to justify the killing of civilians under a cloak of purported legality, whose pervasiveness only admits of genocidal intent.

Turning Gaza as a whole into a “military objective”

International law stipulates that attacks must be “strictly limited” to objects, which, “by their nature, location, purpose or use make an effective contribution to military action”, whose “total or partial destruction, capture or neutralization” in the circumstances ruling at the time “must offer a definite military advantage”.[215]

Israel has misused this rule to “militarize” civilian objects and whatever surrounds them, thus justifying their indiscriminate destruction. According to the Ministry of Foreign Affairs, “many ostensibly civilian objects may become legitimate targets”,[216] losing their protection under international humanitarian law or may become “collateral” damage as a result of Hamas’s choice. The civilian population and the infrastructure of Gaza are presented as obstructions positioned among, in front of and above targets.[217] Instead of abiding by circumstantial status determinations in line with international humanitarian law for each attack undertaken, as is required, Israel has characterized the whole territory as a military objective.

Protected civilian objects can lose their immunity from attacks if and for as long as they are used by combatants in hostilities. However, Israel considers any object that has allegedly been or might be used militarily as a legitimate target, so that entire neighbourhoods can be razed or demolished under fictions of legality.[218] In the logic used by Israel, civilian objects, such as houses and apartments, become military objectives by proximity, as if the status of “lawful” target is spread through a vicinity by “viral contagion”. For example, residential tower blocks, each comprising dozens of floors and hundreds of (functionally separate and autonomously useable) flats, purportedly become military objectives in their entirety if a single flat or room had allegedly been used by an armed group.[219]

Paradigmatic examples are referred to as “power targets”,[220] encompassing all civilian objects, including residential buildings, under the pretext that “Hamas is everywhere in Gaza”.[221] Entire multistorey buildings have been levelled while full of civilians, knowingly killing hundreds in single strikes.[222] In the attack on the Al-Taj tower in Gaza City, bombed on

25 October, 101 people were killed, including 44 children and 37 women, and hundreds were injured.[223]

Israel has thus de facto abolished the distinction between civilian objects and military objectives. In the first three weeks of the offensive, entire residential areas across northern Gaza were erased.[224] Meanwhile, neighbourhoods in "safe areas" in the south were already being bombarded.[225] By November, the devastation of cities in northern Gaza far exceeded that of Dresden in 1945.[226]

Rationalizing patterns of attacks on civilian objects, knowingly killing civilians *en masse*, has become a military strategy premised upon probable war crimes presented as abiding with international humanitarian law. This strategy reasonably and solely infers a genocidal policy.

Indiscriminate killing as "collateral damage"

Israel has also sought to provide legal cover for indiscriminate attacks by misusing the notion of "collateral damage",[227] expanding, without limit, what can be considered "incidental civilian harm". Examples of indiscriminate attacks include attacks which, by any methods or means, strike multiple lawful targets at once in areas with high concentrations of civilians or civilian objects. To justify killing members of the protected group, Israel has defended such actions as causing only incidental harm to civilians, proportionate to concrete and direct military advantages anticipated.[228]

By invoking the concept of "proportionate collateral damage" to knowingly shell large numbers of members of the protected group, Israel asserts that when attacks result in more collateral damage than expected, it does not necessarily indicate a violation, since "compliance is conduct-oriented, not result-oriented".[229]

However, in all attacks launched against residential towers[230] without warnings, extensive civilian harm has been anticipated as the main outcome. The Al-Taj building was full of families at the time of the 25 October strike, and it must have been anticipated that it was certain to kill or injure all the civilians living there.[231] The fact that so many people were

killed was entirely predictable – and hence at least indirectly intended – as is evident from the images published by the Israeli military itself.[232] The attack on the Jabalia refugee camp on 31 October killed at least 126 civilians, including 69 children, and injured a further 280.[233] Israeli military personnel affirmed that the target was one Hamas commander in an underground base.[234]

In order for a proportionality assessment to be lawful, the principle of distinction must first be respected, otherwise the civilian harm anticipated from an attack ceases to be an incidental, unintended consequence of the attack itself.[235] While both indiscriminate and disproportionate attacks appear to have been committed systematically and repeatedly throughout the latest Israeli campaign,[236] the fact that both types of unlawful attacks have been consistently deemed by Israel as lawful suggests that it operates under a policy that condones mass killing.

Under international humanitarian law, the concrete and direct military advantage expected from a single attack must be weighed against the foreseeable incidental harm to civilians and civilian objects. However, in its strained proportionality assessments, the Israeli Ministry of Foreign Affairs states that "military advantage […] may refer to the military advantage anticipated" not from a specific military action but "from an operation as a whole",[237] alluding to the overall purpose of the war.[238]

Israeli proportionality assessments have flouted legal requirements by defining military advantage, in each attack, in relation to the destruction of the whole Hamas organization both politically and militarily.[239] It is manifestly illegal to declare as a war aim the destruction of the other side's political capacity (particularly in the context of a 56-year military occupation that deprives the occupied population of its right to self-determination). But when such an overall "political" purpose of war is taken as the value against which proportionality is to be measured in relation to the anticipated harm to civilians, there is virtually no magnitude of expected civilian harm that could ever be considered "excessive" so long as the unlawful political objective, as defined by the attacker, is not met. In this context, the indiscriminate killing of protected persons and destruction

of protected objects will always be represented, by the attacker, as "proportionate" incidental harm,[240] despite its manifest illegality.

Presenting indiscriminate lethal violence against the protected group as a "proportionate means" to pursue the war aims points to an intent to target the Palestinian population as a whole, consistent with the genocidal statements announcing the campaign. In other words, Israel appears to represent itself as conducting a "proportionate genocide".

Evacuations and safe zones

Under international humanitarian law, parties to conflict must evacuate the civilian population and remove civilian objects from the vicinity of military objectives.[241] Evacuations are admissible, as long as they do not displace the protected persons outside the occupied territory; evacuated persons must be transferred back to their homes as soon as hostilities in the area in question have ceased.[242] The displaced, wounded and sick should be protected through the creation of "hospital and safety zones" – also called "safe areas" or "safe zones" – which shall "be far removed from military operations" and established through agreement between the parties.[243]

The mass evacuation order of 13 October – when 1.1 million Palestinians were ordered to evacuate northern Gaza in the span of 24 hours to Israeli-designated "safe zones" in the south[244] – was communicated through at least 23 different airdropped leaflets, social media postings,[245] text messages[246] and recorded phone messages.[247] Instead of increasing safety for civilians, the sheer scale of evacuations, amidst an intense bombing campaign, and the haphazardly communicated safe zones system, along with extended communications blackouts,[248] increased levels of panic, forced displacement and mass killing.[249]

Immediately after the 13 October evacuation orders and the transformation of southern Gaza into an ostensible "safe zone", Israel illegally categorized the inhabitants of northern Gaza who had remained (including the sick and wounded) as "human shields"[250] and "accomplices" of terrorism.[251] This policy points to the intention by Israel to "transform" hundreds of thousands of civilians into "legitimate" military targets or

collateral casualties through impossible-to-follow evacuation orders.[252] The mass evacuation order included a staggering 22 hospitals in the area,[253] putting at risk more than 2,000 patients and displaced people sheltering in the hospitals, and deprived those remaining of life-sustaining services.[254]

The erasure of civilian protections in the evacuated area was combined with indiscriminate targeting of evacuees and inhabitants of the areas designated as safe zones. Since the beginning of its assault, Israel has perfidiously bombarded the designated "safe" areas causing significant casualties.[255] Of the roughly 500 2,000-pound bombs dropped by Israel in the first six weeks of hostilities, 42 per cent were deployed in the designated safe zones in southern areas.[256] Israel targeted southern Gaza also with other munitions from air, sea and land, causing large-scale destruction of civilian areas in the "safe zones".[257]

By 28 October, two weeks after the Israeli mass evacuation order, about 37 per cent of killings occurred in the declared safe areas south of Wadi Gaza.[258] By 20 November, 34 per cent of all Palestinians killed in Gaza were in that area,[259] and by 22 January, 42 per cent were located in that area, which, by then, held the majority of the population.[260] Simply put, "safe areas" were deliberately turned into areas of mass killing.

Similar patterns emerge from the Israeli militarization of the "humanitarian corridors" it instructed the population to use in order to evacuate. In contrast with the humanitarian rhetoric through which these "safe routes" were announced,[261] the corridors were systematically and perfidiously targeted by bombardment, shelling and sniper fire,[262] becoming "death corridors". Israel set up checkpoints for facial scans and identity checks, where fleeing Palestinians were often detained and later mistreated and tortured.[263]

By the end of November, the Palestinian death toll reached 15,000.[264] Responding to mounting international criticism, the Israeli military reconfigured its evacuation mechanisms, introducing a new "humanitarian" tool: the "evacuation grid".[265] The army published a grid map on social media, showing a division of Gaza into 600 blocks and indicating areas to be "evacuated" and "safe" areas.[266] The system – introduced when the army

had cut off Gaza from all forms of communication[267] – threw residents into panic, increasing the level of chaos and, subsequently, the number of deaths.[268] From early December, Israel routinely ordered Palestinian civilians in the areas south of Wadi Gaza to move to new zones designated as safe areas according to the grid. Immediately afterwards, the army targeted those "safe zones".[269]

From the end of December to February, Israel intensified its offensive in the "safe areas" of Al-Mawasi and Rafah, which were sheltering the majority of the displaced population.[270] These assaults continued even after the International Court of Justice ordered Israel to "take[s] all measures within its power" to prevent genocide.[271] Instead, by February Israel had killed a further 3,135 Palestinians, many of whom were killed while seeking refuge.[272]

By the beginning of February, 1.4 million Palestinians had been displaced to Rafah, rendering that governorate the most overcrowded area in Gaza with "an average density of over 22,200 per square kilometre, five times its pre-conflict levels".[273] Continuous bombardment of the "safe areas" targeted premises hosting displaced people[274] and medical facilities.[275]

Just as the evacuations and safe zones were being implemented, high-ranking Israeli officials advocated for settler colonial replacement. The Prime Minister advocated for ethnic transfer;[276] the Finance Minister expressed support for expelling two million Palestinians from Gaza;[277] the Minister of National Security declared the war to be an opportunity to "concentrate on encouraging the migration of the residents of Gaza"; while other cabinet ministers advocated that Palestinians be resettled[278] into the Sinai,[279] Western countries[280] and elsewhere.[281] The Minister of Communications revealed that the expulsion of the evacuated Palestinians outside Gaza was discussed "at government meetings".[282] On 12 January, a conference for the recolonization of Gaza and the expulsion of Palestinians was attended by Israeli cabinet ministers.[283]

The pattern of killings of civilians who evacuated to the south, in combination with statements of some senior Israelis declaring an intent to

forcibly displace Palestinians outside Gaza and replace them with Israeli settlers, lead, reasonably, to the inference that evacuation orders and safe zones have been used as genocidal tools to achieve ethnic cleansing.

Medical shielding

A final layer of the "humanitarian camouflage" concerns its efforts to provide legal cover for systematic attacks against medical facilities and personnel, causing the progressive collapse of the health-care sector in Gaza.[284] Accusing the enemy of using medical facilities as a shield, which Israel then targets, had already been employed as a strategy of "medical lawfare" in previous wars.[285] In the current assault, Israel has invoked this legal strategy to justify genocide through the complete destruction of Gaza's life-sustaining infrastructure.[286]

Civilian health care has special protection under international law, and there is a high threshold for the loss of the protected status for civilian medical units.[287] International law protects hospitals while prohibiting their use for military purposes or as shields for military activities, such as positioning military targets in their proximity.[288] Since the beginning of the hostilities, Israel has framed hospitals in Gaza as Hamas "headquarters"[289] and spaces used for shielding military activities,[290] aiming to blur the distinction between civilian and military objects, transforming hospitals into "hospital shields"[291] and legitimizing the destruction of the entire health-care sector.[292]

In November 2023, Al-Shifa Hospital in northern Gaza was hosting tens of thousands of displaced people when it was besieged and invaded.[293] On 27 October, the Israeli military published a 3D video representing the hospital's underground as a complex network of tunnels functioning as a "Hamas command centre".[294] On 2 November, the Ministry of Foreign Affairs published a legal document designating the hospital as a military centre concealing military assets.[295] The hospital was subsequently placed under siege and was invaded in mid-November, with Israel accusing Hamas of using medical personnel as "human shields".[296] After days of attacks, the hospital was turned into a "death zone":[297] five newborn babies and 14

patients were injured;[298] at least 31 people were killed;[299] and parts of the hospital turned into mass graves.[300]

Media reports challenged Israeli allegations that Hamas was using hospitals as shields, asserting that there was no evidence to suggest that the rooms connected to the hospital had been used by Hamas; the hospital buildings (contrary to Israeli military 3D images) were found not to be connected to the tunnel network; and there was no evidence that the tunnels were accessible from the hospital wards.[301] In addition, the Israeli army reportedly rearranged weaponry at the Al-Shifa before the visits of news crews,[302] raising further suspicions of fabrication after the Israeli army had claimed that a "list of terrorists" it had found in another Gaza hospital, Al-Rantisi children's hospital, turned out to be a calendar of the days of the week in Arabic.[303] Whether or not Israeli accusations that hospital shielding at Al-Shifa were true – but still remain to be proven – civilians in the hospitals should have been protected and not subjected to siege and military attack.

That the intent behind the "humanitarian camouflage" deployed by Israel in this instance can only be characterized as genocidal is clear for two reasons. First, Israel was aware of the large-scale destruction of the health-care system since the World Health Organization had reported in mid-November that a "public health catastrophe" was developing in Gaza, with 26 of 35 hospitals no longer operational owing to the bombing and siege inflicted by Israel.[304] Second, Israel knew that its military operation had resulted in a significant number of wounded people.[305] Physical trauma constitutes the predominant cause of excess mortality in Gaza.[306] It was predictable that forcibly suspending services at the largest hospital in Gaza would seriously harm the prospects for survival of the injured, the chronically ill and newborn babies in incubators. Therefore, by targeting Al-Shifa Hospital, Israel knowingly condemned thousands of sick and displaced people to preventable suffering and death.[307]

The reliance on the strategy of treating hospitals as medical shields, disregarding their function as indispensable hubs of societal survival for the thousands injured and the many more seeking shelter, exposes yet another

aspect of the genocidal logic underpinning the military strategy adopted by Israel.

CONCLUSIONS

The overwhelming nature and scale of the Israeli assault on Gaza and the destructive conditions of life it has inflicted reveal an intent to physically destroy Palestinians as a group. The present report finds that there are reasonable grounds to believe that the threshold indicating the commission of the following acts of genocide against Palestinians in Gaza has been met: killing members of the group; causing serious bodily or mental harm to groups' members; and deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part. Genocidal acts were approved and given effect following statements of genocidal intent issued by senior military and government officials.

Israel has sought to conceal its eliminationist conduct of hostilities by defending the commission of international crimes as abiding with international humanitarian law. By distorting customary rules of international humanitarian law, including distinction, proportionality and precautions, Israel has de facto treated an entire protected group and its life-sustaining infrastructure as "terrorist" or "terrorist-supporting", thus transforming everything and everyone into either a target or collateral damage, hence killable or destroyable. In this way, no Palestinian in Gaza is safe by definition. This has had devastating, intentional effects, costing the lives of tens of thousands of Palestinians, destroying the fabric of life in Gaza and causing irreparable harm to its entire population. It constitutes a pattern of conduct from which the only reasonable inference to be drawn is that there is a State policy of genocidal violence against the Palestinian people in Gaza.

The Israeli genocide against the Palestinians in Gaza is an escalatory stage of a long-standing settler colonial process of erasure. For over seven decades this process has suffocated the Palestinian people as a group – demographically, culturally, economically and politically – seeking to

displace it and to expropriate and control its land and resources. The ongoing Nakba must be stopped and remedied once and for all. This is an imperative owed to the victims of this highly preventable tragedy, and to future generations in that land.

RECOMMENDATIONS

The Special Rapporteur urges Member States to enforce the prohibition of genocide in accordance with their non-derogable obligations.[308] Israel and those States that have been complicit in what can reasonably be concluded to constitute genocide must be held accountable and must deliver reparations commensurate with the destruction, death and harm inflicted on the Palestinian people.

The Special Rapporteur recommends that Member States:

(a) Immediately implement an arms embargo on Israel, as it appears to have failed to comply with the binding measures ordered by the International Court of Justice on 26 January 2024, as well as other economic and political measures necessary to ensure an immediate and lasting ceasefire and to restore respect for international law, including sanctions;

(b) Support the action of South Africa in resorting to the Security Council under Article 94 (2) of the Charter of the United Nations following the non-compliance by Israel with the above-mentioned measures of the International Court of Justice;

(c) Act to ensure a thorough, independent and transparent investigation of all violations of international law committed by all actors, including those amounting to war crimes, crimes against humanity and the crime of genocide, including by:

  (i) Cooperating with international independent fact-finding/investigative and accountability mechanisms;

  (ii) Referring the situation in Palestine to the International Criminal Court immediately, in support of its ongoing investigation;

(iii) Discharging their obligations under the principles of universal jurisdiction, ensuring genuine investigations and prosecutions of individuals who are suspected of having committed, aided or abetted in the commission of international crimes, including genocide, starting with their own nationals;

(d) Ensure that Israel, as well as States which have been complicit in the Gaza genocide, acknowledge the colossal harm done, commit to non-repetition, with measures for prevention and full reparations, including the full cost of the reconstruction of Gaza, for which the establishment of a register of damage with an accompanying verification and mass claims process is recommended;

(e) Within the General Assembly, develop a plan to end the unlawful and unsustainable status quo constituting the root cause of the latest escalation, which ultimately culminated in the Gaza genocide, including through the reconstitution of the Special Committee against Apartheid, to comprehensively address the situation in Palestine and stand ready to implement diplomatic, economic and political measures provided under the Charter in case of non-compliance by Israel;

(f) In the short term and as a temporary measure, in consultation with the State of Palestine, deploy an international protective presence to constrain the violence routinely used against Palestinians in the occupied Palestinian territory;

(g) Ensure that UNRWA is properly funded to enable it to meet the increased needs of Palestinians in Gaza.

The Special Rapporteur calls on the Office of the High Commissioner for Human Rights to enhance its efforts to end the current atrocities in Gaza, including by promoting and accurately applying international law, notably the Genocide Convention, in the context of the occupied Palestinian territory as a whole.

2

Genocide as Colonial Erasure

Francesca Albanese

INTRODUCTION

In March 2024, the Special Rapporteur on the situation of human rights in the Palestinian territory occupied since 1967, Francesca Albanese, concluded that there were reasonable grounds to believe that Israel had committed acts of genocide in Gaza.[1] In the present report, the Special Rapporteur expands the analysis of the post-7 October 2023 violence against Gaza, which has spread to the West Bank, including East Jerusalem. She focuses on genocidal intent, contextualising the situation within a decades-long process of territorial expansion and ethnic cleansing aimed at liquidating the Palestinian presence in Palestine. She suggests that genocide should be seen as integral and instrumental to the aim of full Israeli colonization of Palestinian land while removing as many Palestinians as possible.

The present report is based on legal research and analysis, interviews with victims and witnesses, including in Jordan and Egypt, open-source information and input from experts and civil-society organizations. The Special Rapporteur, still refused access to the occupied Palestinian territory, stresses that Israel has no authority to bar fact-finding mechanisms from the territory that it illegally occupies. The persistent denial of access to United Nations mechanisms and investigators of the International Criminal Court (ICC) may constitute obstruction of justice, in defiance of the International Court of Justice (ICJ) order that Israel allow international investigators to enter Gaza and take measures to ensure the preservation of evidence.[2]

While the scale and nature of the ongoing Israeli assault against the Palestinians vary by area, the totality of the Israeli acts of destruction directed against the totality of the Palestinian people, with the aim of conquering the totality of the land of Palestine, is clearly identifiable. Patterns of violence against the group as a whole warrant the application of the Convention on the Prevention and Punishment of the Crime of Genocide (Genocide Convention) in order to cease, prevent and punish genocide in the whole of the occupied Palestinian territory.

LEGAL FRAMEWORK AND DEVELOPMENTS

In the present report, the Special Rapporteur relies on the legal framework considered in previous reports,[3] including international humanitarian law, international human rights law, international criminal law and customary international law, in particular the Genocide Convention and the International Convention on the Suppression and Punishment of the Crime of Apartheid, together with relevant legal developments and jurisprudence.

Two important legal developments informed the present report. First, in its Advisory Opinion of July 2024, ICJ declared the prolonged presence of Israel in the whole of the Palestinian territory occupied since 1967, including its colony regime,[4] as unlawful[5] and aimed at annexation.[6] It stated that Israeli annexation was designed to be permanent, creating "irreversible effects on the ground",[7] "undermin[ing] the integrity of the Palestinian people in the Occupied Palestinian Territory"[8] and seeking to "acquire sovereignty over an occupied territory".[9]

The Court recognized the violation of non-derogable norms prohibiting territorial acquisition by force,[10] racial segregation and apartheid,[11] and protecting the right to self-determination of the Palestinian people,[12] concluding that the occupation constitutes an act of aggression, in all but name, deriving in part from its settler-colonial nature.[13] It stressed the obligation to rapidly end the occupation, dismantle and evacuate the colonies, provide full reparation to Palestinian victims and allow the return of Palestinians displaced since 1967.[14]

Expanding on the *Wall* opinion,[15] the Court rejected arguments that Israeli "security concerns" justify the occupation.[16] The declared unlawfulness of the occupation vitiates claims of purported self-defence; the only lawful recourse available to Israel is its unconditional withdrawal from the whole of that territory.

Second, in *South Africa v. Israel*, the Court ordered provisional measures to prevent and/or stop acts of genocide.[17] After recognizing, in January 2024, the existence of a "real and imminent risk [of] irreparable prejudice" to the rights of the Palestinians in Gaza under the Genocide Convention, the Court instructed Israel to "prevent the commission of all acts" outlined in the Convention.[18] In March, the Court took notice of the worsening humanitarian crisis,[19] and in May, recognizing an "exceptionally grave" risk in Rafah, it ordered Israel to "immediately halt its military offensive".[20] Despite this, Israel, and most other States, continue to disregard such orders,[21] with arms continuing to flow to Israel.[22]

THE UNFOLDING GENOCIDE AS A "MEANS TO AN END"

On 14 October 2023, after Israel ordered 1.1 million Palestinians to move south from northern Gaza in 24 hours – "one of the fastest mass displacements in history"[23] – the Special Rapporteur warned of the risk of deliberate mass ethnic cleansing.[24] This proved prescient. At least 90 per cent of Palestinians in Gaza have now been forcibly displaced – many more than 10 times[25] – amid calls from Israeli officials and others for Palestinians to leave and Israelis to "return to Gaza" and rebuild the colonies dismantled in 2005.[26]

Meanwhile, violence has spread beyond Gaza, with Israeli forces and violent settlers having escalated patterns of ethnic cleansing and apartheid in the West Bank, including East Jerusalem.[27]

High-ranking Israeli officials, ministers and religious leaders continue to encourage erasure and dispossession of Palestinians, setting new thresholds for acceptable violence against civilians. The Nakba, which has been ongoing since 1948, has been deliberately accelerated.[28]

In the following sections, the Special Rapporteur examines critical developments on the ground, highlighting patterns of conduct that evidence an intent to employ genocidal acts as a means to ethnically cleanse all or parts of the occupied Palestinian territory.

Failure to cease and punish genocide in Gaza

Since the previous report of the Special Rapporteur (A/78/545), and despite the ICJ interventions, genocidal acts have proliferated. Nearly a year of scorched-earth assault has led to the calculated destruction of Gaza: the human, material and environmental cost is unquantifiable.[29]

Since March 2024, Israel has killed 10,037 Palestinians and injured 21,767, with more than 93 massacres, bringing the reported totals to nearly 42,000 and 96,000 respectively, although figures from reliable sources are incomplete and may understate the magnitude of the casualties.[30] Aid distribution sites,[31] tents,[32] hospitals,[33] schools[34] and markets[35] have been repeatedly attacked through the indiscriminate use of aerial and sniper fire. At least 13,000 children, including more than 700 babies,[36] have been killed, many shot in the head and chest.[37] Approximately 22,500 Palestinians have sustained life-changing injuries.[38] By May, a further 10,000 people were estimated to be buried under the rubble,[39] including 4,000 children;[40] the voices of those trapped and dying are often audible. An uncertain number are forcibly disappeared by Israeli forces.[41]

The magnitude of destruction in Gaza has prompted allegations of domicide,[42] urbicide,[43] scholasticide,[44] medicide,[45] cultural genocide,[46] and ecocide.[47] Nearly 40 million tons of debris, including unexploded ordnance and human remains,[48] contaminate the ecosystem.[49] More than 140 temporary waste sites[50] and 340,000 tons of waste,[51] untreated wastewater and sewage overflow[52] contribute to the spread of diseases such as hepatitis A,[53] respiratory infections,[54] diarrhoea, and skin diseases.[55] As Israeli leaders promised, Gaza has been made unfit for human life.[56]

Continued bombardment of evacuees in purportedly designated “safe zones”[57] has continued to create hardship, terror and death.[58] Displaced people have been systematically chased down and targeted in shelters,

including in United Nations Relief and Works Agency for Palestine Refugees in the Near East (UNRWA) schools, 70 per cent of which Israel has repeatedly attacked.[59] The Rafah offensive in May caused more than 3,500 direct deaths[60] and new displacement of almost 1 million Palestinians to uninhabitable wastelands of rubble, sewage and decomposing bodies.[61]

According to satellite imagery and other sources, Israeli soldiers have built roads and military bases in more than 26 per cent of Gaza, suggesting the aim of a permanent presence.[62] The Israeli military expanded the "buffer zone" along the Gaza perimeter to 16 per cent of the territory, flattening homes, apartment blocks and agricultural farms.[63] By August 2024, repeated evacuation orders over approximately 84 per cent of Gaza[64] had corralled the majority of the population into a shrinking, unsafe "humanitarian zone" covering 12.6 per cent[65] of a territory now reconfigured in preparation for annexation.[66] In early September, two ministers of the Government of Israel openly called for the conquest and annexation of significant areas of Gaza.[67]

Israel has continued to use "medical shielding" arguments to target healthcare facilities.[68] According to the World Health Organization (WHO), in 300 days, 32 out of 36 hospitals were damaged, with 20 hospitals and 70 out of 119 primary healthcare centres incapacitated.[69] By 20 August, Israel had attacked healthcare facilities 492 times.[70] From 18 March to 1 April, Israeli forces again laid siege to Al-Shifa Hospital, killing more than 400 and detaining 300 people, including doctors, patients, displaced persons and civil servants.[71] On 26 August, following mass expulsion orders in Deir al-Balah, where 1 million Palestinians were sheltering, Israeli forces compelled the evacuation of all but 100 of 650 patients in Al-Aqsa hospital.[72] On 30 August, Israeli forces bombed a humanitarian truck bound for the Emirati hospital in Rafah, killing several aid workers.[73]

On 16 July 2024, WHO detected the first presence of poliovirus in 25 years – a direct consequence of the destruction of water and sewage systems, obstruction of aid and shelter overcrowding.[74] By late August, a 10-month-old baby was partially paralysed by the disease.[75] Despite the looming outbreak, Israel delayed vaccinations[76] and attacked vaccination

areas[77] and a United Nations vaccination convoy.[78] While humanitarian organizations called for a ceasefire, Israel issued the highest number of evacuation orders since 13 October 2023, targeting areas with the highest concentration of displaced Palestinians,[79] forcing the United Nations to suspend humanitarian operations.[80]

Systematic attacks on Gaza food sovereignty indicate an intent to destroy its population through starvation.[81] Israel has destroyed agricultural land[82] and reservoirs[83] and attacked distribution centres, coordination teams and aid convoys.[84] Hungry crowds waiting for food have been massacred.[85]

Following constant evacuation orders and the Israeli takeover of the Rafah crossing,[86] distribution of daily meals fell by 35 per cent from July to August 2024.[87] In August, entry permits for humanitarian organizations nearly halved.[88] Access to water has been restricted to a quarter of pre-7 October levels.[89] Approximately 93 per cent of the agricultural, forestry and fishing economies has been destroyed;[90] 95 per cent of Palestinians face high levels of acute food insecurity,[91] and deprivation for decades to come.[92]

In August 2024, the Finance Minister of Israel, Bezalel Smotrich, stated that starving the entire Gaza population was “justified and moral”, even if 2 million people consequently died.[93] In recent months, 83 per cent of food aid was prevented from entering Gaza,[94] and the civilian police in Rafah were repeatedly targeted, impairing distribution.[95] At least 34 deaths from malnutrition were recorded by 14 September 2024.[96] At the time of writing, the Prime Minister, Benjamin Netanyahu, was evaluating a plan to block all food supplies to northern Gaza[97] proposed by adviser Giora Eiland,[98] who previously endorsed introducing epidemics as a military tactic.[99] The killing of civilian police and clan leadership providing security for food distribution further compounded the crisis across Gaza.[100] Starvation and deprivation tactics in the north have been particularly egregious.[101]

Palestinians have been systematically abused in a network of Israeli torture camps.[102] Thousands have disappeared, many after being detained in appalling conditions, often bound to beds, blindfolded and in diapers, deprived of medical treatment and subjected to unsanitary conditions, starvation, torturous cuffing, severe beatings, electrocution and sexual

assault by both humans and animals.[103] At least 48 detainees have died in custody.[104]

Even when conservatively considered, these multiple torments constitute precisely the irreparable harm that ICJ has warned against since January 2024, and which Israel has intentionally inflicted on the Palestinians as a group.

Risk of genocide in the West Bank, including East Jerusalem

The devastation inflicted on Gaza is now metastasizing to the West Bank, including East Jerusalem. In December 2023, the Defence Minister of Israel, Yoav Gallant, predicted that "when what the IDF did in Gaza becomes clear, that will also be projected on Judea and Samaria [West Bank]".[105]

From 7 October 2023 to the end of September 2024, Israeli forces carried out more than 5,505 raids.[106] Violent settlers, supported by Israeli forces and officials,[107] conducted 1,084 attacks,[108] killing more than 692 Palestinians – 10 times the previous 14 years' annual average of 69 fatalities – and injuring 5,199.[109]

The pattern of targeting children is shocking. Since 7 October, 169 Palestinian children have been killed,[110] nearly 80 per cent of whom were shot in the head or torso.[111] This represents a 250 per cent increase on the previous nine months,[112] totalling more than 20 per cent of children killed in the West Bank since 2000.[113]

Echoing the brutality that swept Gaza, Palestinians in the West Bank have been subjected to appalling detention practices,[114] following orders by the National Security Minister of Israel, Itamar Ben-Gvir.[115] A mass arrest campaign[116] led to the detention of tens of thousands, with 9,400 currently detained.[117] As in Gaza, many are academics, students, lawyers, journalists and human rights defenders,[118] designated as "terrorists" or "national security threats".[119] Leaked videos and interviews with prison officials revealed intentional and systemic abuse and brutality, degradation, torture and even rape.[120] At least 12 detainees from the West Bank died as a result of torture and denial of medical care.[121]

In November 2023, Bezalel Smotrich, “Governor of Judea and Samaria” and staunch advocate of colonization and mass expulsion,[122] claimed that there are “2 million Nazis” in the West Bank.[123] He then promised to turn several areas of the West Bank into a “pile of rubble like … [Gaza]”.[124] On 18 August, the Foreign Minister of Israel, Israel Katz, called for the West Bank to receive the same treatment as Gaza.[125]

The northern West Bank has been the subject of particularly severe military violence.[126] Protracted sieges,[127] relentless raids[128] and a major escalation since August 2024, including aerial bombardment,[129] have wrought devastation.[130] Forty-six drone and air strike operations[131] killed 77 Palestinians, including 14 children.[132] In Jenin camp approximately 180 homes were levelled and 3,800 structures damaged,[133] destroying or damaging power supplies, public services and amenities,[134] displacing thousands of families and causing widespread disruption.[135] More than 181,000 Palestinians have been affected, many multiple times.[136]

On 27 August 2024, Israeli forces launched operation “Summer Camps” against Jenin, Nablus, Qalqilya, Tubas and Tulkarem, fulfilling the promise to treat the West Bank like Gaza.[137] For days on end, thousands were placed under curfew, without food or water.[138] Israeli forces targeted ambulances, blocked entrances to hospitals and laid siege to Jenin Hospital.[139] Bulldozers destroyed streets and electricity and public health infrastructure.[140] Hundreds lost their homes and property;[141] more than 1,000 families in Jenin were displaced.[142] Thirty-six were killed, including eight children.[143]

Targeted attacks on the health sector have been replicated in the West Bank. Medical workers and infrastructure were attacked 538 times, killing 23 people and injuring 100 and damaging 54 medical facilities, 20 mobile clinics and 374 ambulances,[144] while critical medical care was impeded.[145] Permits for Palestinians to access medical care outside the West Bank sharply declined.[146]

On 29 May 2024, governance of the West Bank was officially transferred from military to civilian authorities – furthering *de jure* annexation – and placed under Bezalel Smotrich, a committed Eretz Yisrael politician.[147] The largest single land appropriation in 30 years was then

approved.[148] Since 7 October, Israel has demolished, confiscated or ordered the demolition of more than 1,416 Palestinian structures, displacing more than 3,200 Palestinians, including approximately 1,400 children.[149] At least 18 communities were depopulated under the threat of lethal force,[150] effectively enabling the colonization of large tracts of Area C.[151] This constitutes an escalation of unlawful conduct already found to be "aimed at dispersing the [Palestinian] population and undermining its integrity as a people".[152]

The crippling of the economy is another existential threat. Amid extreme insecurity and fear, the suspension of financial transfers to the Palestinian Authority,[153] the revocation of 148,000 work permits,[154] and severe movement restrictions, the gross domestic product (GDP) of the West Bank contracted by 22.7 per cent,[155] nearly 30 per cent of businesses have closed, and 292,000 jobs have been lost.[156]

Genocidal conduct in Gaza set an ominous precedent for the West Bank. The deliberate strategy of Israel to render Palestinian life unsustainable has markedly intensified everywhere in the occupied Palestinian territory, with devastating consequences for Palestinian survival.

UNDERSTANDING THE LEGAL COMPLEXITY AND SCOPE OF GENOCIDAL INTENT

Following the harrowing experience of recent genocides in Rwanda, the former Yugoslavia and, plausibly, Myanmar,[157] what constitutes genocide in law – the destruction of a national, ethnical, racial or religious group, in whole or in part, as such – has become better established.[158] However, preventing and punishing genocide in practice, in particular proving genocidal intent, is still developing.[159]

The stigma attached to and the consequences of the crime of genocide often deter perpetrators from recording policies, plans and other indications of intent to carry it out (e.g. in writing).[160] When direct evidence of intent is unavailable, inferring intent requires a complex assessment of facts, statements and circumstances.[161] These factors should be borne in mind:

(a) While recognizing the possible composite nature of genocide is critical to its identification and prevention, the compartmentalization of the conduct into its disparate acts without recourse to broader context can obscure the requisite genocidal intent;
(b) Aside from the five acts that may constitute genocidal conduct, other acts can be indicative of genocidal intent;[162]
(c) The existing jurisprudence has arisen primarily from the criminal prosecution of individuals;[163] this can limit the early recognition of broader State responsibility for genocide, which is crucial to its prevention.

Understanding how the intent to destroy manifests – its relationship to the prescribed genocidal acts and the nature and scale of atrocities – is key when identifying conduct that could constitute evidence of genocidal intent as the only reasonable inference.

In the following sections, the Special Rapporteur briefly outlines how relevant jurisprudence, analysed *in abstracto*, is fully capable of capturing genocidal intent in State conduct when a comprehensive interpretative approach is adopted.

Considering the plurality of facts, circumstances and conduct

The magnitude and complexity of the crime of genocide require close analysis of the genocidal conduct as a whole,[164] properly situated in its broader context.[165] Due consideration should be given to:

- The destruction caused by the nature and scale of atrocities[166]
- The fog of war[167]
- Claims to retribution or alternative motives[168]
- The opportunity to commit genocide[169]

In international practice, the same facts can form the basis of multiple charges (and constitute a war crime or crime against humanity and an act of genocide).[170] When determining genocidal intent, it is critical to assess

"whether all of the evidence, taken together, demonstrate[s] a genocidal mental state".[171]

As observed by Judge Trindade in *Croatia v. Serbia*, an "onslaught of civilians" is not merely a "plurality of common crimes", but rather a "plurality of atrocities, which, in itself, by its extreme violence and devastation, can disclose the intent to destroy".[172] The focus should be on whether all the acts – e.g. starvation, torture, killing, forced displacement, extermination – considered together in their totality form a pattern of conduct indicative of genocidal intent.[173]

Singularity of intent: destroying "a group" "as such"

In proving intent to destroy the group, all relevant factors must be examined holistically. Jurisprudence on genocidal intent is typically focused on "physical or biological destruction" of the group.[174] The fact that the Genocide Convention was drafted when colonialism still played a significant role in international relations, and the vivid horror of the Holocaust's industrial-scale extermination, may account for the focus on physical and biological destruction over social and cultural factors.[175] However, genocide is not a crime only of mass killing, as specified in the Convention itself.[176] The genocidal act of "forcibly transferring children of the group to another group", for example, entails no killing at all.[177]

Genocide is more structurally complex and insidious, and therefore more difficult to ascertain than crimes such as mass killing or extermination. A wider lens is required to identify the intent to destroy a group in whole or in part as such. International jurisprudence provides that acts other than the five listed in the Convention may be relevant evidence of genocidal intent.[178] Accordingly, the historical and sociopolitical context in which genocide occurs is key to identifying how intent forms, and then materializes also through these other acts.

Jurisprudence has been broadly focused on determining intent through acts targeting "the very foundation of the group",[179] including the imposition of living conditions leading to "slow death"[180] and "the

destruction of the spirit, of the will to live, and of life itself".[181] In other words, intent to destroy is assessed holistically and in totality.

Jurisprudence has also recognized that a group is "comprised of its individuals, but also of its history, traditions, the relationship between its members, the relationship with other groups, the relationship with the land".[182] Violent destruction of any of these components has a profound impact on the group and its ability to survive.[183] Trauma, poverty, food scarcity, forced displacement, loss of homes, land and cultural heritage – and settler-colonialism as an "enduring structure"[184] – are widely recognized determinants of individual and societal health.[185]

In settler-colonial contexts, land and its resources are particularly relevant. Land is intrinsic to both a people's right to self-determination and the settler-colonial project. An inherent conflict exists between the colonizers, who seek to acquire and control the land, and the Indigenous population, for whom the land is integral to their identity: "where they are is who they are".[186] Disconnection from land and cultural roots contributes to the erosion of identity and community resilience, resulting in physically destructive outcomes: poorer health, lower life expectancy and abnormally high suicide rates.[187] The issue of land is therefore indicative of how the settler-colonial project destroys – in order to replace – the Indigenous population.[188]

Consequently, components of conduct, such as repeated forced displacement, that result in the disconnection from the land, as well as the destruction of the cultural, educational and economic structures that tie a people to the land, must be considered "significant as indicative of the presence of a specific intent … inspiring [other genocidal] acts".[189] Forced displacement itself, together with aggravating factors – e.g. displacement into dangerous, squalid or toxic conditions – can constitute an underlying genocidal act.[190] The particular vulnerability of the group must also be considered.[191]

In short, intent to destroy has become established as the targeting of a group's existence such that "the group can no longer reconstitute itself".[192]

Genocidal intent in the context of State responsibility

Early identification of genocide is crucial to prevent genocide, ensuring that a central tenet of the post-Second World War international legal system is not a dead letter.

In assessing State responsibility for genocide – i.e. genocidal intent attributable to the State – ICJ has drawn heavily on the jurisprudence of international criminal tribunals.[193] While acknowledging that State responsibility can be established "without an individual being convicted of the crime",[194] in *Bosnia v. Serbia* in 2007, the Court found State genocidal intent only where individual perpetrators had been held criminally responsible. The Court established that, in the absence of direct evidence of State intent, the pattern of conduct must be such that it "could only point to the existence of such intent".[195] This approach was tempered in 2015, in *Croatia v. Serbia*, where the Court determined that "reasonableness" must be considered when inferring genocidal intent from patterns of conduct.[196]

However, further clarity is needed regarding genocidal intent in the context of State responsibility. State intent can be derived from the aggregate of individual perpetrators' genocidal intents, but States should not be exonerated simply because there are no individual criminal convictions, which, if they do occur, may come too late to prevent or stop genocide. While ICJ acknowledged that State obligations concerning genocide are "not of a criminal nature",[197] the standard of proof required to ground the responsibility of a State is a quasi-criminal standard. Among other things, this would delay or frustrate justice for victims.

Intervening in *The Gambia v. Myanmar*, currently before ICJ, six Western States argued that the "reasonableness criterion" requires a "balanced approach" so as not to make it "impossible" to determine genocidal intent "by way of inference"[198] in other words, urging the Court not to miss the forest for the trees. Otherwise, this risks protecting the State over the victims that the Convention is designed to protect.[199]

Three factors help achieve this balance:

(a) Applying the "only reasonable inference" test involves first filtering out other possible intents that could be inferred but are not reasonably supported by the evidence.[200] A balanced consideration of the interplay between motives and intent should determine whether motives "preclude such a specific intent" to destroy a people,[201] or whether they are consistent with, or even confirm, genocidal intent as the only reasonable inference;

(b) International law treats the State as a unit, not as separate organs.[202] This means that conduct and intent of the State must be considered holistically. A rule of law-regulated State must be viewed as a whole, including its Government, parliament and judiciary and their regulatory functions;

(c) Given the high threshold set for establishing genocidal intent, the failure to illuminate the totality of conduct invites the possibility of invisibilizing the crime itself behind the claimed strategies, policies and actions that are advanced by the wrongdoing State in order to obscure it.[203] Failure to recognize genocide in its totality may help create the camouflage that a State could employ to commit it.

"TOTALITY TRIPLE LENS": ISRAELI INTENT TOWARDS THE PALESTINIANS AS A GROUP AS SUCH

The current intent to destroy the people as such could not be more evident from Israeli conduct when viewed in its totality. In this section, the Special Rapporteur applies the framework set out above to the totality of conduct targeting the totality of Palestinians, in the totality of the occupied Palestinian territory ("totality triple lens"). She then analyses specific components of Israeli conduct: the broader context of the political project of Israel in the region; the nature of the destruction inflicted on the Palestinian people; and the motives obscuring the specific intent itself.

Totality of the land: "Greater Israel"

The ambition for a “Greater Israel” (*Eretz Yisrael*), consolidating Jewish sovereignty over the territory now comprising both Israel and the occupied Palestinian territory, has been a long-standing goal since the very inception of the Zionist project and before Israel existed.[204] The legally recognized right to self-determination of Palestinians being tied to that land,[205] together with their large presence, have represented both legal and demographic impediments to the realization of “Greater Israel”.

Successive Governments have pursued this goal, predicated on the erasure of the Indigenous Palestinian people.[206] Even after the Oslo Accords, which marked international support for a two-State solution, the plan was advanced.[207] Since then, Israeli colonies have increased from 128 to 358,[208] and settler numbers have grown from 256,400[209] to 714,600.[210] The 2018 Nation State Law asserted exclusive Jewish sovereignty over “Eretz Yisrael” and “Jewish settlement” in that area as a national priority.[211] On 28 December 2022, the current Government of Israel announced its plan to expand the colonies in the West Bank[212] and aggressively advanced substantial land confiscation and settlement expansion. In September 2023, before the General Assembly, Prime Minister Netanyahu exhibited a map of Israel erasing the occupied Palestinian territory and superimposing Israel.[213]

The cultivation of a political doctrine[214] that frames Palestinian assertions of self-determination as a security threat to Israel has served to legitimize permanent occupation.[215] The deliberate dehumanization of the Palestinians has accompanied systematic ethnic purges from the period 1947–1949 to today.[216] Ideological hatred of Palestinians as such has pervaded segments of society and the Israeli State apparatus.[217]

Meanwhile, despite the oppression, Palestinians refuse to leave the land, and in fact the population has grown. The increasing risk of a majority-Jewish State becoming unachievable has progressively made destruction an unavoidable part of the process.[218]

The events of 7 October provided the impetus to advance towards the goal of a “Greater Israel”. Calls for the displacement of Palestinians into the Arab world, amid conquest, colonization and annexation, grew.[219] The leaked Ministry of Intelligence of Israel “concept paper” from October

2023 outlining the expulsion of the entire Gaza population to Egypt,[220] alongside widespread and explicit support within the governing coalition,[221] identifies an opportunity to recolonize Gaza,[222] which the Government seized, taking advantage of the fog of war. In parallel in the West Bank, following 7 October, annexation and colony construction intensified.[223]

The State's intent to destroy, expressed in various statements and plans, and inferable from conduct considered in context, has gradually become more recognizable. This conduct had already, prior to 7 October, had the effect of "a cumulative, multilayered and intergenerational impact on the Palestinian society, economy and environment and [had caused] the deterioration of the living conditions of the Palestinians".[224]

The violence and trauma suffered by the Israelis on 7 October deepened collective animosity, and calls for annihilation grew.[225] In a manner reminiscent of other genocides, the ensuing vengeful atmosphere prepared the soldiers to become "willing executioners" of the heinous tasks required of them.[226] An opportunity presented itself to sever Palestinian connection to the land, with foreseeable consequences for their Palestinian existence,[227] as outlined below.

Totality of the group: destruction of the Palestinian people

Since 7 October 2023, the decimation of Palestinian human life has been swift and extensive. Amid mass killings, eradication of family lines, large-scale targeting of children and torture, the occupied Palestinian territory is being intentionally rendered unliveable – one home, school, church, mosque, hospital, neighbourhood, community, at a time. Spreading from Gaza to the West Bank, calculated destruction reveals a deliberate campaign of connected incidents, which must be considered cumulatively.

Israel has pursued a pattern of conduct "deliberately inflicting on the group conditions of life calculated to bring about its physical destruction",[228] as evidenced by the systematic destruction of already precarious life-sustaining healthcare, food security and Water, Sanitation and Hygiene for All (WASH) infrastructure. Although varying in intensity across the occupied territory, in Gaza this destructive violence has already

led to starvation, epidemics and forced displacement with no possibility of safe return – as expressly intended. The destruction of infrastructure across the occupied Palestinian territory imperils the long-term survival of the group. The deliberate degradation of public health is a technique of genocide "by attrition".[229] More than 500,000 children with no schooling and 88,000 students without universities[230] are doomed to dire outcomes.

For Palestinians, further layers of agony and forced displacement aggravate their inherited trauma and psychological vulnerability as Nakba survivors.[231] Months of relentless shunting of weakened humans from one unsafe area to another – fleeing bombs and bullets, with minimal chances of escape, amid loss, fear and grief, and with little access to shelter, clean water, food and healthcare – have inflicted incalculable harm, especially on children.[232] The movement of displaced Palestinians resembles the death marches of past genocides, and the Nakba. Forced displacement severs connection with the land, undermining food sovereignty and cultural belonging, and triggering further displacement.[233] Communal bonds are broken, the social fabric shredded, and reserves of resilience depleted. Systematic forced displacement contributes to "the destruction of the spirit, of the will to live, and of life itself".[234]

As was foreseeable, the overall conduct of Israel post-7 October has inflicted severe psychological harm on all Palestinians, both direct victims and those witnessing in exile. The overall aim is to humiliate and degrade Palestinians as a whole. Prisoners stripped and sadistically tortured en masse; bodies of adults and children piled up and decomposing in the street; survivors forced to eat animal food and grass and drink seawater or even sewage; the maiming of thousands, including young children left limbless before they could even crawl; the destruction of homes and violation of intimate life; having absolutely nothing to return to. Mass graves and the exhumation and relocation of bodies are specific acts of desecration, which themselves can suggest genocidal intent.[235] Combined, these acts go far beyond what international jurisprudence recognizes as "step[s] in the process of destruction of the … group".[236] The pain and loss will impact generations to come.[237]

Genocide could manifest in the targeting of members of the same group in different parts of their territory, through acts of varying intensity.[238] In the background, Palestinians inside Israel ("the enemies within") have also experienced suppression.[239] The relentless attacks against the United Nations, and, in particular, UNRWA, threaten the socioeconomic lifelines of millions of Palestinian refugees across the broader region, and cannot be ignored.

The destructive consequences of Israeli conduct reverberate well beyond the Gaza epicentre, as the same patterns of genocidal conduct have begun to appear in the West Bank. The only inference to be reasonably drawn from all this is of a clear intention to attack "the group's capacity to renew itself, and hence to ensure its long-term survival".[240]

Totality of the conduct: genocidal intent rationalized as self-defence

In the face of such wholesale destruction, the stated goals of Israel, accepted by some States, remain "to eradicate Hamas"[241] and "bring the hostages home".[242] Neither of these goals, or motives, preclude a finding of genocidal intent as the only reasonable inference to be drawn. Instead, both motives, together and disjunctively, substantiate the genocidal intent.

History reveals that:

(a) As recognized in the jurisprudence, genocide may occur in the context of armed conflict.[243] As Judge Trindade elaborated: "perpetrators of genocide will almost always allege that … their actions were taken 'pursuant to an ongoing military conflict'; yet, 'genocide may be a means for achieving military objectives just as readily as military conflict may be a means for instigating a genocidal plan';"[244]

(b) Different underlying motives do not displace genocidal intent.[245] As observed by Judge Bhandari, "genocidal *intent* may exist *simultaneously* with other, *ulterior motives*".[246] In international criminal jurisprudence, intent (the aim to achieve a criminal result: destruction of the group) is distinguished from motive (the reasons behind an action: hatred,[247] revenge/collective punishment,[248] personal

political agendas,[249] alleged threat[250]).[251] Although motive is usually irrelevant in criminal law,[252] it can reveal intent.[253]

Post-7 October, Israel has framed its military operations in Gaza as a war of self-defence[254] and counter-terrorism[255] against a terrorist group.[256] However, it is well established that Israel cannot legitimately invoke self-defence against the population under its occupation.[257] The occupying Power must protect, not target, the occupied people. In the context of Israel ignoring the ICJ directive to end the unlawful occupation, the aim to eradicate resistance contradicts the rights to self-determination and to resist an oppressive regime, protected by customary international law.[258] It also portrays the entire population as engaged in resistance and therefore eliminable. By continuing to suppress the right to self-determination,[259] Israel is replicating historical instances in which self-defence, counter-insurgency or counter-terrorism were used to justify destruction of the group, leading to genocide.[260]

With the dehumanization of Palestinians reaching a peak,[261] the world has become inured to the individual and collective toll of their devastation. In Gaza, Israel has targeted both military operatives and ordinary civilians, including from local governance structures and civil servants.[262] Expanding full-scale military operations to the West Bank further exposes an aim to target Palestinians beyond Hamas.

As the President of Israel, Isaac Herzog, announced, Israel has operated on the basis that “it is an entire nation out there that is responsible”.[263] The entire population – deemed “non-innocent” and “not uninvolved” by Israel – has been subject to indiscriminate and disproportionate attacks.[264] Scorched-earth tactics have spread terror among civilians, far exceeding the bounds of legitimate force. Continual, unproven attributions of Hamas affiliation and allegations of “human shielding” in almost every assault help disguise the systematic targeting of civilians, de facto erasing Palestinian civilian-ness altogether.[265] The resulting incommensurate losses sustained by Palestinians compared with Israeli losses,[266] viewed in the context of the

vastly superior Israeli military capabilities,[267] suggest an intent other than that claimed.[268]

The disturbing frequency and callousness of the killing of people known to be civilians are "emblematic of the systematic nature" of a destructive intent.[269] Six-year-old Hind Rajab, killed with 355 bullets after pleading for help for hours;[270] the fatal mauling by dogs of Muhammed Bhar, who had Down's Syndrome;[271] the execution of Atta Ibrahim Al-Muqaid, an older deaf man, in his home, later bragged about by his killer and other soldiers on social media;[272] the premature babies deliberately left to die a slow death and decompose in the intensive care unit at Al-Nasr Hospital;[273] the elderly man, Bashir Hajji, killed en route to southern Gaza after appearing in a propaganda photograph of a "safe corridor";[274] Abu al-Ola, the handcuffed hostage shot by a sniper after being sent into Nasser Hospital with evacuation orders.[275] When the dust settles on Gaza, the true extent of the horror experienced by Palestinians will become known.

The second stated goal of Israel is to rescue Israeli hostages.[276] This claim has been undermined by the harm caused by Israel to the hostages themselves: more have been killed by indiscriminate Israeli bombing or friendly fire than rescued.[277]

Sabotaging the ceasefire negotiations resulted in hostage deaths.[278] The words and conduct of Israeli high-ranking officials,[279] including Prime Minister Netanyahu, indicate that regaining and retaining control over Gaza's territory has overridden the release of hostages as a priority.[280]

UNDERSTANDING GENOCIDAL INTENT WITHIN A STATE

Accountability for genocide cannot be limited to criminal responsibility of individuals, who are to be judged in criminal trials with due process guarantees. It would be a tragic paradox if the rights of victims were subordinated to the guarantees afforded to alleged perpetrators and their Governments.[281] Furthermore, the responsibility of the State must be assessed in its own right. The moment one genocidal act occurs and the special intent manifests, this signals that genocide is taking place. This is

the moment to intervene – early intervention being the only way to prevent more atrocities that will scar human history.

State responsibility entails actions and omissions that lead to genocide.[282] Conduct attributable to the State includes executive, legislative, judicial or any other functions or actions carried out by State organs[283] and legal persons with government authority[284] (even *ultra vires* actions).[285] This includes military personnel and persons acting under instructions or control of a State,[286] or conduct acknowledged by the State as its own.[287] All such conduct should be assessed in its totality.

A State is obliged to prevent, to not commit and to punish genocide. According to ICJ, the State obligation to prevent genocide arises as soon as the State becomes aware, or should reasonably be aware, of a "serious risk of genocide",[288] and specifically on the emergence of a reasonable suspicion that genocidal intent has formed within the State apparatus. The State is obliged to investigate and prosecute those suspected of committing genocide and ancillary offences of direct and public incitement, attempt, aid and assist and conspiracy.[289] Knowing the risk of genocide, but failing to act to prevent or to take action to punish these preparatory acts, should be taken as indication of genocidal intent.[290]

In autocratic governance systems, checks and balances to curb genocidal conduct are likely either non-existent or non-functioning. Conversely, in a State that claims to have a rule of law system, the legislature, executive or judiciary should be able to curb excesses (generally crimes in and of themselves) that may escalate into genocide. All State organs understand their function as a check on the excesses of others – primarily the executive's. The failure of an apparent rule of law of State apparatus to fulfil those obligations, knowing what the consequences will be, must be seen as an integral part of the totality of conduct that should be assessed when determining State genocidal intent.

Acts or omissions of a State may contribute to "the opportunity to commit genocide", a circumstantial factor that ICJ has considered when assessing inferences to be drawn.[291] Jurisprudence also recognizes that "the

prevailing atmosphere of impunity"[292] and "the encouragement of the authorities" may increase the possibility of crimes leading to genocide.[293]

A conservative assessment would lead to the conclusion that, at a minimum, the orders of ICJ on 26 January 2024 should have triggered this duty to act. The Court had specifically instructed Israel to:[294]

- Refrain from further acts that may amount to genocide
- Prevent and punish genocidal incitement
- Allow humanitarian assistance
- Preserve evidence
- Submit a report to the Court detailing steps taken to implement the ruling within one month.

Instead, genocidal violence continued in Gaza with serious risk of expanding to the West Bank amid increasing genocidal incitement, as demonstrated in section III of the present report [The unfolding genocide as a "means to an end"]. No one has been investigated or prosecuted, let alone punished. Immediately after the Court issued provisional measures, Israel launched an unsubstantiated campaign against UNRWA, which jeopardized the fragile lifelines necessary for humanitarian assistance in Gaza.[295] The following examples offer a snapshot of how various arms of the State have participated in forming the State's intent:

(a) Statements made by the political-military leadership must be adjudicated as evidence of both direct intent and part of the totality of conduct from which intent is inferable. Direct orders at the highest levels of Israeli leadership, as meticulously documented by South Africa,[296] are the hallmark of the genocide in Gaza. These genocidal statements and incitements have continued unabated throughout the past year and echoed at all levels of the military structure. Relentless genocidal incitement by Israeli officials hastened the "normalization" of exterminatory violence;

(b) The members of the Security and War Cabinets of Israel, and other ministers, have issued such genocidal statements and used their ministerial responsibilities to implement their words, authorizing the various genocidal acts in Gaza, such as starvation, obstruction of humanitarian assistance and creation of conditions of life that would lead to destruction;[297]

(c) The Knesset has fully supported the Government and provided a platform for utterly dehumanizing debates concerning Palestinians. The Deputy Speaker declared on 8 October 2023, "Now we all have one common goal – erasing the Gaza Strip from the face of the Earth".[298] The Knesset has passed emergency laws,[299] amendments and repeated extensions to the *Detention of Unlawful Combatants Law*, thereby facilitating the imposition of even more deplorable conditions on Palestinian detainees;[300] condoned torture, including rape of Palestinian detainees (derogatively called "Nukhba"),[301] and approved budgets for military and colony expansion.[302] In July 2024, the Knesset voted against the two-State solution;[303]

(d) The Attorney General has failed to investigate and prosecute acts preparatory to and associated with genocide, such as war crimes, torture and starvation,[304] and to implement the provisional measures against genocidal incitement,[305] while pursuing those "inciting" support for Palestinian resistance.[306] This draws on and consolidates the long-standing environment of impunity recognized by ICJ;[307]

(e) The judiciary has failed to impose limitations on criminal conduct and administrative excesses, or enforce any accountability, in almost 12 months, effectively granting impunity to public officials, military personnel and settlers.[308] Courts dismissed a petition regarding Palestinian prison conditions[309] and rejected an appeal relating to media access to Gaza.[310]

Following the ICJ provisional measures order, the High Court did agree to hear a petition on humanitarian aid to Gaza in March 2024,[311] and others on torture and conditions of detention.[312] However, no persons or institutions have been held accountable;

(f) The role of the Israeli media in inciting this genocide, by helping to foster an unchecked genocidal climate, ought to be examined judicially – as has occurred in other contexts.[313] Compounding decades of dehumanization of the Palestinians,[314] the media have platformed proponents of genocide and debates legitimating their brutalization,[315] and have withheld the facts from the Israeli public. State actions have exacerbated the situation, including heavy military censorship,[316] the killing of 111 Palestinian journalists,[317] denial of entry to foreign journalists to Gaza and the forced closure of Al Jazeera's offices in Israel[318] and the West Bank.[319] Meanwhile, Israeli regulatory agencies have neither exercised their authority to revoke broadcast licences nor issued financial sanctions against those using or amplifying genocidal statements.[320]

(g) The State of Israel is predicated on the goal of Palestinian erasure; its entire political system is directed towards this goal. State structures have historically architected the oppression of Palestinians;[321] now its institutions, failing to function as a bulwark, are together advancing the course of the current catastrophe.

CONCLUSIONS

The Gaza genocide is a tragedy foretold, and one that risks expanding to other Palestinians under Israeli rule. Since its establishment, Israel has treated the occupied people as a hated encumbrance and threat to be eradicated, subjecting millions of Palestinians, for generations, to everyday indignities, mass killing, mass incarceration, forced displacement, racial segregation and apartheid. Advancing its goal of "Greater Israel" threatens to erase the Indigenous Palestinian population.

Obscured by false Israeli narratives of a war waged in "self-defence", the genocidal conduct of Israel must be viewed within a broader context, as numerous actions (totality of conduct) jointly targeting the Palestinians as such (totality of a people) across the entire territory where they reside (totality of the land), in furtherance of the political ambitions of Israel for

sovereignty over the whole of former Mandatory Palestine. Today, the genocide of the Palestinians appears to be the means to an end: the complete removal or eradication of Palestinians from the land so integral to their identity, and which is illegally and openly coveted by Israel.

Statements and actions by Israeli leaders reflect a genocidal intent and conduct; they have often used the Biblical story of Amalek to justify the extermination of “the Gazans”, erasing Gaza and violently displacing Palestinians, thereby casting Palestinians as a whole as legitimate targets.

Individuals clearly identifiable as perpetrators should be prosecuted. However, it is the entire State apparatus that has engineered, articulated and executed genocidal violence, through acts which in their totality may lead to the destruction of the Palestinian people. This must stop; urgent action is required to ensure the full application of the Genocide Convention and full protection of the Palestinians.

This ongoing genocide is doubtlessly the consequence of the exceptional status and protracted impunity that has been afforded to Israel. Israel has systematically and flagrantly violated international law, including Security Council resolutions and ICJ orders. This has emboldened the hubris of Israel and its defiance of international law. As the ICC Prosecutor has warned, “if we do not demonstrate our willingness to apply the law equally, if it is seen as applied selectively, we will be creating the conditions of its complete collapse. This is the true risk we face at this perilous moment.”

As the world watches the first live-streamed settler-colonial genocide, only justice can heal the wounds that political expedience has allowed to fester. The devastation of so many lives is an outrage to humanity and all that international law stands for.

RECOMMENDATIONS

The current genocide is part of a century-long project of eliminatory settler-colonialism in Palestine, a stain on the international system and humanity, which must be ended, investigated and prosecuted.

The Special Rapporteur reminds all States of their legal obligation to act on their due diligence duties given the clearly serious risk of continuous breach of the Genocide Convention and Geneva Conventions, and urges States to consider and reach an urgent public determination as to what levers and tools each State has at its disposal to ameliorate that risk, whether acting alone or with other States, including at the United Nations; and to explain to the public and the international community the steps which it has taken and why.

Whether in compliance with the above due diligence duties or otherwise, the Special Rapporteur urges Member States to:

(a) Use all their political leverage – commencing with a full arms embargo and sanctions – so that Israel stops the assault against the Palestinians, accepts a ceasefire and fully withdraws from the occupied Palestinian territory in line with the ICJ Advisory Opinion of 19 July 2024;
(b) Formally recognize Israel as an apartheid State and persistent violator of international law, reactivating the Special Committee Against Apartheid to comprehensively address the situation in Palestine, and warn Israel of possible suspension of its membership under Article 6 of the Charter of the United Nations;
(c) Support the deployment of an international protective presence throughout the occupied Palestinian territory;
(d) Develop a protective framework for Palestinians displaced outside Gaza, in line with international human rights and refugee law, while fully preserving their right to return;
(e) Support independent and thorough investigation(s) of criminal conduct, including genocide and apartheid, including through the application in national courts of universal jurisdiction over those suspected of such criminal conduct, including all relevant ancillary offences;
(f) Investigate and prosecute corporate entities and dual citizens involved in crimes in the occupied Palestinian territory, including soldiers, mercenaries and settlers;

(g) Ensure unhindered humanitarian assistance to Gaza and full financing and protection of UNRWA, including from attacks on its premises and personnel and from libellous smear campaigns, and ensure the continuity of its mandate in all fields.

The Special Rapporteur urges the ICC Prosecutor to investigate the commission of the crimes of genocide and apartheid by Israel, and investigate other prominent individuals mentioned in the present report.

The Special Rapporteur urges the Independent International Commission of Inquiry on the Occupied Palestinian Territory, including East Jerusalem, and Israel to investigate the broader context of eliminatory intent and practices of Israel against all Palestinians (triple lens test), including those with Israeli citizenship and the refugees, and recent acts of genocide.

3

From Economy of Occupation to Economy of Genocide

Francesca Albanese

INTRODUCTION

Colonial endeavours and associated genocides have historically been driven and enabled by the corporate sector.[1] Commercial interests have contributed to the dispossession of Indigenous people of their lands[2] – a mode of domination known as "colonial racial capitalism".[3] The same is true of Israeli colonization of Palestinian lands,[4] its expansion into the occupied Palestinian territory and its institutionalization of a regime of settler-colonial apartheid.[5] After denying Palestinian self-determination for decades, Israel is now imperilling the very existence of the Palestinian people in Palestine.

The role of corporate entities in sustaining the illegal Israeli occupation and its ongoing genocidal campaign in Gaza is the subject of the present investigative report, which is focused on how corporate interests underpin the Israeli settler-colonial twofold logic of displacement and replacement aimed at dispossessing and erasing Palestinians from their lands. The Special Rapporteur discusses corporate entities in various sectors: arms manufacturers, tech firms, building and construction companies, extractive and service industries, banks, pension funds, insurers, universities and charities. These entities enable the denial of self-determination and other structural violations in the occupied Palestinian territory, including occupation, annexation and crimes of apartheid and genocide, as well as a

long list of ancillary crimes and human rights violations, from discrimination, wanton destruction, forced displacement and pillage to extrajudicial killing and starvation.

Had proper human rights due diligence been undertaken, corporate entities would have long ago disengaged from Israeli occupation. Instead, post-October 2023, corporate actors have contributed to the acceleration of the displacement-replacement process throughout the military campaign that has pulverized Gaza and displaced the largest number of Palestinians in the West Bank since 1967.[6]

While it is impossible to fully capture the scale and extent of decades of corporate connivance in the exploitation of the occupied Palestinian territory, the present report exposes the integration of the economies of settler-colonial occupation and genocide. In it, the Special Rapporteur calls for accountability for corporate entities and their executives at both the domestic and international levels: commercial endeavours enabling and profiting from the obliteration of innocent people's lives must cease. Corporate entities must refuse to be complicit in human rights violations and international crimes or be held to account.

METHODOLOGY

"Corporate entities" in the present report refers to business enterprises, multinational corporations, for-profit and not-for-profit entities, whether private, public or State-owned.[7] Corporate responsibility applies regardless of the size, sector, operational context, ownership and structure of the entity.[8]

In the report, the Special Rapporteur builds on extensive literature, especially by civil society[9] and by the Working Group on the issue of human rights and transnational corporations and other business enterprises, on how Israel has created and maintained its own economy through the occupation, and a captive economy for the Palestinians.

The Special Rapporteur also builds upon, and situates within the broader matrix of the unlawful Israeli occupation, the database established

by the Office of the United Nations High Commissioner for Human Rights (OHCHR) pursuant to Human Rights Council resolutions 31/36 and 53/25. The OHCHR database lists only business enterprises that have "directly and indirectly enabled, facilitated and profited from the construction and growth of the settlements".[10]

The Special Rapporteur developed a database of approximately 1,000 corporate entities from the unprecedented number of submissions received – more than 200 – following her call for input when preparing the investigation.[11] This helped map how corporate entities worldwide have been implicated in human rights violations and international crimes in the occupied Palestinian territory. Over 45 entities named in the report have been duly informed of the facts that led the Special Rapporteur to formulate a series of allegations: 15 replied. The complex web of corporate structures – and the often obscured links between parents and subsidiaries, franchises, joint ventures, licencees etc. – implicates many more. The investigation behind the present report demonstrates the lengths to which corporations will go to conceal their complicity.[12]

The report is complemented by the attached annex, which provides an overview of the relevant legal framework.

LEGAL CONTEXT

The law governing corporate responsibility has deep roots in the historic relationship between violent dispossession and private power, and the legacy of corporate collusion with settler-colonialism and racial segregation.[13]

Early charter companies, granted broad State-like powers, gradually evolved into private "limited liability" corporations as intercolonial trade grew vital to European economies.[14] Colonial powers continued to rely on these relationships to outsource, obscure and avoid accountability for the dispossession and enslavement of Indigenous Peoples and the expropriation of their resources.[15] Corporations have not only inherited the benefits of this

legal veil of separation, but have also emerged as shapers of international law.[16]

Today, some corporate conglomerates exceed the gross domestic product (GDP) of entire sovereign States.[17] Sometimes wielding more power – political, economic and discursive – than States themselves, corporations enjoy increasing recognition as rights holders, with still insufficient corresponding obligations. The asymmetry of immense power without sufficiently justiciable accountability exposes a fundamental global governance gap.

Corporations and their home States – primarily global-minority States – continue to exploit structural inequalities rooted in colonial dispossession.[18] Meanwhile, weaker regulatory systems in formerly colonized States, and development and investment imperatives, mean corporations often evade accountability.[19]

Nevertheless, important precedents exist. The post-Holocaust industrialists' trials, such as the I.G. Farben trial, laid the groundwork for recognizing the international criminal responsibility of corporate executives for participation in international crimes.[20] By addressing corporate complicity in apartheid, the Truth and Reconciliation Commission of South Africa helped shape corporate responsibility for human rights violations.[21] Increasing domestic and international litigation signal a growing trend toward corporate accountability.[22]

The case of Palestine further tests international standards.

Today, the Guiding Principles on Business and Human Rights set out the normative framework for States' and corporate entities' compliance with international law. States have the primary obligation to prevent, investigate, punish and remedy human rights abuses by third parties, and may breach their obligations if they fail to do so. The Guiding Principles crystallize the human rights standards applicable to corporate conduct that apply regardless of whether States uphold their primary obligations. International humanitarian law and criminal law also confer specific obligations and liabilities on private actors,[23] with domestic jurisdictions primarily responsible for enforcement.

The Guiding Principles establish a continuum of responsibilities, depending on whether corporate entities cause, contribute to or are directly linked with adverse human rights impacts.[24] In conflicts, businesses must observe heightened human rights with due diligence to identify concerns and adjust their conduct.[25] The liability of corporate entities will be determined by their actions and by the human rights impact: due diligence is not sufficient to absolve corporations of liability.[26] At a minimum, corporate entities directly linked to human rights impacts must exercise leverage or consider termination of their activities or relationships. Failure to act accordingly may give rise to liability. Where violations constitute crimes, corporate executives and, increasingly, entities themselves, may be held accountable for their knowledge of and material contributions to crimes.[27]

In the occupied Palestinian territory, building on decades of documented human rights violations and crimes, recent judicial developments leave no room for doubt that corporate engagement with any component of the occupation is connected with violations of *jus cogens* norms and international crimes (see annex). Citing racial segregation and apartheid, violations of the right to self-determination and the prohibition on the use of force, the International Court of Justice unequivocally affirmed the illegality of the presence of Israel, including its military presence, colonies and its infrastructure and resource control.[28] Furthermore, the atrocities committed since October 2023 triggered proceedings for genocide before the International Court of Justice, and for war crimes and crimes against humanity before the International Criminal Court. The International Court of Justice has ordered Israel to stop creating life-destroying conditions,[29] and recently reminded States of their international obligations to avoid transferring arms that might be used to violate international conventions.[30]

These decisions place on corporate entities a prima facie responsibility to not engage and/or to withdraw totally and unconditionally from any associated dealings, and to ensure that any engagement with Palestinians enables their self-determination.

Where corporate entities continue their activities and relationships with Israel – with its economy, military and public and private sectors connected to the occupied Palestinian territory – they may be found to have knowingly contributed to:

(a) Violation of the Palestinian right to self-determination;
(b) Annexation of Palestinian territory, maintenance of an unlawful occupation and therefore the crime of aggression and associated human rights violations;
(c) Crimes of apartheid and genocide;
(d) Other ancillary crimes and violations.

Both criminal and civil laws in various jurisdictions can be invoked to hold corporate entities or their executives accountable for violations of human rights and/or crimes under international law.

FROM THE ECONOMY OF SETTLER-COLONIAL OCCUPATION TO THE ECONOMY OF GENOCIDE

Settler-colonialism involves extraction and profit from, and colonization of, land through the expulsion of its owners.[31] In Palestine, historically, companies have driven and enabled the process of displacement and replacement of the Arab population, foundational to the logic of settler-colonial erasure.[32] The Jewish National Fund, a land-purchasing corporate entity founded in 1901, helped plan and carry out the gradual removal of Arab Palestinians, which intensified with the Nakba[33] and has continued ever since.[34]

Increasingly aided by corporate entities, Israel has pursued Palestinian dispossession and *displacement*, especially after 1967.[35] The corporate sector has materially contributed to this endeavour by providing Israel with the weapons and machinery required to destroy homes, schools, hospitals, places of leisure and worship, livelihoods and productive assets, such as olive groves and orchards, to segregate and control communities and to restrict access to natural resources.[36] By helping to militarize and

incentivize illegal Israeli presence in the occupied Palestinian territory, the corporate sector has contributed to the creation of the conditions for Palestinian ethnic cleansing.[37]

Corporate entities have played a key role in stifling the Palestinian economy,[38] sustaining Israeli expansion in occupied land while facilitating the *replacement* of Palestinians. Draconian restrictions – on trade and investment, tree planting, fishing and water for colonies – have debilitated agriculture and industry,[39] and turned the occupied Palestinian territory into a captive market;[40] companies have profiteered by exploiting Palestinian labour and resources, degrading and diverting natural resources, building and powering colonies and selling and marketing derived goods and services in Israel, the occupied Palestinian territory and globally.[41] The Israeli-Palestinian Interim Agreement on the West Bank and the Gaza Strip(Oslo II Accords) entrenched this exploitation,[42] de facto institutionalizing the monopoly of Israel over 61 per cent of the resource-rich West Bank (Area C). Israel gains from this exploitation, while it costs the Palestinian economy at least 35 per cent of its GDP.[43]

Financial and academic institutions have also enabled the conditions for Palestinian displacement and replacement. Banks, asset management firms, pension funds and insurers have channelled finance into the illegal occupation. Universities – centres of intellectual growth and power – have sustained the political ideology underpinning the colonization of Palestinian land,[44] developed weaponry and overlooked or even endorsed systemic violence,[45] while global research collaborations have obscured Palestinian erasure behind a veil of academic neutrality.

After October 2023, long-standing systems of control, exploitation and dispossession metamorphosed into economic, technological and political infrastructures mobilized to inflict mass violence and immense destruction.[46] Entities that previously enabled and profited from Palestinian elimination and erasure within the economy of occupation, instead of disengaging are now involved in the economy of genocide.

The following sections illustrate how eight key sectors, operating separately and interdependently through the core pillars of the settler-

colonial economy of displacement and replacement, have adapted to its genocidal practices.

Displacement

Post-October 2023, weapons and military technologies used to advance Palestinian expulsion have become tools for mass killing and destruction, rendering Gaza and parts of the West Bank uninhabitable. Surveillance and incarceration technologies, ordinarily used to enforce segregation/apartheid, have evolved into tools for indiscriminate targeting of the Palestinian population. Heavy machinery previously used for house demolitions, infrastructure destruction and resource seizure in the West Bank have been repurposed to obliterate the urban landscape of Gaza, preventing displaced populations from returning and reconstituting as a community.

MILITARY SECTOR: THE BUSINESS OF ELIMINATION

Militarized violence created the State of Israel and remains the engine of its settler-colonial project.[47] Israeli and international weapons manufacturers have developed increasingly effective systems to drive Palestinians off their land. By collaborating and competing, they have refined technologies that enable Israel to intensify oppression, repression and destruction.[48]

Prolonged occupation and repeated military campaigns have provided testing grounds for cutting-edge military capabilities: air defence platforms, drones, targeting tools powered by artificial intelligence and even the F-35 programme led by the United States of America. These technologies are then marketed as “battle-proven”.[49]

The military-industrial complex has become the economic backbone of the State.[50] Between 2020 and 2024, Israel was the eighth largest arms exporter worldwide.[51] The two most prominent Israeli weapons companies – Elbit Systems, established as a public-private partnership and later privatized, and State-owned Israel Aerospace Industries – are among the top 50 arms manufacturers globally.[52] Since 2023, Elbit Systems has cooperated closely on Israeli military operations,[53] embedding key staff in the Ministry

of Defense,[54] and was awarded the 2024 Israeli Defense Prize. Elbit Systems and Israel Aerospace Industries provide a critical domestic supply of weaponry,[55] and reinforce Israeli military alliances through arms exports[56] and joint development of military technology.

International partnerships providing weaponry and technical support have enhanced Israeli capacity to perpetuate apartheid and, recently, to sustain its assault on Gaza. Israel benefits from the largest-ever defence procurement programme – for the F-35 fighter jet,[57] led by United States-based Lockheed Martin,[58] alongside at least 1,650 other companies, including Italian manufacturer Leonardo S.p.A,[59] and eight States. Components and parts constructed globally contribute to the Israeli F-35 fleet, which Israel customizes and maintains in partnership with Lockheed Martin and domestic companies.[60] Israel was the first to fly the F-35 in combat, in 2018, and to use it in "beast mode", in 2025.[61] Lockheed Martin F-35 and F-16 fighter jets, pivotal to the Israeli air force,[62] have significant carrying and fire capacity, including GBU-31 joint direct attack munition (JDAM) and unguided MK-84s 2000-pound bombs; an F-35 can carry over 18,000 pounds of bombs.[63] Post-October 2023, F-35s and F-16s have been integral to equipping Israel with the unprecedented aerial power to drop an estimated 85,000 tons of bombs,[64] much of it unguided,[65] to kill and injure more than 179,411 Palestinians[66] and obliterate Gaza.[67]

Drones, hexacopters and quadcopters have also been omnipresent killing machines in the skies of Gaza.[68] Drones largely developed and supplied by Elbit Systems and Israel Aerospace Industries have long flown alongside fighter jets, surveilling Palestinians and delivering target intelligence.[69] In the past two decades, with support from these companies and collaborations with institutions such as the Massachusetts Institute of Technology,[70] drones used by Israel acquired automated weapons systems and the ability to fly in swarm formation.[71]

To supply Israel with these weapons and facilitate arms export and import transactions, manufacturers depend on a web of intermediaries, including legal, auditing and consulting firms, as well as arms dealers, agents and brokers.[72] Suppliers such as the Japanese FANUC Corporation

provide robotic machinery for weapons production lines, including for Israel Aerospace Industries, Elbit Systems and Lockheed Martin.[73] Shipping companies such as the Danish A.P. Moller – Maersk A/S transport components, parts, weapons and raw materials, sustaining a steady flow of United States-supplied military equipment post-October 2023.[74]

For Israeli companies such as Elbit Systems and Israel Aerospace Industries, the ongoing genocide has been a profitable venture. The 65 per cent surge in Israeli military spending from 2023 to 2024 – amounting to $46.5 billion,[75] one of the highest per capita worldwide – generated a sharp surge in their annual profits.[76] Foreign arms companies, especially producers of munitions and ordnance, also profit.[77]

SURVEILLANCE AND CARCERALITY: THE DARK SIDE OF THE "START-UP NATION"

Repression of Palestinians has become progressively automated, with tech companies providing dual-use[78] infrastructure to integrate mass data collection and surveillance, while profiting from the unique testing ground for military technology offered by the occupied Palestinian territory.[79] Fuelled by United States tech giants establishing subsidiaries and research and development centres in Israel,[80] claims by Israel of security needs have spurred unparalleled developments in carceral and surveillance services, from closed-circuit television (CCTV) networks, biometric surveillance, advanced tech checkpoint networks, "smart walls" and drone surveillance to cloud computing, artificial intelligence and data analytics supporting on-the-ground military personnel.[81]

Israeli tech firms often grow out of military infrastructure and strategy,[82] as the NSO Group, founded by ex-Unit 8200 members, did.[83] Its Pegasus spyware, designed for covert smartphone surveillance, has been used against Palestinian activists[84] and licensed globally to target leaders, journalists and human rights defenders.[85] Exported under the Defense Export Control Law, NSO Group surveillance technology enables "spyware diplomacy" while reinforcing State impunity.[86]

IBM has operated in Israel since 1972, training military and intelligence personnel – especially from Unit 8200 – for the technology sector and start-up scene.[87] Since 2019, IBM Israel has operated and upgraded the central database of the Population and Immigration Authority,[88] enabling collection, storage and governmental use of biometric data on Palestinians, and supporting the discriminatory permit regime of Israel.[89] Before IBM, Hewlett Packard Enterprises (HPE) maintained the database and its Israeli subsidiary is still providing servers.[90] Hewlett Packard (HP) has long enabled the apartheid systems of Israel, supplying technology to the Coordination of Government Activities in the Territories (COGAT), the prison service and police.[91] Since the 2015 split of the company into Hewlett Packard Enterprises and HP Inc., opaque business structures have obscured the roles of their seven remaining Israeli subsidiaries.[92]

Microsoft has been active in Israel[93] since 1991, developing its largest centre outside the United States. Its technologies are embedded in the prison service, police, universities and schools – including in colonies.[94] Microsoft has been integrating its systems and civilian tech across the Israeli military[95] since 2003, while acquiring Israeli cybersecurity and surveillance start-ups.[96]

As Israeli apartheid, military and population-control systems generate increasing volumes of data, its reliance on cloud storage and computing has grown. In 2021, Israel awarded Alphabet Inc. (Google) and Amazon.com, Inc. a $1.2 billion contract (Project Nimbus)[97] – largely funded through Ministry of Defense expenditure[98] – to provide core tech infrastructure.

Microsoft, Alphabet and Amazon grant Israel virtually government-wide access to their cloud and artificial intelligence technologies, enhancing data processing, decision-making and surveillance and analysis capacities.[99] In October 2023, when the Israeli internal military cloud overloaded,[100] Microsoft, with its Azure platform, and the Project Nimbus consortium stepped in with critical cloud and artificial intelligence infrastructure.[101] Their Israel-located servers ensure data sovereignty and a shield from accountability,[102] under favourable contracts offering minimal restrictions or

oversight.[103] In July 2024, an Israeli colonel described cloud tech as a weapon in every sense of the word, citing these companies.[104]

The Israeli military has developed artificial intelligence systems, such as “Lavender”, “Gospel” and “Where’s Daddy?” to process data and generate lists of targets,[105] reshaping modern warfare and illustrating the dual-use nature of artificial intelligence. Palantir Technologies Inc., whose tech collaboration with Israel long predates October 2023, expanded its support to the Israeli military post-October 2023.[106] There are reasonable grounds to believe Palantir has provided automatic predictive policing technology, core defence infrastructure for rapid and scaled-up construction and deployment of military software, and its Artificial Intelligence Platform, which allows real-time battlefield data integration for automated decision-making.[107] In January 2024, Palantir announced a new strategic partnership with Israel and held a board meeting in Tel Aviv “in solidarity”;[108] in April 2025, Palantir’s Chief Executive Officer responded to accusations that Palantir had killed Palestinians in Gaza by saying, “mostly terrorists, that’s true”.[109] Both incidents are indicative of executive-level knowledge and purpose vis-à-vis the unlawful use of force by Israel, and failure to prevent such acts or withdraw involvement.[110]

Israel as the “start-up nation”, incentivized by the post-9/11 global securitization boom, has received a significant boost through the genocide. It ranked first globally for the number of start-ups per capita, with a 143 per cent growth in military tech start-ups in 2024, and with technology comprising 64 per cent of Israeli exports throughout the genocide.[111]

CIVILIAN GUISE: HEAVY MACHINERY IN SERVICE OF SETTLER-COLONIAL DESTRUCTION

Civilian technologies have long served as dual-use tools of settler-colonial occupation.[112] Israeli military operations rely heavily on equipment from leading global manufacturers to “unground” Palestinians from their land,[113] demolishing homes, public buildings, farmland, roads and other vital infrastructure. Since October 2023, this machinery has been integral to

damaging and destroying 70 per cent of structures and 81 per cent of cropland in Gaza.[114]

For decades, Caterpillar Inc.[115] has provided Israel with equipment used to demolish Palestinian homes and infrastructure,[116] through both the United States Foreign Military Financing programme[117] and an exclusive licensee requisitioned by Israeli law into the military.[118] In partnership with companies such as Israel Aerospace Industries,[119] Elbit Systems[120] and Leonardo DRS, Inc.-owned RADA Electronic Industries,[121] Israel has evolved Caterpillar's D9 bulldozer into automated, remote-commanded core weaponry of the military,[122] deployed in almost every military activity since 2000, clearing incursion lines, "neutralizing" the territory and killing Palestinians.[123] Since October 2023, Caterpillar equipment has been documented as being used to carry out mass demolitions[124] – including of homes,[125] mosques[126] and life-sustaining infrastructure[127] – raid hospitals[128] and burying alive wounded Palestinians.[129] In 2025, Caterpillar secured a further multi-million dollar contract with Israel.[130]

The Korean HD Hyundai[131] and its partially owned subsidiary, Doosan,[132] alongside the Swedish Volvo Group[133] and other major heavy machinery manufacturers, have long been linked to the destruction of Palestinian property, each supplying equipment through exclusively licensed Israeli dealers.[134] Volvo's licensee is an OHCHR database-listed company and together they own Merkavim Transportation Technologies Ltd., which produces armoured buses sold to service colonies.[135] Since at least 2007, Volvo machinery has been used to raze Palestinian areas, including in East Jerusalem[136] and Masafer Yatta.[137] For over a decade, HD Hyundai machinery has been used to demolish Palestinian homes[138] and raze farmland, including olive groves.[139] After October 2023, Israel increased the use of the equipment of those companies in the urban destruction of Gaza,[140] including in flattening Rafah[141] and Jabalia,[142] after which the military obscured their logos.[143]

These companies have continued supplying the Israeli market despite abundant evidence of the criminal use of this machinery by Israel and

repeated calls from human rights groups to sever ties.[144] Passive suppliers become deliberate contributors to a system of displacement.

Replacement

As corporate actors have contributed to the destruction of Palestinian life in the occupied Palestinian territory, they have also helped the construction of what replaces it: building colonies and their infrastructure, extracting and trading materials, energy and agricultural products, and bringing visitors to colonies as if to a regular holiday destination. Post-October 2023, these activities have sustained unprecedented growth in the settlement enterprise, with corporate entities continuing to power and profit from the creation of conditions of life calculated to destroy the Palestinian population, including through the near-total cutting off of water, electricity and fuel.

CONSTRUCTION: HOME ON STOLEN LAND

More than 371 colonies and illegal outposts have been built, powered and traded with by companies facilitating the replacement by Israel of the Indigenous population in the occupied Palestinian territory.[145] In 2024, this intensified after the administration of colonies moved from the military to the civilian Government and the Ministry of Construction and Housing budget doubled, with $200 million allotted for colony construction.[146] From November 2023 to October 2024, Israel established 57 new colonies and outposts,[147] with Israeli and international companies supplying machinery, raw materials and logistical support.

Caterpillar, HD Hyundai and Volvo excavators and heavy equipment have been used in the construction of illegal colonies for at least 10 years.[148] The German Heidelberg Materials AG,[149] through its subsidiary Hanson Israel, has contributed to the pillage of millions of tons of dolomite rock from the Nahal Raba quarry on land seized from Palestinian villages in the West Bank.[150] In 2018, Hanson Israel won a public tender to supply materials from that quarry for colony construction,[151] and has since nearly exhausted the quarry, prompting ongoing expansion requests.[152]

Various companies contributed to developing roads and public transport infrastructure critical to establishing and expanding the colonies, and connecting them to Israel while excluding and segregating Palestinians.[153] The Spanish/Basque Construcciones Auxiliar de Ferrocarriles[154] joined a consortium with a OHCHR database-listed company to maintain and expand the Jerusalem Light Rail Red Line and build the new Green Line,[155] at a time when other companies had withdrawn owing to international pressure.[156] These lines include 27 kilometres of new tracks and 50 new stations in the West Bank, connecting colonies with West Jerusalem.[157] Doosan and Volvo excavators and machinery have been used,[158] and Heidelberg's subsidiary supplied materials for a light-rail bridge.[159]

Real estate companies sell properties in colonies to Israeli and international buyers. The global real estate group, Keller Williams Realty LLC, through its Israeli franchisee KW Israel,[160] has had branches based in the colonies.[161] In March 2024, Keller Williams, through another franchisee, Home in Israel,[162] ran a real estate roadshow in Canada and the United States,[163] jointly sponsored with several companies developing and marketing thousands of apartments in colonies.[164]

THE GRIP ON NATURAL RESOURCES: THE INCUBATOR OF CONDITIONS OF LIFE CALCULATED TO DESTROY

Since 1967, Israel has exercised systematic control over Palestinian natural resources, building infrastructure that integrated its colonies into Israeli national systems and entrenched Palestinian dependency on them.

When Israeli Defense Minister Yoav Gallant ordered a "complete siege" on Gaza on 9 October 2023, instantly cutting off water, electricity and fuel,[165] this engineered dependency – designed to displace and control life – was operationalized for genocide. Those supplies have never been fully restored, contributing to the deliberate creation of conditions of life calculated to bring about the destruction of Palestinians as a group.[166] This is also why the grip on resources in the West Bank – tightened after October

2023 – cannot be viewed in isolation from the destruction unfolding in Gaza.[167]

Water

Israel forces Palestinians to purchase water sourced from two major aquifers in their own territory, at inflated prices and with intermittent supply.[168] The Israeli national water company Mekorot has a water monopoly in the occupied Palestinian territory.[169] In Gaza, more than 97 per cent of water from the coastal aquifer does not meet the water quality standards of the World Health Organization, making residents dependent on Mekorot pipelines for most of their drinking water.[170] For at least the first six months post-October 2023, Mekorot ran its Gaza pipelines at 22 per cent capacity, leaving areas such as Gaza City without water 95 per cent of the time,[171] actively aiding the transformation of water into a tool of genocide.[172]

Electricity, gas and fuel

International energy companies have fuelled the energy-intensive Israeli genocide. Reliant on fuel and coal imports,[173] Israel maintains an integrated energy infrastructure serving both Israel and the occupied Palestinian territory, seamlessly powering illegal settlers while controlling and obstructing Palestinian access.[174] Gaza's power plant provided just 10 to 20 per cent of Gaza's electricity needs, leaving it heavily reliant on fuel for generators and 10 Israeli supply lines.[175] Since October 2023, Israel has cut energy to most of Gaza.[176] Without electricity or fuel, most water pumps,[177] hospitals[178] and transport reached the brink of total collapse;[179] collapsed sanitation systems have contributed to a resurgence in polio;[180] and vital desalination plants were forced to shut down.[181]

Coal for electricity to Israel originates primarily from Colombia (60 per cent of Israeli coal imports in 2023–24);[182] United States-headquartered Drummond Company, Inc. and the Swiss-based Glencore PLC are the primary suppliers. Their respective subsidiaries[183] own the mines and the three ports involved in the delivery of 15 coal shipments to Israel since

October 2023, including six shipments after Colombia suspended coal exports to Israel in August 2024.[184] Glencore was also involved in shipments from South Africa;[185] these shipments accounted for 15 per cent of Israeli coal imports in 2023 and 2024.[186]

The United States Chevron Corporation, in consortium with Israeli NewMed Energy (a subsidiary of the OHCHR database-listed Delek Group), extracts natural gas from the Leviathan and Tamar fields;[187] it paid the Government of Israel $453 million in royalties and taxes in 2023.[188] Chevron's consortium supplies more than 70 per cent of Israeli energy consumption.[189] Chevron also profits from its part-ownership of the East Mediterranean Gas pipeline,[190] which passes through Palestinian maritime territory, and from gas export sales to Egypt and Jordan.[191] The Gaza naval blockade is connected to Israel securing the Tamar gas supply and the East Mediterranean Gas pipeline.[192] At a time of increasing brutality, the British company BP PLC is expanding involvement in the Israeli economy, with exploration licences confirmed in March 2025, which allow BP to explore Palestinian maritime expanses illegally exploited by Israel.[193]

BP and Chevron are also the largest contributors to Israeli imports of crude oil, as major owners of the strategic Azeri Baku-Tbilisi-Ceyhan pipeline[194] and the Kazakh Caspian Pipeline Consortium,[195] respectively, and of their associated oil fields.[196] Each conglomerate effectively supplied 8 per cent of Israeli crude oil between October 2023 and July 2024,[197] supplemented by crude oil shipments from Brazilian oil fields, in which Petrobras holds the largest stakes,[198] and military jet fuel.[199] Oil from these companies supplies two refineries in Israel. From the Haifa refinery, two OHCHR database-listed companies supply their petrol stations throughout Israel and the occupied Palestinian territory, including the colonies,[200] and the military, through government-awarded contracts.[201] From Ashdod refinery, a subsidiary of the OHCHR database-listed company Paz Retail and Energy Ltd. provides jet fuel to the Israeli Air Force[202] operating in Gaza.

By supplying Israel with coal, gas, oil and fuel, companies are contributing to civilian infrastructures that Israel uses to entrench

permanent annexation and now weaponizes in the destruction of Palestinian life in Gaza.[203] The same infrastructure that these companies supply resources into has serviced the Israeli military and its energy-intensive tech-driven obliteration of Gaza. The ostensibly civilian nature of such infrastructure does not exonerate a company from responsibility.[204]

TRADING THE FRUITS OF ILLEGALITY

Agribusiness

Agribusiness has thrived on Israel-led extractivism and land-grabbing – producing goods and technologies serving Israeli settler-colonial interests, expanding market dominance and attracting global investment – while erasing Palestinian food systems and accelerating displacement.[205]

Tnuva, the largest food conglomerate in Israel, now majority-owned by the Chinese Bright Food (Group) Co., Ltd.,[206] has fuelled and benefited from land dispossession. Tnuva's Chairman recognized that "agriculture … in general and dairy farming in particular are a strategic resource and a significant pillar in the settlement enterprise".[207] Israel has used kibbutzim and agricultural outposts to seize Palestinian land and replace Palestinians.[208] Companies like Tnuva help by sourcing products from these colonies,[209] then exploit the resulting captive Palestinian market[210] to build market dominance.[211] Palestinian dependence on the Israeli dairy industry has increased 160 per cent in the decade following destruction caused by Israel to Gaza's dairy industry in 2014, amounting to sector losses estimated at $43 million.[212] Tnuva has absorbed the loss of the Gaza market,[213] failing to use its substantial leverage to influence the situation.

Netafim, a global leader in drip irrigation technology, now 80 per cent owned by the Mexican company Orbia Advance Corporation,[214] has designed its agritech in concert with the expansion imperatives of Israel.[215] While maintaining a global image of sustainability,[216] Netafim technology has enabled intensive exploitation of water and land in the West Bank,[217] further depleting Palestinian natural resources, while being refined through collaboration with Israeli military-technology firms.[218] In the Jordan Valley,

Netafimaided irrigation systems have facilitated Israeli crop expansion,[219] while Palestinian farmers – denied water[220] and with 93 per cent unirrigated land[221]– are pushed out, unable to compete with Israeli production.[222] Furthermore, such irrigation techniques threaten to exhaust the Jordan River and Dead Sea.[223] Companies such as Tnuva and Netafim continue to manufacture food security for Israelis,[224] while the food system to which they belong causes food insecurity – and even famine – for others. Netafim brands itself as a sustainable innovator, while perfecting age-old techniques of colonial exploitation.

Global retail

Israeli products, including those from colonies, flood global markets through major retailers,[225] often with no scrutiny. To dodge growing backlash, companies mask origin through misleading labels, barcodes and supply-chain mixing,[226] effectively making occupation shelf-ready.

Global logistics giants like A.P. Moller – Maersk A/S are integral to this ecosystem; for years they have shipped goods from the colonies and OHCHR database-listed companies straight to the United States[227] and other markets.[228]

In many countries, no distinction is made between products from Israel and those from its colonies. Even in the European Union, where labelling is required,[229] these goods are still allowed on the market,[230] and the responsibility is put on uninformed consumers. Given the illegality of the colonies under international law, these products should not be traded at all.

Supermarket chains,[231] including any listed in the OHCHR database, and e-commerce platforms such as Amazon.com[232] operate directly in colonies, sustaining their economy, enabling expansion and participating in apartheid through discriminatory service delivery.

Occupation tourism

Major online travel platforms, used by millions to reserve accommodation, profit from the occupation by selling tourism that sustains the colonies,

excludes Palestinians, promotes settler narratives and legitimizes annexation.

Booking Holdings Inc. and Airbnb, Inc. list properties and hotel rooms in Israeli colonies. Booking.com has more than doubled its listings in the West Bank – from 26 in 2018[233] to 70 by May 2023[234] – and tripled its East Jerusalem listings to 39 in the year post-October 2023.[235] Airbnb has also amplified its colonial profiteering, growing from 139 listings in 2016[236] to 350 in 2083[237] collecting up to 23 per cent commission.[238] These listings are linked with restricting Palestinian access to land and endangering nearby villages.[239] In Tekoa, Airbnb enables settler promotion of a "warm and loving community",[240] whitewashing settler violence against the neighbouring Palestinian village of Tuqu'.[241]

Booking.com and Airbnb have been in the OHCHR database since 2020. Booking.com may label properties as "Palestinian territory, Israeli settlement", but it continues to profit from the colonies and faces criminal complaints in the Kingdom of the Netherlands for laundering proceeds.[242] Airbnb briefly delisted illegal colony properties in 2018[243] but reversed course under pressure,[244] now donating profits to "humanitarian" causes and converting colonial profiteering into humanitarian-washing.[245]

Enablers

A list of enablers – financial, research, legal, consulting, media and advertising firms[246] – long involved in sustaining the settler-colonial occupation through knowledge, narratives, skills and investment, have continued to support, profit from and normalize an economy operating in genocidal mode. The present section is focused just on two key enablers: the financial and academic sectors.

FINANCING THE VIOLATIONS

The financial sector channels critical funding to both State and corporate actors behind the Israeli occupation and apartheid, despite many companies

in the sector committing to the Principles for Responsible Investment[247] and the United Nations Global Compact.[248]

As the main source of finance for the Israeli State budget, treasury bonds have played a critical role in funding the ongoing assault on Gaza. From 2022 to 2024, the Israeli military budget grew from 4.2 per cent to 8.3 per cent of GDP, driving the public budget into a 6.8 per cent deficit.[249] Israel funded this ballooning budget by increasing its bond issuance, including $8 billion in March 2024[250] and $5 billion in February 2025,[251] alongside issuances on its domestic new shekel market.[252] Some of the world's largest banks, including BNP Paribas[253] and Barclays,[254] stepped in to boost market confidence by underwriting these international and domestic treasury bonds, allowing Israel to contain the interest rate premium, despite a credit downgrade.[255] Asset management firms – including Blackrock ($68 million), Vanguard ($546 million) and Allianz's asset management subsidiary PIMCO ($960 million)[256] – were among at least 400 investors from 36 countries who purchased them.[257] Meanwhile, the Development Corporation for Israel (i.e., Israel Bonds)[258] provides a bond solicitation service for the Government of Israel for overseas private individuals and other investors.[259] The Development Corporation for Israel tripled its annual bond sales to funnel nearly $5 billion to Israel since October 2023,[260] while offering investors the option of sending the return on bond investments to charitable organizations supporting the Israeli military[261] and the colonies.[262]

These financial entities channel billions of dollars into treasury bonds and companies directly involved in Israeli occupation and genocide. Blackrock (and its subsidiary, iShares[263]) and Vanguard are among the largest institutional investors in many companies, holding these shares for distribution among their indexes of mutual funds and electronically traded funds (ETFs). Blackrock is the second largest institutional investor in Palantir (8.6 per cent), Microsoft (7.8 per cent), Amazon.com (6.6 per cent), Alphabet (6.6 per cent) and IBM (8.6 per cent), and third largest in Lockheed Martin (7.2 per cent) and Caterpillar (7.5 per cent); Vanguard is the largest institutional investor in Caterpillar (9.8 per cent), Chevron (8.9

per cent) and Palantir (9.1 per cent), and second largest in Lockheed Martin (9.2 per cent) and Elbit Systems (2.0 per cent).[264] Through their asset management, they implicate universities, pension funds and ordinary people who passively invest their savings through the purchase of their funds and electronically traded funds.[265] For their investment decisions, these companies often rely on benchmark indices, such as FTSE All-World ex-US, J.P. Morgan $ EM Corp Bond UCITS and MSCI ACWI UCITS,[266] which are developed by financial services firms.

Global insurance companies, including Allianz and AXA, also invest large sums in shares and bonds implicated in the occupation and genocide, partly as capital reserves for policyholder claims and regulatory requirements, but primarily to generate returns. Allianz holds at least $7.3 billion[267] and AXA, despite some divestment decisions,[268] still invests at least $4.09 billion[269] in tracked companies named in the present report. Their insurance policies also underwrite the risks other companies necessarily take when operating in Israel and the occupied Palestinian territory, thus enabling the commission of human rights abuses[270] and "de-risking" the operational environment.[271]

Sovereign wealth and pension funds are also significant financiers. The world's largest sovereign wealth fund, the Norwegian Government Pension Fund, claims it has the world's most comprehensive ethical guidelines.[272] After October 2023, the Fund increased its investment in Israeli companies by 32 per cent to $1.9 billion. By the end of 2024, the Fund had $121.5 billion – 6.9 per cent of its total value – invested in companies named in the present report alone.[273] The Caisse de dépôt et placement du Québec, which manages Can$473.3 billion ($328.9 billion)[274] in pension funds for six million Canadians, has almost Can$9.6 billion ($6.67 billion) invested in companies named in the present report,[275] despite its sustainable investment policy and human rights policy.[276] From 2023 to 2024, it almost tripled investment in Lockheed Martin, quadrupled investment in Caterpillar and increased 10-fold the investment in HD Hyundai.[277]

The financial sector also allows companies to access funds through loans and by underwriting their debt so they can sell it on the private bond

market. From 2021 to 2023, BNP Paribas was a top European financier of the weapons industry supplying Israel, providing $410 million in loans to Leonardo, among others,[278] alongside $5.2 billion in loans and underwriting for OHCHR database-listed companies.[279] Similarly, in 2024, Barclays provided $2 billion in loans and underwriting to OHCHR database-listed companies,[280] $862 million to Lockheed Martin and $228 million to Leonardo.[281]

This direct investment is buttressed by the choice of financial advisory companies and responsible investment associations to not consider human rights violations in the occupied Palestinian territory in their assessment of environmental, social and governance (ESG) investing.[282] This allows responsible/ethical investment funds to remain environmental, social and governance compliant despite investing in Israeli government bonds and in shares of companies involved in violations in the occupied Palestinian territory.[283]

This entire environment has facilitated a record 179 per cent increase in United States dollar-equivalent equity prices of the companies listed in the Tel Aviv stock exchange since the start of the assault on Gaza, translating into a $157.9 billion gain.[284]

Faith-based charities have also become key financial enablers of illegal projects, including in the occupied Palestinian territory, often receiving tax deductions abroad despite strict regulatory charitable frameworks.[285] The Jewish National Fund (KKL-JNF) and its over 20 affiliates fund settler expansion and military-linked projects.[286] Since October 2023, platforms such as Israel Gives have enabled tax-deductible crowdfunding in 32 countries for Israeli military units and settlers.[287] The United States-based Christian Friends of Israeli Communiti32[288] Dutch Christians for Israel[289] and global affiliates,[290] sent over $12.25 million in 2023[291] to various projects that support colonies, including some that train extremist settlers.[292]

KNOWLEDGE PRODUCTION AND VIOLATION LEGITIMIZATION

In Israel, universities – particularly law schools,[293] archaeology[294] and Middle Eastern studies departments[295] – contribute to the ideological scaffolding of apartheid, cultivating State-aligned narratives,[296] erasing Palestinian history and justifying occupation practices.[297] Meanwhile, science and technology departments serve as research and development hubs for collaborations between the Israeli military and arms contractors, including Elbit Systems, Israel Aerospace Industries, IBM and Lockheed Martin, and so contribute to producing the tools for surveillance, crowd control, urban warfare, facial recognition and targeted killing' tools that are effectively tested on Palestinians.[298]

Leading universities, especially from global-minority countries, partner with Israeli institutions in areas directly harming Palestinians. At the Massachusetts Institute of Technology, labs conduct weapons and surveillance research funded by the Israeli Ministry of Defense – the only foreign military financing research at the Institute.[299] Notable Israeli Ministry of Defense projects include drone swarm control[300] – a distinct feature of the Israeli assault on Gaza since October 2023 – pursuit algorithms[301] and underwater surveillance.[302] From 2019 to 2024, the Institute managed a Lockheed Martin seed fund connecting students to teams in Israel.[303] From 2017 to 2025, Elbit Systems paid for membership to the Institute's Industrial Liaison Program, enabling access to research and talent.[304]

The European Commission's Horizon Europe programme actively facilitates collaboration with Israeli institutions, including those complicit in apartheid and genocide. Since 2014, the European Commission has granted over €2.12 billion ($2.4 billion) to Israeli entities,[305] including the Ministry of Defense,[306] while European academic institutions both benefit from and reinforce this entanglement. The Technical University of Munich receives €198.5 million ($218 million) in EC Horizon funding,[307] including €11.47 million ($12.6 million) for 22 collaborations with Israeli partners, military and tech firms.[308] The University and Israel Aerospace Industries receive €792,795.75 ($868,416) to jointly develop, with other participants, green hydrogen refuelling,[309] technology relevant to Israel Aerospace

Industries military drones used in Gaza.[310] The University partners with IBM Israel – which runs the discriminatory Israeli Population Registry – on cloud and artificial intelligence systems, as part of the €7.75 million ($8.52 million) IBM Israel receives in Horizon funding.[311] The University also collaborates on a €10.76 million ($11.71 million) project on "seamless shared urban mobility" that includes the Municipality of Jerusalem,[312] a city entrenching annexation through urban transportation. It is impossible to disentangle the expertise that Israeli partners contribute to these partnerships from that gained and used in violations to which they are connected.

Many universities have upheld ties with Israel despite the post-October 2023 escalation. One of many British examples,[313] the University of Edinburgh holds nearly £25.5 million ($31.72 million) (2.5 per cent of its endowment) in four tech giants – Alphabet, Amazon, Microsoft and IBM[314] – central to the Israeli surveillance apparatus and the ongoing Gaza destruction. With both direct and indexed investments, the University ranks among the most financially entangled institutions in the United Kingdom of Great Britain and Northern Ireland. The University also partners with firms aiding Israeli military operations, including Leonardo S.p.A.[315] and Ben-Gurion University, through the AI and Data Science Lab at Ben-Gurion University,[316] sharing research that directly links it with assaults on Palestinians.

The analysis in the present report only scratches the surface of the information received by the Special Rapporteur, who acknowledges the vital work of students and staff in holding universities to account. It casts a new light on global crackdowns on campus protesters: shielding Israel and protecting institutional financial interests appears a more probable motivation than fighting alleged antisemitism.[317]

CONCLUSIONS

While life in Gaza is being obliterated and the West Bank is under escalating assault, the present report shows why the genocide carried out by

Israel continues: because it is lucrative for many. By shedding light on the political economy of an occupation turned genocidal, the report reveals how the forever-occupation has become the ideal testing ground for arms manufacturers and big tech – providing boundless supply and demand, little oversight and zero accountability – while investors and private and public institutions profit freely. Too many influential corporate entities remain inextricably financially bound to Israeli apartheid and militarism.

Post-October 2023, as the Israeli defence budget has doubled, and at a time of falling demand, production and consumer confidence, an international network of corporations has propped up the Israeli economy. Blackrock and Vanguard rank among the largest investors in arms companies pivotal to the genocidal arsenal of Israel. Major global banks have underwritten Israeli treasury bonds, which have bankrolled the devastation, and the largest sovereign wealth and pension funds invested public and private savings in the genocidal economy, all the while claiming to respect ethical guidelines.

Arms companies have turned over near record profits by equipping Israel with cutting-edge weaponry that has devastated a virtually defenceless civilian population. The machinery of global construction equipment giants has been instrumental in razing Gaza to the ground, preventing the return and reconstitution of Palestinian life. Extractive energy and mining conglomerates, while providing sources of civilian energy, have fuelled the military and energy infrastructures of Israel – both used to create conditions of life calculated to destroy the Palestinian people.

And while the genocide rages on, the inexorable process of violent annexation in the West Bank, including East Jerusalem, continues. Agribusiness still sustains expansion of the settlement enterprise. The largest online tourism platforms continue normalizing the illegality of Israeli colonies. Global supermarkets continue to stock Israeli settlement products. And universities worldwide, under the guise of research neutrality, continue to profit from an economy now operating in genocidal mode. Indeed, they are structurally dependent on settler-colonial collaborations and funding.

Business continues as usual, but nothing about this system, in which businesses are integral, is neutral. The enduring ideological, political and economic engine of racial capitalism has transformed the Israeli displacement-replacement economy of occupation into an economy of genocide. This is a "joint criminal enterprise",[318] where the acts of one ultimately contribute to a whole economy that drives, supplies and enables this genocide.

The entities named in the present report constitute a fraction of a much deeper structure of corporate involvement, profiteering from and enabling violations and crimes in the occupied Palestinian territory. Had they exercised due diligence, corporate entities would have ceased involvement with Israel long ago. Today, the demand for accountability is all the more urgent: any investment sustains a system of serious international crimes.

Business and human rights obligations cannot be isolated from the Israeli illegal settler-colonial enterprise in the occupied Palestinian territory, which now functions as a genocidal machine, despite the International Court of Justice having ordered that it be fully and unconditionally dismantled. Corporate relations with Israel must cease until the occupation and apartheid end and reparations are made. The corporate sector, including its executives, must be held to account, as a necessary step towards ending the genocide and disassembling the global system of racialized capitalism that underpins it.

RECOMMENDATIONS

The Special Rapporteur urges Member States:

(a) To impose sanctions and a full arms embargo on Israel, including all existing agreements and dual-use items such as technology and civilian heavy machinery;
(b) To suspend or prevent all trade agreements and investment relations, and impose sanctions, including asset freezes, on entities and individuals involved in activities that may endanger the Palestinians;

(c) To enforce accountability, ensuring that corporate entities face legal consequences for their involvement in serious violations of international law.

The Special Rapporteur urges corporate entities:

(a) To promptly cease all business activities and terminate relationships directly linked with, contributing to and causing human rights violations and international crimes against the Palestinian people, in accordance with international corporate responsibilities and the law of self-determination;
(b) To pay reparations to the Palestinian people, including in the form of an apartheid wealth tax along the lines of post-apartheid South Africa.

The Special Rapporteur urges the International Criminal Court and national judiciaries to investigate and prosecute corporate executives and/or corporate entities for their part in the commission of international crimes and laundering of the proceeds from those crimes.

The Special Rapporteur urges the United Nations:

(a) To comply with the International Court of Justice advisory opinion of 2024;
(b) To include all entities involved in Israeli unlawful occupation in the OHCHR database (to be properly accessible on the OHCHR website).

The Special Rapporteur urges trade unions, lawyers, civil society and ordinary citizens to press for boycotts, divestments, sanctions, justice for Palestine and accountability at the international and domestic levels; together, the people of the world can end these unspeakable crimes.

This report is written at the cusp of a profound and tumultuous transformation. Globally witnessed atrocities require urgent accountability and justice, which demand diplomatic, economic and legal action against

those who have maintained and profited from an economy of occupation turned genocidal. What comes next depends on everyone.

Annex to Chapter 3

Overview of the Legal Framework Governing the Legal Responsibility of Corporate Entities in the Occupied Palestinian Territory

1. INTRODUCTION

This annex sets out the international legal framework broadly applicable to the corporate sector implicated in the occupied Palestinian territory (oPt). It aims to provide guidance on the interpretation and application of the legal concepts and factual findings presented in the main report. Not intended as an exhaustive exposition of international law in this domain, it presents the broad principles of corporate responsibility, particularly those applicable where corporate entities[1] are implicated in displacing Palestinians from their land and replacing them with unlawful colonies, contrary to international law. Corporate entities risk being held responsible for exploitative, abusive and even criminal conduct. Although corporate responsibility for and criminal complicity in violations was certainly identifiable in the oPt prior to October 2023, subsequent factual and legal developments could implicate corporations in unlawful occupation and genocide.

2. CORPORATE RESPONSIBILITY UNDER INTERNATIONAL LAW

Corporate responsibility for violations of human rights, international humanitarian law and crimes under international law is governed by legal instruments at the domestic, regional and international levels.

The UN Guiding Principles on Business and Human Rights (UNGPs) constitute the normative framework at the international level for the regulation of corporate conduct with respect to human rights.[2] They set out

what states and corporate entities need to do in order to comply with existing obligations under international human rights law, and are already having a significant impact on national law and policy. Indeed, the UNGPs provide the normative lens through which corporate conduct can be assessed in order to establish legally relevant facts in litigation where corporate liability is addressed. They are concerned both with preventing adverse human rights impacts and ensuring remedial actions are taken where a corporation's conduct *causes*, *contributes*, or is *directly linked* to such impacts.[3] Crucially, heightened normative requirements apply in contexts of conflict, occupation and structural vulnerability, especially where domestic enforcement of international human rights law may be weak or compromised, rendering international oversight necessary.[4]

Other areas of international law establish specific legal obligations for corporations, especially international humanitarian law – which is binding on non-State actors involved in armed conflict[5] – and international criminal law, under which individuals such as corporate executives, and increasingly corporate entities themselves, can be held criminally liable.[6] Domestic courts are the primary jurisdiction for the enforcement of corporate responsibility for human rights violations and international crimes.

2.1 STATES AS THE PRIMARY DUTY-BEARERS

International law accords States the primary role of ensuring that corporate entities do not violate international law and respect human rights, as part of their obligation to respect, protect and fulfil human rights. Under international human rights law, confirmed by the UNGPs, States may be found in breach of their human rights obligations where they fail to take appropriate steps to prevent, investigate, punish and redress abuses by private actors when human rights violations occur.[7] States have an obligation to extend this regulation and oversight to the operations of corporations that occur outside their territory, in accordance with general extraterritorial human rights obligations.[8]

Furthermore, under the rules on State responsibility, violations of human rights by private actors will be attributed to a State where a corporate entity acts on instructions from or under the control or direction of the State, is empowered by State legislation to exercise elements of governmental authority or where the State acknowledges and adopts the conduct as its own.[9] Accordingly, the UNGPs require States to take additional steps to protect against human rights abuse by corporate entities owned, controlled by or receiving substantial support from the State.[10]

2.2 RESPONSIBILITIES OF CORPORATE ENTITIES

The UNGPs apply to all corporate enterprises, "regardless of their size, sector, operational context, ownership and structure."[11] The responsibility of corporate entities for human rights violations and crimes under international law exists independently from that of States and irrespective of the action States do or do not take to ensure they respect human rights. Consequently, corporations must respect human rights even if a State where they operate does not, and they may be held accountable even if they have complied with the domestic laws where they operate.[12] In other words, compliance with domestic laws does not preclude/is not a defense to responsibility or liability.

Corporate entities are obliged both to avoid violating human rights law and to address human rights violations resulting from their own activities or their business relationships with others. To achieve this, the UNGPs establish a "continuum of involvement" and associated responsibilities. These reflect the complexity of corporate structures and economic value chains, and the fact that the nature of a company's involvement in a particular human rights impact may shift over time, so that if it does not take appropriate action, it could move up that continuum. The activities of a corporate entity and its relationships can be seen as part of an ecosystem, which may *altogether* (by perpetrating, facilitating, enabling and/or profiting) adversely impact human rights, resulting in violations.[13]

A corporate entity's responsibility depends primarily on whether its activities or relationships throughout its supply/value chain[14] risk, or are in fact:

(a) *causing* human rights violations,[15] due to its own activities being essential to the human rights abuse being able to occur.[16]
(b) *contributing to* violations through its own activities – either directly or through some outside entity (government, business or other). This includes any activity or relationship where a causal link can be established between the corporate entity's actions and the resulting violation.[17] Causality between the entity's actions and the resulting abuse will be considered to exist where it has facilitated or enabled the abuse, created strong incentives for a third party to breach international human rights law or undertaken activities "in parallel with a third party, leading to cumulative impacts".[18]
(c) *directly linked* to violations through its operations, products, services or corporate relationships, although it need not itself be contributing to the abuses.[19]

The UNGPs expect corporate entities to ensure that they are not implicated in human rights violations by undertaking **periodic human rights due diligence (HRDD)** to identify concerns *and* adjust their conduct.[20] Additionally, in situations of armed conflict, occupation and other instances of widespread violence, corporate entities are expected to engage in **heightened human rights due diligence** throughout the period of the conflict.[21]

As part of this heightened process – which is imperative in the oPt – corporate entities should ask themselves three questions regarding their actions and omissions:

(a) Is there an actual or potential adverse impact on human rights or is the conflict connected either to the corporate entity's activities, products or services?

(b) If so, do the corporate entity's activities increase the risk of that impact?
(c) If so, would the corporate entity's activities in and of themselves be sufficient to result in that impact?[22]

In answering these questions, corporate entities must consider:

- Conflict will always create adverse negative human rights impacts, therefore a corporate entity operating in a conflict will always cause, contribute to or be directly linked with human rights impacts;
- Corporate activities in a conflict-affected area can never be 'neutral'; even where a corporate entity does not take sides in a conflict, its activities will inevitably affect the conflict dynamics;
- Corporate entities need to respect standards of international humanitarian law and the obligation to prevent genocide, in addition to human rights.[23]

Based on the above assessment, a corporate entity has particular legal responsibilities:

(a) Where it *causes* human rights violations (answers "yes" to all three questions), it has a responsibility to cease the action, and to provide remedies and reparations for harm caused.[24]
(b) Where it *contributes to* human rights violations (answers "yes" to questions 1 and 2, "no" to 3), it has a responsibility to take the necessary steps to cease or prevent its own contribution to human rights violations (including terminating relationships), to mitigate any remaining impact through its leverage and to cooperate in the remediation of the harm.[25]
(c) Where it is *directly linked* to human rights violations (answers "yes" only to question 1), it is required to use its leverage, including collaboratively, to prevent or mitigate the impact on human rights.[26] Should that leverage prove ineffective, it must consider terminating relationships.[27] Failure to disengage from a high-risk context (despite

due diligence) will increase a corporate entity's liability for the violation.[28]

A crucial and often misunderstood aspect of the framework is that when assessing corporate actions, it is the material impact of corporate actions on the *current and potential* protection of human rights and the conflict-affected context itself that matters,[29] and not the degree of diligence exercised or the degree of negligence.[30] In other words, conducting this due diligence will not absolve a corporate entity of responsibility.[31] What matters is the human rights impacts and the actions taken to avert or address the risk.

Correctly identifying the violation in question is therefore crucial. This means corporate entities must consider whether specific human rights violations may also be constitutive of more structural and systemic violations of international law.[32] According to the UNGPs, the severity of the human rights impacts will determine their responsibilities and the sufficiency of the steps taken to prevent, cease and remedy the serious violations.[33] For example, a corporate entity may be *contributing to* home demolitions and forced displacement. However, in a context of settlement expansion, or more structural crimes, the corporate entity's actions may also be *directly linked* to the maintenance of apartheid, racial discrimination and genocide, or *contributing to* those violations, when systematic forced displacement is a constitutive component of these crimes as they unfold. They are also inherently *contributing to* the violation of the right to self-determination.

Additionally, the complexity of expected HRDD processes and the urgency with which corporate entities must act is proportional to the scale, scope and irremediability of the violations occurring.[34] In situations where there is clear evidence of ongoing, widespread human rights violations, the corporate entity must treat the risk of involvement as a legal compliance issue and, in the most extreme circumstances, cease operations in the State in question. Heightened HRDD enables corporate entities to anticipate escalations in the violations, and take the requisite action *before* those

violations materialise.[35] Failure to do so affects the degree of involvement and the extent to which their actions will be considered sufficient, impacting liability assessments. Thus a corporate entity *directly linked* to home demolitions and failing to terminate its relationships will find itself *contributing* to that violation, carrying greater responsibilities.[36]

2.3 WHEN RESPONSIBILITY MAY ENTAIL CRIMINAL LIABILITY

Failure to act responsibly in line with international law may implicate corporate entities in more serious violations giving rise to criminal liability, for the *corporate* entity and/or for its executives.

Drawn from the legacy of the Industrialists' trials at Nuremberg,[37] corporate accountability for international crimes is based on a recognition of the critical role the economy plays in times of war and conflict,[38] and the fact that corporate entities may be involved in heinous violations of international law constituting *international* crimes.

Individual executives can be held criminally liable for the actions of their corporate entities, including before the International Criminal Court.[39] While, increasingly, *corporate* entities themselves, could also face criminal liability as a result of the emerging crystallization of customary international legal principles.[40] This includes some domestic jurisdictions which attribute criminal liability to corporations,[41] and a growing body of treaties enshrine criminal liability of legal persons, which means that under international law corporations can be criminally liable for specific crimes, including genocide,[42] apartheid,[43] financing terrorism,[44] organized crime[45] and corruption.[46]

The conduct of corporations and their executives may entail direct criminal liability but more commonly constitutes complicity or aiding and abetting liability. This may involve instigating, moral support,[47] or abetting, furnishing aid or assistance for or procuring the means for the commission of a crime[48] or the creation of conditions necessary for atrocity crimes to occur.[49] International tribunals have generally found that criminal liability for such forms of complicity: (a) *can* be established where the aid or

assistance has a material effect on the commission of the crime,[50] and (b) depends on the knowledge possessed by the entity/executive of how its services or activities will be utilised, and the effect on the commission of the crime.[51]

In other words, it is not necessary to show that the entity or individual *intended* the particular harm; it is sufficient that in providing logistical, financial or operational support, they had actual or constructive *knowledge* that the principal *perpetrators* were engaged in a given crime,[52] or, in the case of prosecutions before the ICC, acted "for the *purpose* of facilitating the commission of such a crime"[53] Financial and managerial control over a corporate entity engaged in the crime is sufficient to establish the basis for individual criminal responsibility.[54] Jurisprudence has confirmed that corporate actors cannot avoid accountability by claiming that they were merely fulfilling commercial contracts.[55]

2.4 MECHANISMS OF ENFORCEMENT

This international framework is enforceable via a range of mechanisms – particularly at the domestic and regional levels – established by States in order to fulfil the legal obligations outlined in Section 2.1.

For many corporate actors, a key incentive to uphold practices that respect human rights is the risk of reputational damage arising from their involvement in human rights violations and international crimes. The UN Database (see 3.1 below),[56] for instance, has significantly promoted awareness of corporate responsibility in the oPt and contributed to divestment decisions.

An examination of all legislative and policy mechanisms adopted by states is beyond the scope of this report. In many jurisdictions, corporate violations of *jus cogens* norms, customary international law, international criminal law and international human rights law are enforceable in courts, while in others domestic criminal laws, tortious and negligence laws, and contract laws provide useful mechanisms for victims. The UNGPs can and

should be consistently used to provide the normative lens to assess corporate conduct and establish legally relevant facts.

Examples of corporate accountability for violations of international law include: in the UK for toxic emissions from a subsidiary-run copper mine,[57] in the Netherlands for the supply of nerve gas to Iraq,[58] in France for payments to armed groups to keep a cement factory running[59] and in Sweden for using the military to secure oil fields in Sudan.[60] In the US, a civil suit under the Alien Torts Statute, under which US courts can hold American corporations accountable for "violation[s] of the law of nations",[61] led to settlement with a US oil company for its complicity in violations in Myanmar.[62]

Where a corporate entity profits from actions that constitute an international crime (e.g., a war crime, genocide, apartheid or an act of aggression), this may also form the predicate crime for an offence under money laundering and proceeds of crime legislation that exists in many domestic jurisdictions,[63] which, if successfully proven, can infect all corporate dealings along the supply chain, such as provision of insurance, tech services, legal accountancy and banking services.[64]

Domestic human rights due diligence laws now exist in several states, including France,[65] Germany,[66] Norway[67] and Switzerland,[68] and the number can be expected to increase across EU states following the adoption of the EU Directive on Corporate Sustainability Due Diligence in July 2024,[69] subject to proposed amendments.[70] These laws establish mechanisms for supervision and enforcement through injunctive orders and effective, proportionate and dissuasive penalties.[71] They are often complemented by regulations applicable to particular sectors, such as dual-use cyber-surveillance items,[72] forced labour[73] and non-financial reporting entities.[74]

The OECD Guidelines for Multinational Enterprises on Responsible Business Conduct have opened new opportunities for scrutiny.[75] These require all 51 adhering States, including Israel,[76] to establish National Contact Points (NCPs) to promote the guidelines and create a non-judicial grievance mechanism allowing NGOs, trade unions, affected individuals and communities to lodge complaints about the direct operations or supply

chains of companies operating in or from an OECD-country,[77] and to receive a mediated outcome or final determination with recommendations.[78]

Where direct remedies are not available against corporate entities, it may be possible to hold States responsible for failing to comply with their obligations vis-à-vis corporate entities within their jurisdiction.[79]

3. APPLYING THE FRAMEWORK TO THE OCCUPIED PALESTINIAN TERRITORY

In the case of the oPt, corporate entities **have been on notice for decades** regarding the widespread and systematic nature of the human rights violations perpetrated there. Proper human rights due diligence would have identified the risk of corporate entities incurring responsibility for such violations well before the catastrophic events that have unfolded since October 2023 – all the more so if the required heightened processes were followed.

3.1 AN INHERENTLY UNLAWFUL CONTEXT, GRADUALLY EXPOSED

Since 1967, Palestinian and Israeli human rights groups,[80] the United Nations main organs[81] as well as UN treaty bodies,[82] special rapporteurs,[83] investigative committees[84] and major international NGOs – including Human Rights Watch,[85] Amnesty International,[86] Save the Children[87] and Oxfam[88] – have systematically documented the Israeli occupation's many violations, including the economic structures that sustain it.

In its 2004 Advisory Opinion, the ICJ found that Israel's construction of the Wall in the West Bank, including East Jerusalem, violated peremptory norms of international law, including the right to self-determination, the prohibition on annexation and obligations under international humanitarian and human rights law, including the crime of forced displacement.[89]

The 2004 Advisory Opinion laid the foundation for civil society responses such as the BDS campaign[90] and initiatives by other actors[91] who have mobilized around the principle that those who profit from occupation

should be held accountable. In response to mounting pressure, as well as internal risk assessments and strategic considerations, several companies have taken action. Some corporations have divested – for example, KLP from Caterpillar,[92] Irish Strategic Investment Fund from six Israeli companies[93] and AXA from five Israeli banks and Elbit Systems[94] – or have withdrawn their operations from the Israeli market, as have Veolia,[95] CRH,[96] General Mills,[97] G4S,[98] Yokohama[99] and Pret a Manger,[100] and Ben & Jerrys continues to fight to implement its decision to withdraw sales to colonies against efforts of its parent company Unilever.[101] In the sports sector, sustained advocacy led Adidas, PUMA, and Erreà to end their sponsorship of the Israel Football Association.[102]

In 2016, the UN Human Rights Council adopted resolution A/HRC/RES/31/36, pursuant to which the Office of the High Commissioner for Human Rights established a database in 2020 ('UN database') listing business enterprises that have "directly and indirectly enabled, facilitated and profited from the construction and growth of the settlements", identifying ten specific types of activities.[103] Its most recent iteration, updated in 2023, lists 97 companies.[104] While it does not cover the full gamut of relevant activities, the database captures critical components of the complex matrix of corporate entities involved in the displacement and replacement of the Palestinians.

3.2 SEISMIC SHIFT: INTERNATIONAL COURT PROCEEDINGS

Recent legal developments concerning the oPt have significantly reshaped the assessment of corporate responsibility and potential liability.

Most significant is the ICJ's Advisory Opinion of 19 July 2024, which addressed the legality of Israel's very *presence* in the oPt. The Court declared the prolonged presence of Israel in the whole of the territory, including its colony regime – composed of its military presence, settlements, associated infrastructures and control of Palestinian natural resources[105] – as illegal[106] in its entirety on the basis of sustained violations of two peremptory norms of international law: the right to self-

determination of the Palestinian people and the prohibition on the acquisition of territory by force (annexation).[107] The Court also recognized, among others, the violation of the non-derogable norm prohibiting racial segregation and apartheid.[108]

The ICJ's finding of a violation of the prohibition on the use of force effectively qualifies the occupation as an act of aggression.[109] Consequently, any dealings that support or sustain the occupation and its associated apparatus may amount to complicity in an international crime under the Rome Statute.[110] While Israel, as the de facto occupying power, remains bound by international humanitarian law, the illegality of the occupation means all administrative and military actions it undertakes in the oPt – from controlling visas, permits and movement, to incarceration and economic regulation – lack lawful authority under international law and should be considered invalid.[111]

Second, the recognition by the ICJ of the violation of the right to self-determination in turn informs the interpretation of all human rights and other legal obligations that flow therefrom. As the Court said, **the right to self-determination** is the most fundamental and existential right for all human beings, as it pertains to the inherent capability of a people to exist and determine themselves as a people in a given territory, free from foreign control and occupation.[112] Without this right, a people are unable to exercise control over their lives and resources in the territory recognized under international law as their own.[113]

On the basis of the ICJ's Advisory Opinion, the UN General Assembly demanded that Israel bring to an end its unlawful presence in the oPt by 17 September 2025.[114] Until that happens, States must not provide aid or assistance or enter into economic or trade dealings, and must take steps to prevent trade or investment relations that would assist in maintaining the illegal situation created by Israel in the oPt.[115] It should be emphasized that the failure of States to act on the ICJ ruling does not absolve corporate entities of their responsibilities under international law and the UNGPs.

3.3 ATROCITY CRIMES

This sustained situation of illegality with impunity, with its associated violations of international law and international crimes, has predictably given rise to further egregious violations, amounting to atrocity crimes, committed since October 2023. These have in turn precipitated the opening by the ICJ and ICC of proceedings concerning Israel: the former relating to genocide, the latter to war crimes and crimes against humanity.

On 26 January 2024, following the *South Africa v. Israel* proceedings under the Genocide Convention, the ICJ ordered Israel to take "all measures" within its power to prevent genocidal acts against Palestinians,[116] and in May 2024, the Court ordered Israel to "immediately halt" military operations that may bring about conditions of life intended to destroy.[117] In separate proceedings, *Nicaragua v Germany*, the ICJ reminded *all* States "of their international obligations relating to the transfer of arms[118] to parties to an armed conflict, in order to avoid the risk that such arms might be used to violate" international law.[119]

By placing States on explicit notice of this risk of genocide, the ICJ orders engaged the obligation under Article 1 of the Genocide Convention to "prevent and punish" genocide, thereby exposing all those who continue to aid, abet or assist Israel in committing such acts to potential international responsibility for complicity in genocide.

In November 2024, the ICC issued arrest warrants in the *Situation in the State of Palestine* for Israeli Prime Minister Benjamin Netanyahu and former Defense Minister Yoav Gallant, on the basis that there are reasonable grounds to believe that they bear criminal responsibility for war crimes and crimes against humanity.

3.4 CONSEQUENCES FOR CORPORATE ENTITIES

The above legal developments have significantly reshaped the assessment of corporate responsibility and potential liability, which must now be interpreted in light of these orders and decisions of international courts.

The scale and severity of violations occurring throughout Israel's decades-long military occupation – which has helped entrench a settler-

colonial apartheid regime – should already have alerted corporate actors to their responsibility to avoid *causing*, *contributing to* or being *directly linked to* ongoing human rights violations, and the possibility that they may have been complicit in the commission of international crimes, such as by aiding and abetting and facilitating them. The political economy of Israel's occupation set out in the report, is illustrative of the entwinement of all manner of corporate activities with the *displacement* and *replacement* of Palestinians in the oPt. At a minimum, this *directly linked* these corporate activities with an entrenched and structural set of violations that almost certainly already triggered the responsibility of corporate entities to cease engagement linked to the oPt under the UNGPs, on the basis of their limited capacity to wield influence in order to prevent or mitigate the adverse impact. But the recent and ongoing ICJ and ICC proceedings have removed any possible doubt and put corporate entities – whether subsidiaries, parent companies or direct actors and investors – clearly on notice of the serious risk of being implicated in very serious violations of international law, including human rights violations and international crimes, and of their actions having contributed to or become criminally complicit in these violations and crimes.

Israel's ongoing illegal occupation of the oPt creates an untenable situation for corporate entities to simply continue business as usual. The finding that the occupation is per se illegal, and that international crimes, including genocide, and arguably the crime of aggression, may have been committed, has gone far beyond a "heightened risk" of adverse human rights impact. The private sector must, in its own interests, urgently reconsider all engagement connected to Israel's economy of occupation and now genocide.

A consequence of the ICJ Advisory Opinion is a requirement for heightened human rights due diligence on the part of corporate entities, which must now address the fundamental illegality at the heart of Israel's enterprise. They can no longer limit their legal assessments and mitigation measures to questions of Israel's specific conduct and whether certain human rights (e.g., environmental, workers' or children's rights or lack of

fair trial guarantees) and humanitarian frameworks are respected.[120] For example, the incarceration of thousands of Palestinians, whether in administrative detention or after being convicted in military courts, is unlawful due to the lack of legal authority and because it is part of a governance system using mass incarceration of Palestinians as a tool of systemic repression and forced displacement, and not merely due to the absence of fair trial guarantees. The Advisory Opinion also signals that corporate entities must recognize the primacy of the right to self-determination and its interpretive function in the construction of all other human rights protections.[121] This means human rights policies and environmental, social and governance frameworks cannot continue to overlook the right to self-determination, which is firmly embedded within human rights law,[122] recognized as a foundational right of all peoples, and the prerequisite to all other rights.[123]

It also means recognizing that any engagement with the Palestinian people and in the oPt must comply with their right to self-determination. This supersedes paternalistic justifications based on the fiduciary obligations of the occupying power under the Fourth Geneva Convention, and invalidates specious justifications by corporate entities, such as that an investment through Israel as the occupier can eventually benefit the Palestinians as well, or that divestment would have adverse human rights impacts.[124]

The ICJ Advisory Opinion, endorsed by the UN General Assembly, imposes a prima facie responsibility on corporate entities to not engage and/or to withdraw totally and unconditionally from any dealings with any component of the occupation. Where corporate entities disregard this notice, fail to abide by their responsibilities under the UNGPs and continue engagement through their activities and relationships with Israel, its economy, its military and private sector connected to the oPt, they knowingly contribute to or cause violations, including the denial of the Palestinian right to self-determination, the permanent annexation of Palestinian territory or the maintenance of Israel’s unlawful occupation of Palestinian territory. The escalation in legal responsibility arises also

because ongoing sustainment of any relationships and activities in such a serious context, contributes to legitimating Israeli conduct and furthering impunity which in turn leads to ever more egregious conduct. Normalisation of the illegal is essential to the survival of Israel's settler-colonial enterprise.

Now, this is a political economy that was always eliminatory and has turned into genocidal mode. Confirming this, the ICJ Provisional Measures and ICC Arrest Warrants signal the risk that corporate entities – and their executives – that engage in the oPt are implicated in serious international crimes. Any decision to continue engagement in Israel's economy is therefore done with knowledge of the crimes that may be taking place, and of the fact that they may provide material support to Israel to continue to commit those crimes.

Corporate entities and their executives can, and indeed must, find themselves liable in civil or criminal law for such conduct, in addition to the multitude of other crimes and human rights violations that are part of the economy of occupation. The actions entities and executives do or do not take in accordance with their responsibilities, vis-à-vis these legal developments and the UNGPs, have material relevance to key evidential questions that would arise in the course of determining their civil and/or criminal liability.

Biographies

Francesca Albanese is an international lawyer, specialized in human rights and the Middle East. Since May 2022, she has served as the United Nations Special Rapporteur on the situation of human rights in the Palestinian territory occupied since 1967. An affiliate scholar at the Institute for the Study of International Migration at Georgetown University, Albanese is the author of *Palestinian Refugees in International Law* (Oxford University Press, 2020, with Lex Takkenberg) and *J'Accuse* (Fuoriscena, 2024). Her academic works cover various aspects of the Question of Palestine, the legal situation in Israel/Palestine, and Palestinian forced displacement. Albanese is responsible for the research and legal assistance programme on migration and asylum seekers in the Arab world for the think tank Arab Renaissance for Democracy and Development (ARDD), and is a co-founder of the Global Network on the Question of Palestine (GNQP), a coalition of prominent regional and international experts and scholars engaged in the issue of Israel/Palestine. She has worked with various international organizations, including the Office of the High Commissioner for Human Rights (OHCHR) and the Relief and Works Agency for Palestine Refugees (UNRWA). As Special Rapporteur, she has published numerous legal opinions and several major reports on violation of the law of self-determination in the oPt (2022), the widespread and systematic mass deprivation of liberty of Palestinians (2023), violated childhood in the oPt (2023), and genocide (2024a, 2024b, 2025).

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Chapter 2 – United Nations General Assembly, A/79/384, 1 October 2024, Seventy-ninth session, Item 71 (c) of the provisional agenda, Promotion and protection of human rights: human rights situations and reports of special rapporteurs and representatives. “Report of the Special Rapporteur on the situation of human rights in the Palestinian territories occupied since 1967, Francesca Albanese: Genocide as colonial erasure”.

Chapter 3 – United Nations General Assembly, A/HRC/59/23, Advance edited version, 30 June 2025, Human Rights Council, Fifty-ninth session, 16 June–11 July 2025, Agenda item 7, Human rights situation in Palestine and other occupied Arab territories. “From economy of occupation to economy of genocide: Report of the Special Rapporteur on the situation of human rights in the Palestinian territories occupied since 1967, Francesca Albanese”.

Notes

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CHAPTER 2: GENOCIDE AS COLONIAL ERASURE

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CHAPTER 3: FROM ECONOMY OF OCCUPATION TO ECONOMY OF GENOCIDE

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